



CITY COUNCIL MEETING
CITY HALL COUNCIL CHAMBERS
229 MAIN STREET, CONWAY, SC 29526
TUESDAY, FEBRUARY 17, 2026 - 4:00 PM

PLEASE SILENCE ALL ELECTRONIC DEVICES

I. CALL TO ORDER

II. INVOCATION/PLEDGE OF ALLEGIANCE

III. CONSENT AGENDA

- A. Final Reading of Ordinance #ZA2026-02-02 (A) to annex approximately 0.22+/- acres of property located at 250 Chevy Chase Drive (PIN 367-13-01-0031).
- B. Final Reading of Ordinance #ZA2026-02-02 (C) to rezone approximately 0.22+/- acres of property located at 250 Chevy Chase Drive (PIN 367-13-01-0031) from the Horry County Residential, including mobile homes (MSF10) district to the City of Conway Low/Medium-Density Residential (R-1) district upon annexation.
- C. Final Reading of Ordinance #ZA2026-02-02 (D) to rezone approximately 50.64+/- acres of property located on E. Country Club Drive (PIN 339-00-00-0026), from the City of Conway Low/ Medium Residential (R-1) to the City of Conway Conservation Preservation (CP).
- D. Approval of a Special Event - Waccamaw Sportsmen's Expo – March 26-28, 2026
- E. Approval of a Special Event – Halloween Hustle – October 3, 2026
- F. Approval of a bid for the purchase of a CNC Machine for the Construction Services Department (budgeted)
- G. Approval of January 20, 2026 City Council Meeting Minutes

IV. SPECIAL PRESENTATION

- A. Presentation of Longevity Awards – January 2026 – 5 Years – Nickey Richardson, Police; 25 Years – Jason Perzan, Fire
- B. Proclamation Honoring Black History Month

“I pledge to build a stronger and more prosperous community by advocating for civil engagement, respecting others and their viewpoints, and finding solutions for the betterment of my city.”

C. Conway Downtown Alive Annual Visitor Center Update – Hillary Howard

D. Update on the 2025-26 Mayor’s Youth Advisory Council (Platt)

E. Discussion of a request to rezone approximately 5.28 +/- total acres of property located at 2578 Hwy 378 (PIN 337-10-03-0010), from the Highway Commercial (HC) district to the Heavy Industrial (HI) district. (Hucks)

V. FIRST READING

A. First Reading of Ordinance #ZA2026-04-20 (A) to annex approximately 1.08 +/- acres of property located off of Cates Bay Hwy (PIN 369-11-04-0004). (Hucks)

B. First Reading of Ordinance #ZA2026-03-16 (D) to rezone approximately 1.0+/- acres of property at 3000 Hwy 378 (PIN: 337-16-04-0011) from the Horry County Highway Commercial (HC) district to the City of Conway Highway Commercial (HC) district. (Hucks)

C. First Reading of Ordinance #ZA2026-03-16 (E) to rezone approximately 0.43+/- acres of property at 1322 and 1324 Cottage Lane (PINs: 338-10-02-0005 & -0006) from the Horry County Highway Commercial (HC) district to the City of Conway Low/Medium-Density Residential (R-1) district, *or alternatively*, the City of Conway Highway Commercial (HC) district. (Hucks)

D. First Reading of Ordinance #ZA2026-03-16 (F) to rezone approximately 0.22+/- acres of property at 1326 Cottage Lane (PIN: 338-10-02-007) from the Horry County Highway Commercial (HC) district to the City of Conway Highway Commercial (HC) district. (Hucks)

E. First reading of Ordinance #2026-03-16 (G), an ordinance authorizing the relinquishment of an existing waterline easement and the acceptance of a new 30-foot-wide waterline easement associated with the relocation and upsizing of a City of Conway water transmission line related to Santee Cooper’s substation project, owned by the South Carolina Public Service Authority (Santee Cooper) and identified as PINs 369-00-00-0050, 369-00-00-0027 and 369-00-00-0028. (Dudley)

VI. CONSIDERATION

A. Consideration of approval for an extension to the non-exclusive franchise agreement issued to Randall’s Culinary Creations Mobile Food Truck at the parking lot located at 7 Elm Street. (Wilkerson)

B. Consideration of the purchase of a Hydroseeder for the Public Works Department. (Harrelson)

VII. PUBLIC INPUT

VIII. CITY ADMINISTRATOR’S REPORT

IX. COUNCIL INPUT

“I pledge to build a stronger and more prosperous community by advocating for civil engagement, respecting others and their viewpoints, and finding solutions for the betterment of my city.”

X. WORKSHOP

XI. EXECUTIVE SESSION

- A. Consideration of appointments to boards, commissions and committees [pursuant to SC Code §30-4-70(A) (1)].
- B. Discussion of potential contractual agreement regarding City lease of property [pursuant to SC Code §30-4-70 (A) (2)].
- C. Discussion of Employment of an Employee in the Police Department [pursuant to SC Code §30-4-70 (A) (1)].

XII. RECONVENE FROM EXECUTIVE SESSION

XIII. POSSIBLE ACTION ON MATTERS DISCUSSED IN EXECUTIVE SESSION

XIV. ADJOURNMENT

Any City of Conway resident or owner of a business within the City that holds a valid city business license may make an appearance before City Council concerning any municipal matter with the exception of personnel matters. Persons desiring to speak must notify the City Clerk no later than 5 p.m. on the last business day prior to the day of the City Council meeting. However, if you are speaking regarding a public hearing item, then you would do so during that time on the agenda. Address Council from the podium stating your name, address, and the subject you would like to discuss. The public may also access the meeting at <https://www.conwaysc.gov/>.

“I pledge to build a stronger and more prosperous community by advocating for civil engagement, respecting others and their viewpoints, and finding solutions for the betterment of my city.”



STAFF REPORT

Final Reading of Ordinance #ZA2026-02-2 (A)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: III.A.
ORDINANCE: #ZA2026-02-02(A)	AGENDA SECTION: Consent
ISSUE: Petition to annex approximately 0.22+/- acres of property located at 250 Chevy Chase Dr.	
APPLICANT(S): Christopher McInvale	PIN(s): 367-13-01-0031
CURRENT ZONING: Residential, mobile homes allowed (MSF10) – min. lot size of 10,000 sq. ft.	PROPOSED ZONING (upon annexation): Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property, identified as Lot 69 A Red Hill, the property was transferred to the current owners on October 17, 2025. Restrictive Covenants were recorded on November 10, 2025. The property contains a single-family dwelling and a detached storage building. Properties abutting the side and rear of the subject parcel are within the city limits. Annexation is being requested as a requirement for a name change to the city utility service account. The adjacent parcel fronting Claridy Rd was annexed in 2011, and other lots with frontage on Claridy Rd were annexed in 2016 and 2023.	
SURROUNDING USES/ZONING: The property abuts a vacant lot in the city limits, zoned FA and is surrounded by residential lots, zoned R-1 in the city limits or MSF-10 if in the unincorporated area of the county.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Low/Medium-Density Residential (R-1). <i>Per Section 3.2.3 of the UDO, the intent of the R-1 district is to provide for the preservation and expansion of areas for low to medium density, detached single-family residential development in the City of Conway. The district shall present a relatively spacious character, promote quiet, livable neighborhoods, and prohibit uses that are incompatible with the residential nature of the surrounding area.</i>	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission held the public hearing and recommended approval of the proposed zoning upon annexation at their January 8 th meeting.	
CITY COUNCIL: City Council approved first reading of the ordinance to annex the subject property at their December 1, 2025 meeting.	
RECOMMENDED ACTION: Approve Final Reading of Ordinance #ZA2026-02-02 (A) to annex the subject property.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-02-02 (A)

AN ORDINANCE TO ANNEX INTO THE CITY LIMITS OF CONWAY, APPROXIMATELY 0.22+/- ACRES OF PROPERTY, IDENTIFIED BY PIN: 367-13-01-0031 AND LOCATED AT 250 CHEVY CHASE DRIVE, TO INCLUDE ALL WATERWAYS, ROADS, AND RIGHTS-OF-WAY ADJACENT TO THE PROPERTY.

SECTION 1. FINDINGS OF FACTS:

- WHEREAS,** Section § 5-3-150, Code of Laws of South Carolina (1976) as amended, provides a method of annexing property into a city or town by a petition signed by all persons owning real estate in the area requesting annexation; and
- WHEREAS,** A proper petition has been filed with the City of Conway by one hundred percent (100%) of the freeholders owning one hundred percent (100%) of the assessed value of the contiguous property herein described, petitioning for annexation of the property to the City of Conway under the provisions of SC Code of Laws, Section § 5-3-150(3); and
- WHEREAS,** The area comprising said property is contiguous to the City of Conway and meets all statutory requirements for annexation; and
- WHEREAS,** It appears to City Council that annexation would be in the best interest of property owners and the City.

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Council of the City of Conway, South Carolina, duly assembled and with authority of same, pursuant to Section § 5-3-150, Code of Laws of South Carolina (1976), as amended, the following described property is hereby annexed to and made part of the City of Conway, to wit:

Approximately 0.22+/- acres of property identified by PIN: 367-13-01-0031 and located at 250 Chevy Chase Drive

Upon annexation, the property shall become subject to the City's jurisdiction for the rendition of all applicable municipal services. This annexation includes all waterways, roads, and rights-of-way adjacent to the property. For a more specific description of said property, see attached map(s).

SECTION 2. APPLICATION OF ZONING:

The official zoning map of the City of Conway shall be amended by separate ordinance following Planning Commission review and recommendation in accordance with S.C. Code § 6-29-760.

SECTION 3. EFFECTIVE DATE:

The annexation is effective as of the date of the final reading of this Ordinance.

RATIFIED BY CITY COUNCIL, duly assembled, this 17 day of February, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

William M. Goldfinch IV, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: 12/01/2025

Final Reading: 02/17/2026

Legend



PARCELS

PIN #: 367-13-01-0031

CHEVY CHASE DR

WEDDING LN

CLARIDY RD

EL PASO DR



Legend



PARCELS

PIN #: 367-13-01-0031

CLARDY RD

HWY 501 BUS

DEPOT RD

WEDDING LN

CHEVY CHASE DR

WASHINGTON AVE

EL PASO DR

AMBER LN

WASHINGTON

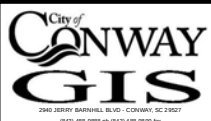
HWY 544

HARVEST GOLD DR

GEMSTONE BLVD

GOLDEN RESIN RD

PRIVATE DR



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.

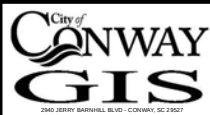
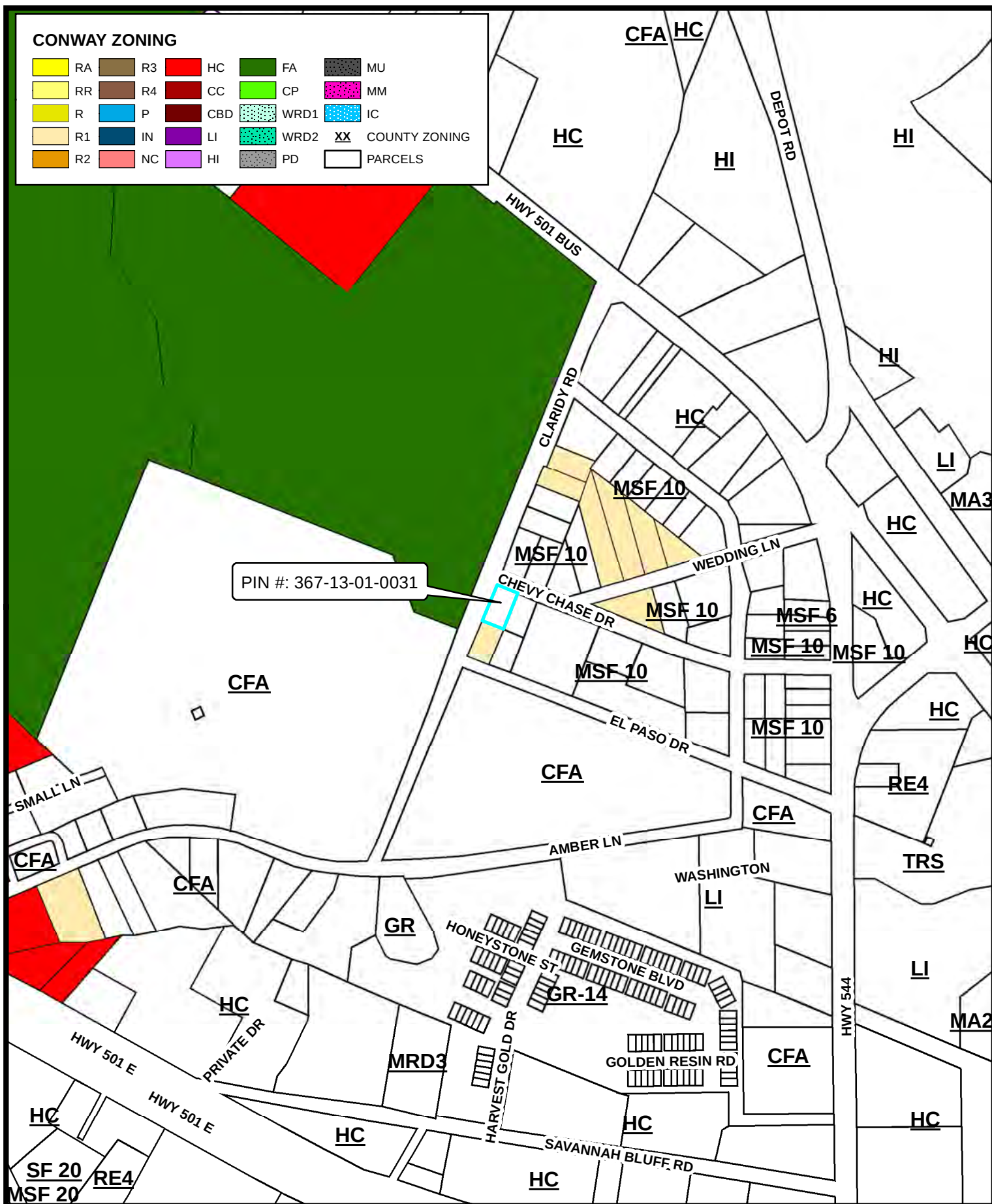


PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR



CONWAY ZONING

RA	R3	HC	FA	MU
RR	R4	CC	CP	MM
R	P	CBD	WRD1	IC
R1	IN	LI	WRD2	XX COUNTY ZONING
R2	NC	HI	PD	PARCELS



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



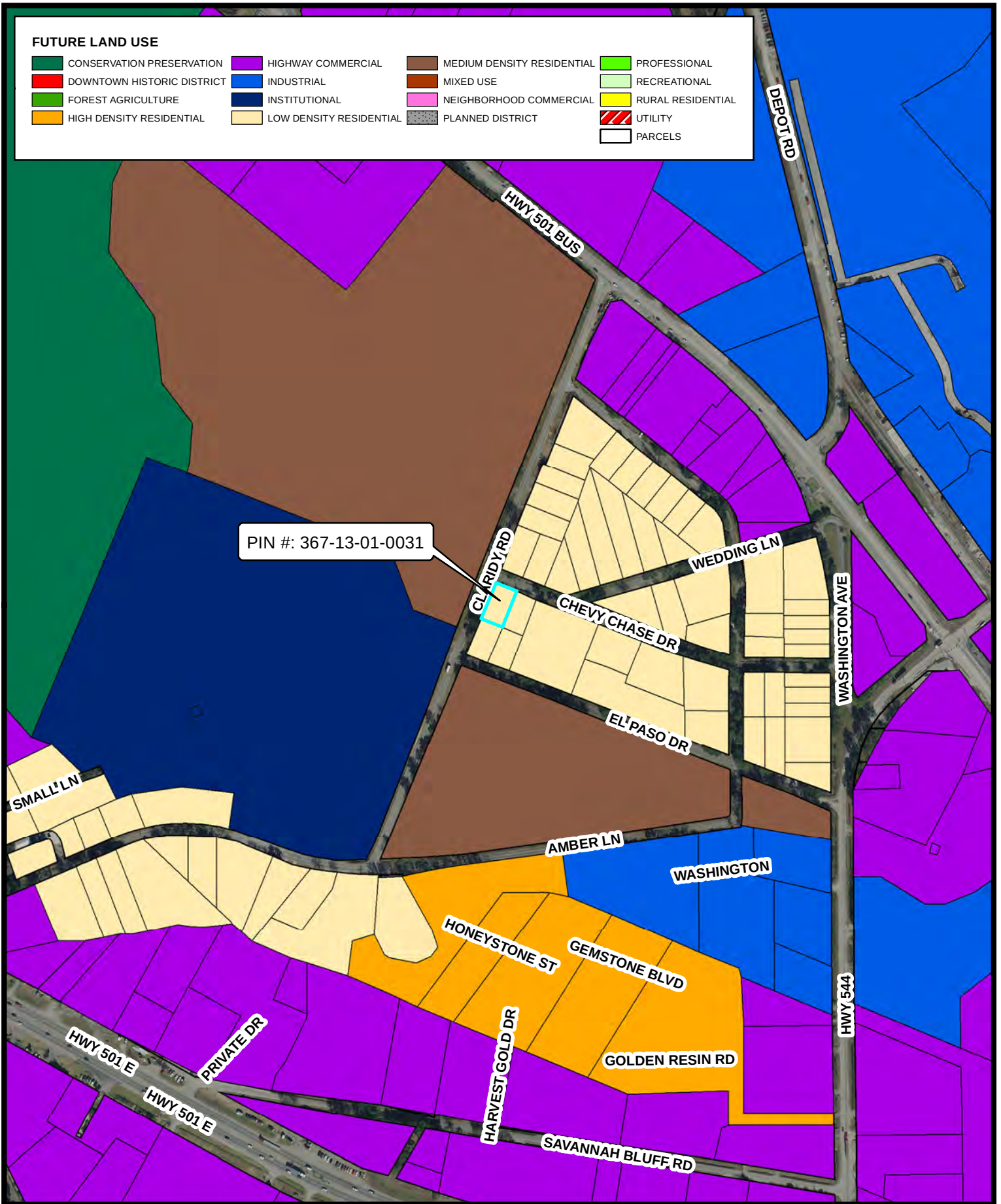
PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR



FUTURE LAND USE

 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS

PIN #: 367-13-01-0031



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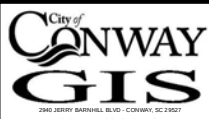
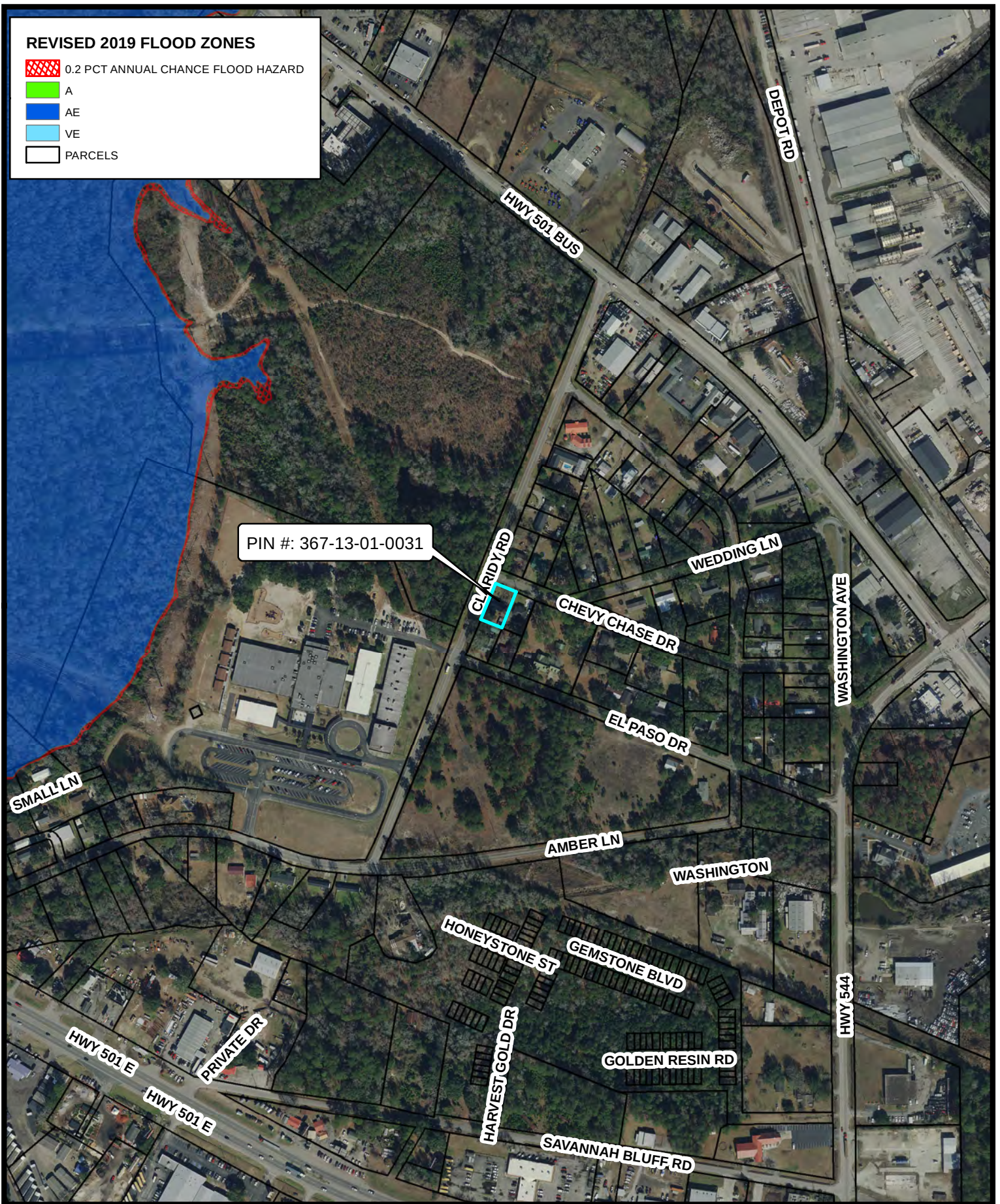
PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR



REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS

PIN #: 367-13-01-0031



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 367-13-01-0031
TMS #: 137-16-02-001
250 CHEVY CHASE DR





PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, *if available*

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: Red Hill ADDRESS: 250 Chevy Chase Drive
PIN(s): 36713010031 ACREAGE: 0.22

PURPOSE OF ANNEXATION:

- ☒ Connection to City water / sewer
☐ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: R1

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: CHRISTOPHER MCINVALE
MAILING ADDRESS: [REDACTED]
PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S): _____
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ YES ☐ NO

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

Existing structures and/or uses of property

Are there any structures on the lot? ☒ YES ☐ NO

If yes, what type of structure is on the property? House / shed

What is the current use of the property? Residential

Are there any building permits or development plans in progress or pending for the property? ☐ YES ☒ NO

If yes, what are the permit(s) or development plans for? _____

Does the property contain any of the following?

☐ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☐ Flood zone and/or Floodway

☐ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? _____

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☒ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☒ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES:

CHRISTOPHER MCINVALE

Print Name

Signature

Date

Print Name

Signature

Date

Are all property owners represented in the signatures provided above? ☐ YES ☐ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

Staff Use Only

Received: _____
BS&A #: _____

PROPERTY INFORMATION:

LOCATION: RED HILL - Lot 69A ADDRESS: 250 Chevy Chase Drive

PIN(s): 36713010031 ACREAGE: 0.22

CURRENT ZONING CLASSIFICATION: MSF 10

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: Low Density Residential

REQUESTED ZONING CLASSIFICATION: R1

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☐ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☐ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: CHRISTOPHER MCINVALE

MAILING ADDRESS: [REDACTED]

PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): Same

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ YES ☐ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

CHRISTOPHER MCINVALE

Print

Signature

Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



STAFF REPORT

Final Reading of Ordinance #ZA2026-02-02(C)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: III.B.
ORDINANCE: #ZA2026-02-02(C)	AGENDA SECTION: Consent
ISSUE: Final reading of an ordinance to rezone approximately 0.22+/- acres of property located at 250 Chevy Chase Drive upon annexation.	
APPLICANT(S): Christopher McInvale	PIN(s): 367-13-01-0031
CURRENT ZONING: Residential, mobile homes allowed (MSF10) – min. lot size of 10,000 sq. ft.	PROPOSED ZONING (upon annexation): Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property, identified as Lot 69 A Red Hill, the property was transferred to the current owners on October 17, 2025. Restrictive Covenants were recorded on November 10, 2025. The property contains a single-family dwelling and a detached storage building. Properties abutting the side and rear of the subject parcel are within the city limits. Annexation is being requested as a requirement for a name change to the city utility service account. The adjacent parcel fronting Claridy Rd was annexed in 2011, and other lots with frontage on Claridy Rd were annexed in 2016 and 2023.	
SURROUNDING USES / ZONING: The property abuts a vacant lot in the city limits, zoned FA and is surrounded by residential lots, zoned R-1 in the city limits or MSF-10 if in the unincorporated area of the county.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Low/Medium-Density Residential (R-1). Per <i>Section 3.2.3</i> of the UDO, the intent of the R-1 district is to provide for the preservation and expansion of areas for low to medium density, detached single-family residential development in the City of Conway. The district shall present a relatively spacious character, promote quiet, livable neighborhoods, and prohibit uses that are incompatible with the residential nature of the surrounding area.	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission held the public hearing and recommended approval of the proposed zoning upon annexation at their January 8 th meeting.	
CITY COUNCIL: City Council approved first reading of the ordinance to rezone the subject property at their January 20, 2026 meeting.	
RECOMMENDED ACTION: Staff recommends approval of first reading to rezone the subject property R-1 upon annexation.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-02-02 (C)

**AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF
CONWAY, TO ASSIGN A ZONING CLASSIFICATION TO RECENTLY ANNEXED
PARCEL IDENTIFIED BY PIN: 367-13-01-0031, CONSISTING OF 0.22+/- ACRES, AND
LOCATED AT 250 CHEVY CHASE DRIVE.**

WHEREAS, the City of Conway adopted Ordinance #ZA2026-02-02 (A) on February 2, 2026 annexing a parcel or parcels of land located at 250 Chevy Chase Drive, consisting of 0.22+/- acres, and identified as PIN 367-13-01-0031; and

WHEREAS, pursuant to SC Code § 6-29-760(A), the Planning Commission held a duly advertised public hearing on January 8, 2026 and recommended that the subject property be assigned the zoning classification of Low/ Medium-Density Residential (R-1); and

WHEREAS, City Council finds that such zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Low/ Medium-Density Residential (R-1) to the following parcel(s):

- **PIN** 367-13-01-0031
- **Address or location:** 250 Chevy Chase Drive, Conway, SC
- **Legal Description** (*per county land records*): RED HILL; LT 69A

SECTION 2. EFFECTIVE DATE:

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED that all ordinances or parts of ordinances inconsistent with this ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this 17 day of February, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

William M. Goldfinch IV, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: 1/20/2026

Planning Commission Recommendation: 1/8/2026

Final Reading: 02/17/2026



STAFF REPORT

Final Reading of Ordinance #ZA2026-02-02(D)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: III.C.
ORDINANCE: #ZA2026-02-02(D)	AGENDA SECTION: Consent
ISSUE: Final reading of an ordinance to rezone approximately 50.64+/- acres of property located on E. Country Club Dr.	
APPLICANT(S): City of Conway	PIN(s): 339-00-00-0026
CURRENT ZONING: Low/Medium-Density Residential (R-1)	PROPOSED ZONING: Conservation Preservation (CP)
BACKGROUND: The subject property, E/S Country Club Dr.; Parcel B, was transferred from Snow Hill Company to the City of Conway on March 21st, 2025, with the intent to preserve the flood zones and wetlands. The property is currently zoned Low/medium Density Residential (R-1) and is vacant. The request is in accordance with the Future Land Use map and is zoned Conservation Preservation (CP). Zoning the property to Conservation Preservation (CP) is also consistent with the City's goal to protect environmentally sensitive areas containing flood zones from residential development.	
SURROUNDING USES / ZONING: The property abuts a residential development currently under construction, zoned R-1 and is surrounded by uninhabited, wood wetlands zoned R-1 in the city limits or SF-20 if in the unincorporated area of the county.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Conservation Preservation (CP) Per <i>Section 3.2.15</i> of the UDO, Conservation Preservation (CP) <i>serves to provide needed open space for general outdoor and indoor recreational uses, and to protect environmentally sensitive areas and flood prone areas from the encroachment of any residential, commercial, industrial, or other uses capable of adversely affecting the relatively undeveloped character of the district.</i>	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission held the public hearing and recommended approval of the proposed rezoning at their January 8th meeting.	
CITY COUNCIL: City Council approved first reading of the ordinance to zone the property CP at their January 20th meeting.	
RECOMMENDED ACTION: Approve Final Reading of Ordinance #ZA2026-02-02 (D) to rezone the subject property.	
ATTACHMENTS: GIS Maps	

ORDINANCE #ZA2026-02-02 (D)

AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF CONWAY, TO REZONE APPROXIMATELY 50.64+/- ACRES OF PROPERTY LOCATED ON E. COUNTRY CLUB (PIN 339-00-00-0026) FROM THE LOW/MEDIUM-DENSITY RESIDENTIAL (R-1) DISTRICT TO THE CONSERVATION PRESERVATION (CP) DISTRICT.

WHEREAS, pursuant to Title 6, Chapter 29 of the Code of Laws of South Carolina, the City of Conway enacted the Zoning Ordinance of the City of Conway, South Carolina; and

WHEREAS, *Article 13, Section 13.1.7* of the City of Conway Unified Development Ordinance (UDO) provides that regulations, restrictions, and boundaries set forth in the UDO may be amended, supplemented, changed, or repealed in accordance with S.C. Code §6-29-760; and

WHEREAS, a petition has been submitted to rezone approximately 50.64+/- (total) acres located on E. Country Club Dr. (PIN 339-00-00-0026) from the Low/Medium-Density Residential (R-1) district to the Conservation Preservation (CP) district; and

WHEREAS, the Planning Commission of the City of Conway, on January 8, 2026, held the required public hearing to discuss the request to rezone the subject property from the Low/Medium-Density Residential (R-1) district to the Conservation Preservation (CP) district, and made their recommendation; and

WHEREAS, City Council finds that the requested zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED, by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Conservation Preservation (CP) to the following parcel(s):

- **PIN** 339-00-00-0026
- **Address or location:** E. Country Club Dr.
- **Legal Descriptions** (*per County land records*): E/S COUNTRY CLUB DR; PARCEL B

SECTION 2. EFFECTIVE DATE.

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED, that all ordinances or parts of ordinances inconsistent with this Ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this 17 day of February 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

William M. Goldfinch IV, Council Member

Julie Ann Hardwick, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

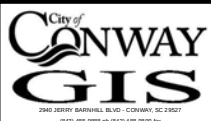
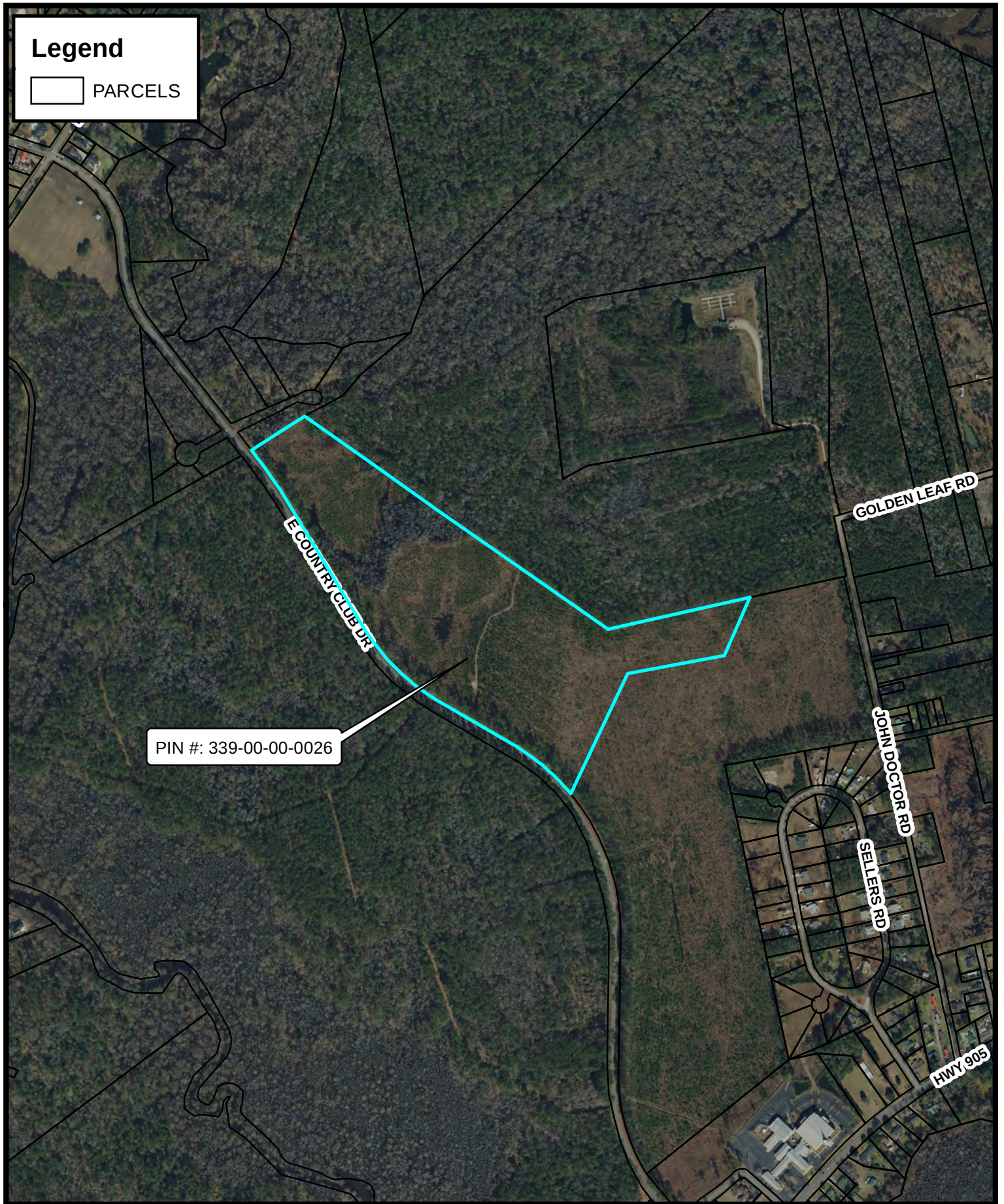
First Reading: 1/20/2026

Planning Commission Recommendation: 1/8/2026

Final Reading: 02/17/2026

Legend

PARCELS



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.

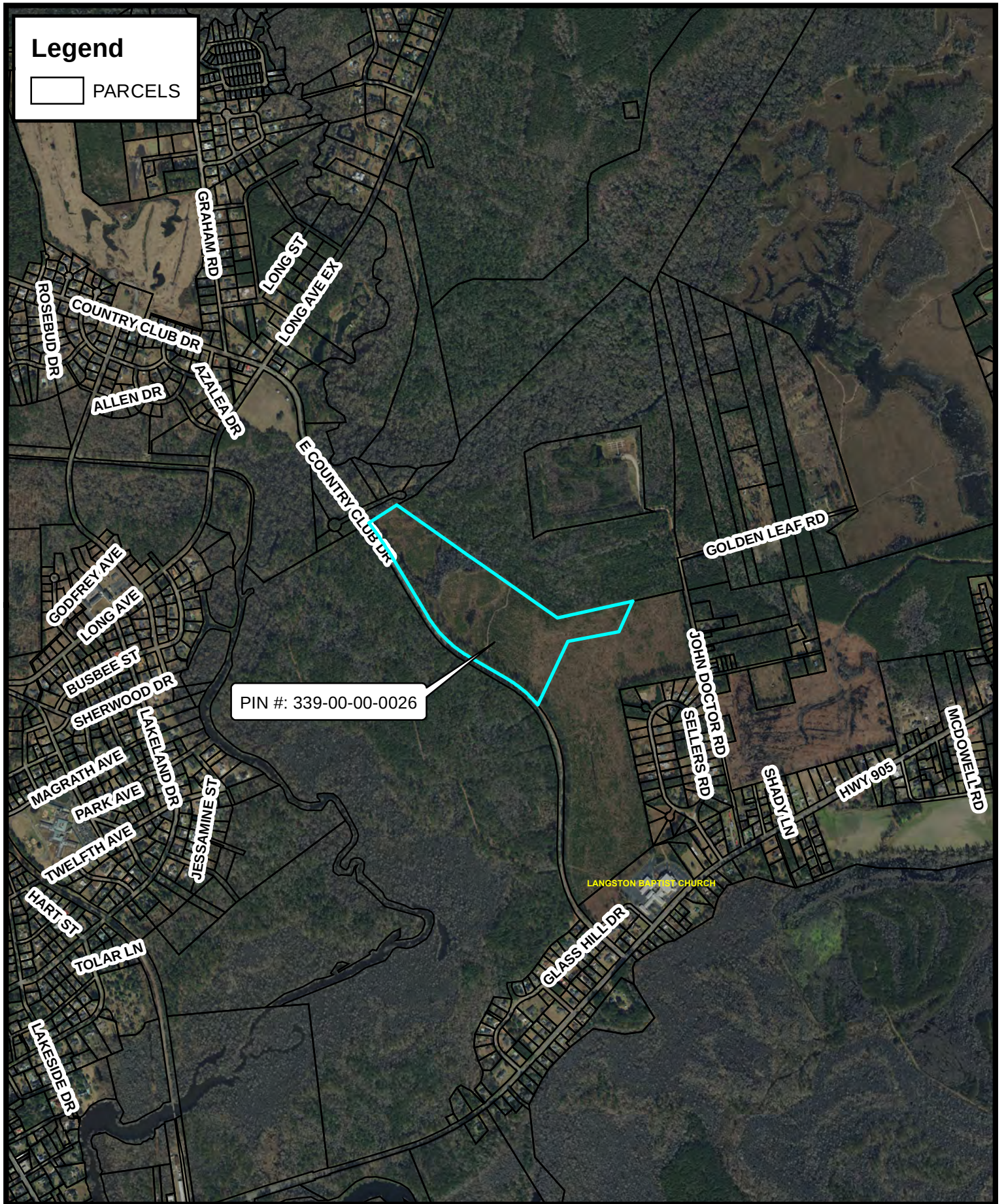


PIN #: 339-00-00-0026
CITY OF CONWAY PROPERTY

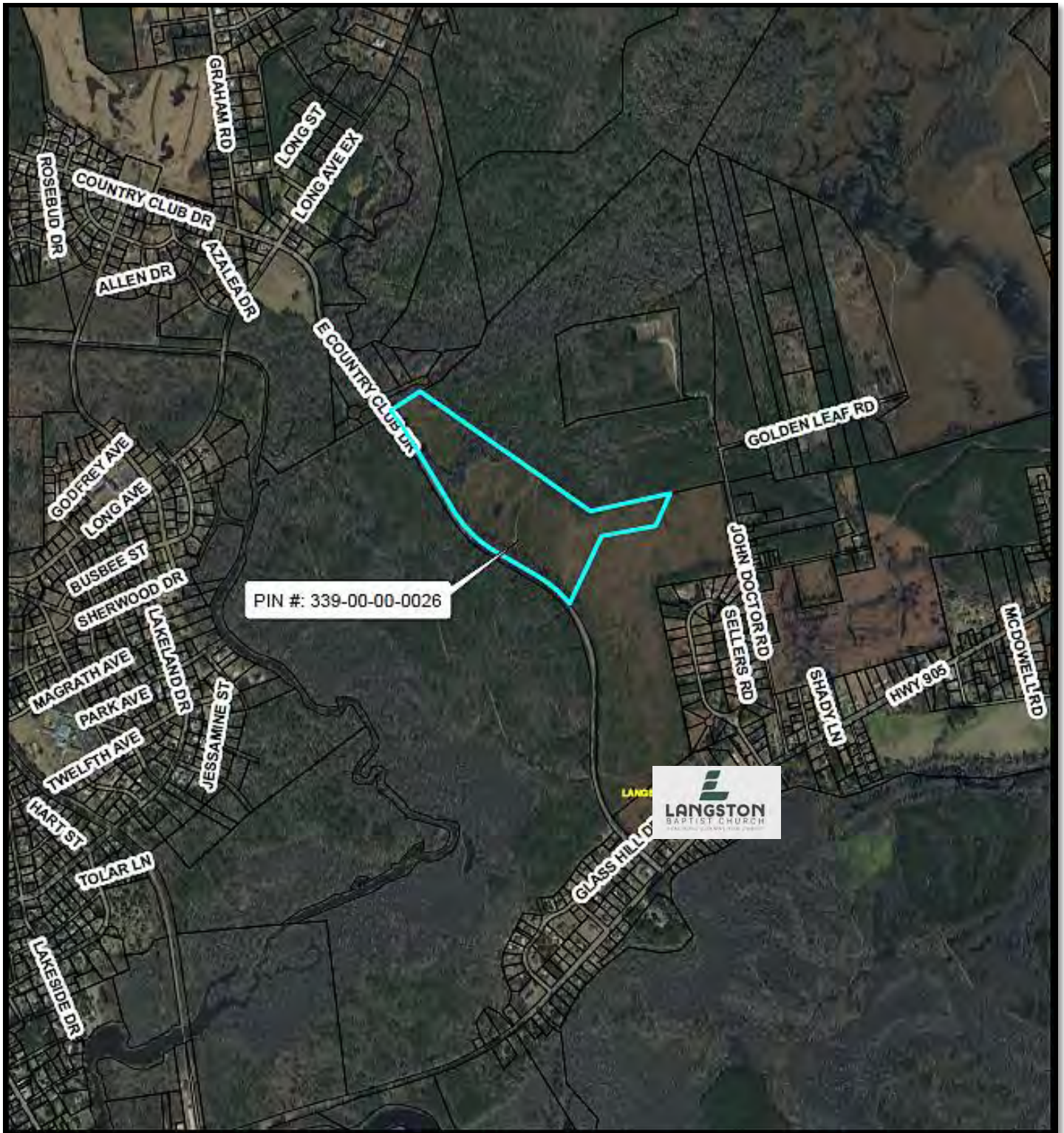


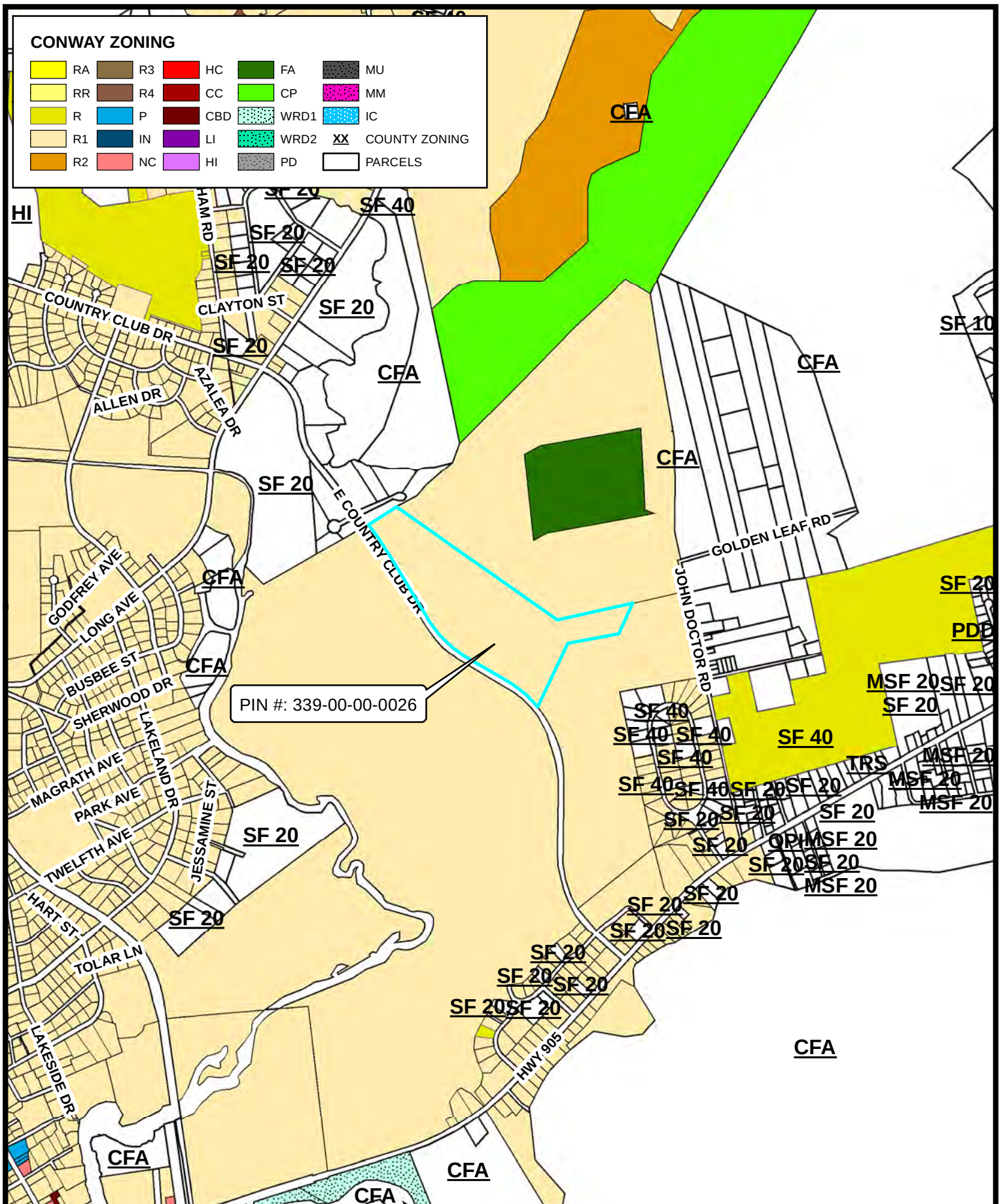
Legend

PARCELS



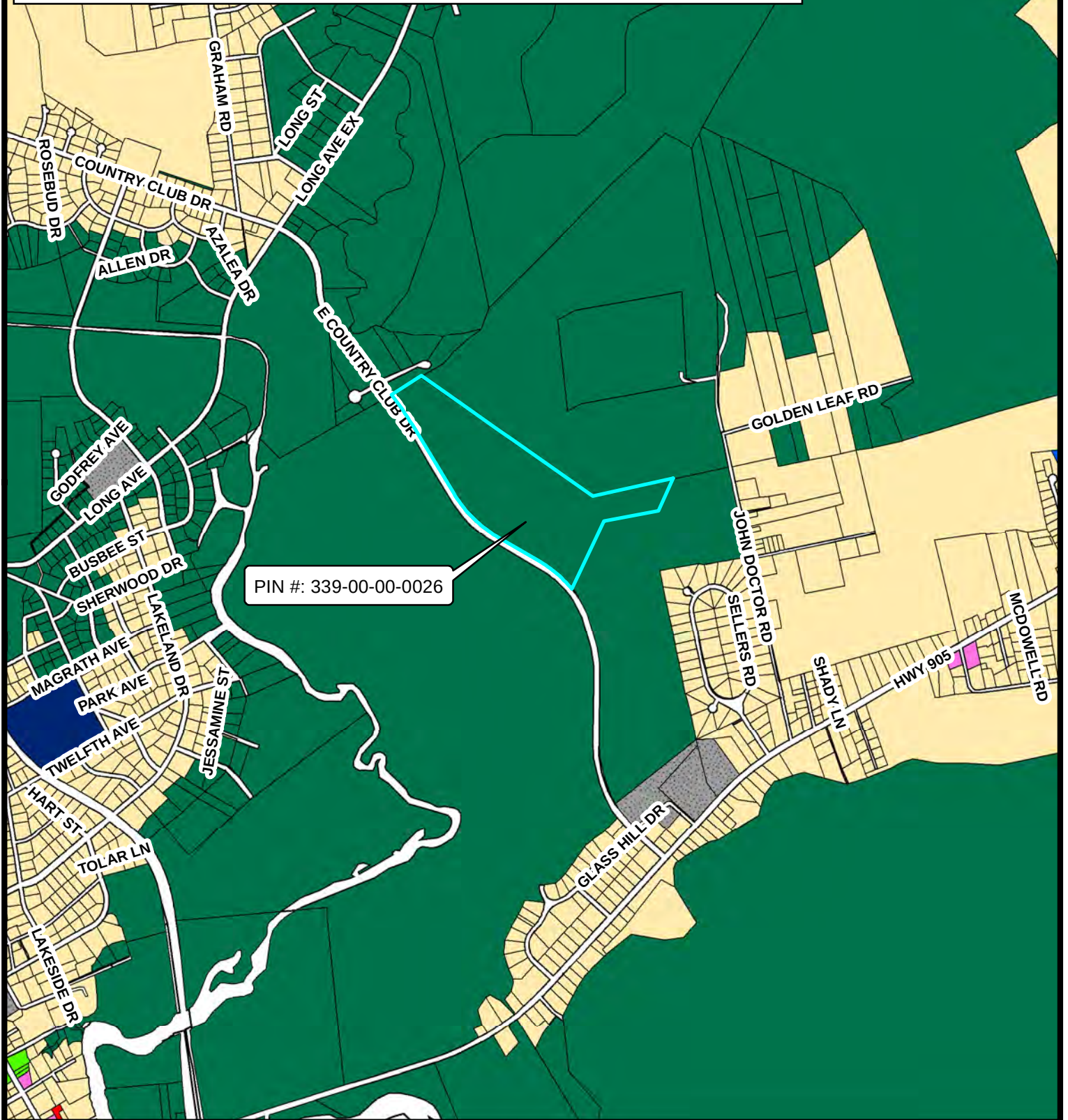
Aerial of East Country Club Dr. parcel (REZ)





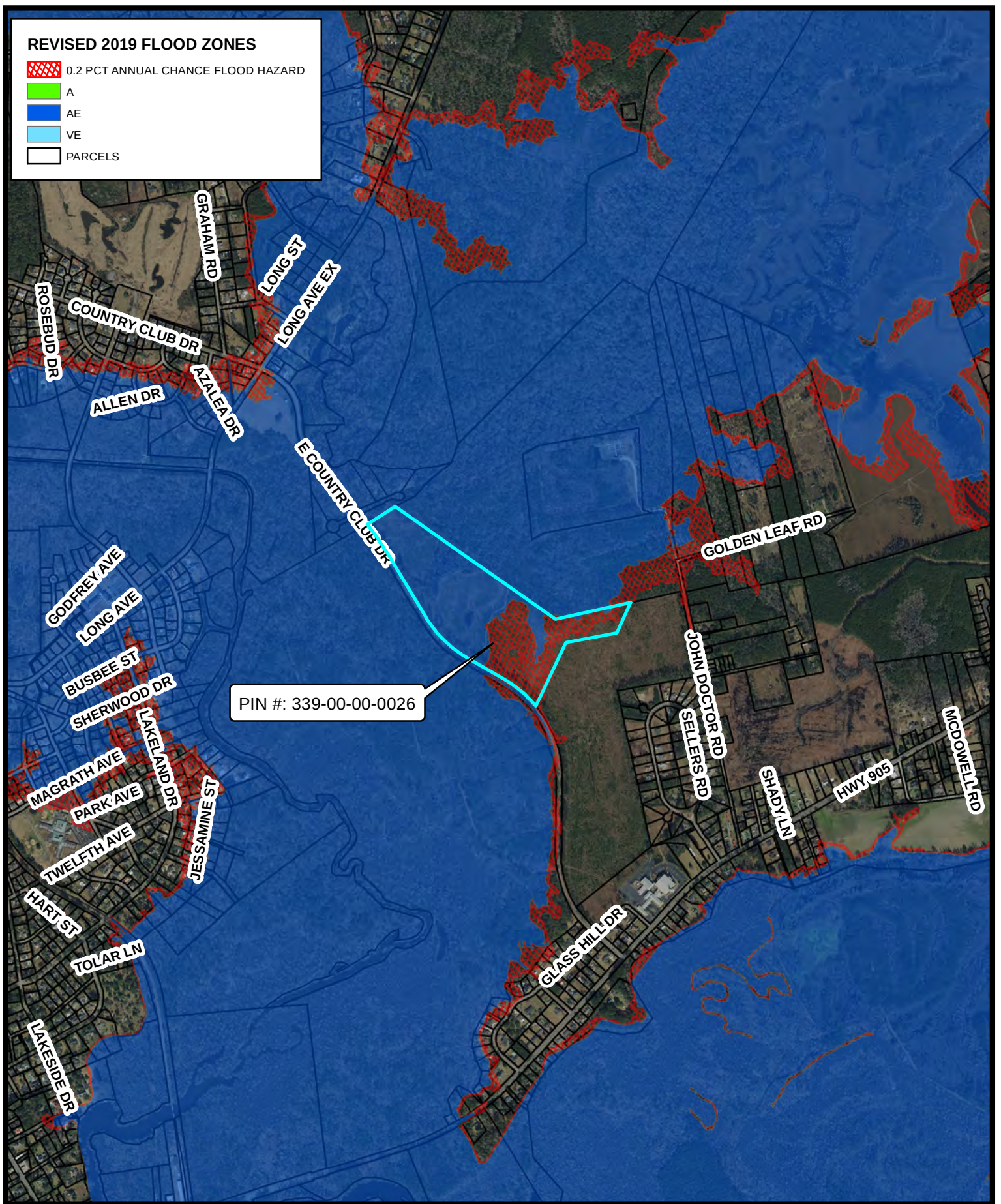
FUTURE LAND USE

 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS



REVISED 2019 FLOOD ZONES

- 0.2 PCT ANNUAL CHANCE FLOOD HAZARD
- A
- AE
- VE
- PARCELS



DATE: FEBRUARY 17, 2026
ITEM: III.D.

ISSUE:

Request from Conway Downtown Alive to host the Waccamaw Sportsmen's Expo March 26 -28 from 9:00 a.m.to 6:00 p.m.

BACKGROUND:

Conway Downtown Alive will host the outdoor lifestyle festival with DockDogs National Competition.

There will be National Dock Dogs competition, Purina Frisbee Dogs, vendors, food trucks, conservation shows, cooking demos and artists. Boats will be on display.

CDA requests closure of Town Green, Chamber and City Hall parking lots at 4:00 am on March 26; and 11:00 am on March 29.

On March 27 at 3:00 pm and March 28 at 7:00 pm CDA requests to close Laurel Street from Scarborough Alley to Laurel Street Fountain, Peanut Warehouse rear parking lot and Peanut Road.

CDA requests rolling carts at Town Green, The Terrace, and old tennis center. Comfort stations will be located at event locations. Two sets of bleachers and picnic tables will be at the Town Green.

There will be a power pull at Town Green, The Terrace, and the old tennis center.

CDA will secure an additional alcohol vendor to sell alcohol on site.

CDA anticipates approximately 3000 participants and 30 vendors.

RECOMMENDATION:

Approve the special event permit as presented.



RECEIVED
3/16/2026

For Office Use Only

Permit Application

- ☐ Approved
☐ Disapproved
☐ Charges in the amount of:

Signature

Date

SPECIAL EVENT PERMIT APPLICATION

**APPLICATION FOR PERMIT MUST BE FILED NOT LESS THAN 30 DAYS IN ADVANCE
OF THE PROPOSED ACTIVITY.**

According to the Code of Ordinances of the City of Conway, it is unlawful for any person to hold, manage, conduct, aid, participate in, form, start or carry on any parade or public meeting or assembly or picketing, in or upon any public street, park or other public grounds in the city unless and until a permit to conduct such meeting, assembly, parade or picketing has been obtained. A special event application is also required for events held on private property within the city that may expect a large crowd, impact on the neighborhood and/or city services, or require other permits such as zoning, signage, etc. Charges may apply to each application. The City of Conway, at its discretion, may choose to waive any fees and charges for special events held by bonafide, non-profit organizations.

An aerial sketch/layout of all outdoor events shall be provided with the application. For parades, this shall include blocked roadways, etc. A copy of any public advertisements shall also be included, if available at the time of the application.

Event Information

Name of the event: Waccamaw Expo

What is the location or route of the activity? (Please attach any necessary route maps.)

See attached map

What is/are the proposed date(s) of the activity? March 26, 27 & 28, 2026

Proposed Times 09:00 to 18:00

Describe the event in detail Dock Dogs, Frisbee dogs, vendors, food trucks, conservation shows, artists, boats

List any streets that may need to be closed, included the date(s) and times in which they will be closed and re-opened: see attached map and additional information page

What is the approximate number of participants? 3,000

What is the approximate number of vendors? 30

Any vendors at this event who do not have 501(c)(3) nonprofit status are required to purchase a City of Conway business license.

Organization Information

Name of organization: Conway Downtown Alive

Address of organization: 428 Main Street

Telephone number of organization: 843 248 6260

Are you conducting the activity on behalf of an organization? YES ☒ NO ☐

Is your organization a non-profit 501(c)(3) organization? YES ☒ NO ☐

Permit Holder Information

Name of permit holder: Conway Downtown Alive

Address of permit holder: 428 Main Street

City: Conway State: SC Zip: 29525

Telephone number of permit holder: 843 248 6260 Email hillaryhoward@conwayalive.com

Event Point of Contact Information (if different than permit holder)

Name: Hillary Howard

Telephone: 843 450 6241

Email: Hillaryhoward@conwayalive.com

Affiliation w/Event: Director

Public Safety Considerations

The City of Conway Police and/or Fire Departments may require additional fees for coverage, inspections, or any combination thereof.

The following circumstances **will** require fire department staffing on-site for which fees will be required to be paid prior to the event:

- Events that will have a net (total throughout event) attendance of 5,000 persons or more
- Events in facilities that will exceed the occupancy rating (parameters will be developed on a case-by-case basis)
- Pyrotechnic and fireworks special events
- Events in which there is a high hazard or potential risk to the attendees or public

Are you requesting on-site police coverage? YES ☐ NO ☒

Are you requesting fire/medical on-site coverage? YES ☐ NO ☒

Check all that may apply below (sound ordinance will apply):

Live band(s)		Loudspeakers	☒	Amplifiers	☒
--------------	--	--------------	-------------------------------------	------------	-------------------------------------

Police and Fire Coverage Fees:

- \$50/hour (minimum of 4 hours fire; 5 hours police)
- \$300 fire apparatus fee

Check all that apply below. Any selected may trigger an on-site inspection by the Fire Department:

None (skip this section)		Outdoor Assembly	✓	Indoor Assembly	
Air Supported Structures (inflatables)		Concert		Stage(s)	
Carnival/Fair		Mobile Food (truck/trailer/cart)	✓	Tents	✓
Temporary Cooking Booth (LPG)	✓	Temporary Structures	✓	Generators	✓
Bonfire		Open Flame/Torches		Pyrotechnics	
Fireworks Displays		Amusement Buildings		Other	

Estimate if unknown:

If you have air supported structures, how many will you have? 0

If you have tents, how many will you have? 6 What is the size of the largest tent? 10x10

If you have mobile food trucks/trailers/carts, how many are you going to have? 8

If you have temporary cooking booths, how many are you going to have? 2

Provide a list of the following information for mobile food trucks/trailers/carts and/or temporary cooking booths:

- Vendor Name(s)
- Type(s) (booth, truck, trailer, cart)
- Phone Number for Vendor(s)
- Point of Contact for each vendor

Additional Considerations

Will supplementary utility services such as power and water be used in addition to what is available in the area?

YES ☒ NO ☐

If yes, describe in detail the specific utilities and location(s). Any additional utilities must be provided by the applicant

Have you requested or obtained a permit from any other jurisdiction (city or county) within which the activity shall commence, terminated, or occur in part? YES ☐ NO ☒ yes, please provide a copy(ies).

How do you plan to remove garbage? requesting cans

Will existing restroom facilities be adequate? YES ☐ NO ☒

If no, describe plans to augment available sanitary facilities: _____

bringing additional units

Please include any additional information that may be useful: _____

Alcohol Sales at Special Event

Procedures and logistics for serving alcoholic beverages must be submitted with the special event permit application. These should include but are not limited to location, hours of operation, locations with site diagram and security procedures. Consideration will also be given as to whether alcohol sales would create potentially dangerous situations due to the nature of the event. Permission to serve or consume alcohol is granted by the city as part of the special event permit; however, such service must comply with all South Carolina Alcohol Beverage Control Commission regulations and the City of Conway Special Events Alcohol Control Policy. The City reserves the right to revoke the permit or require the applicant to discontinue alcohol sales whenever the consumption of alcohol by participants becomes excessive or when, over a period of time, participants regularly demonstrate obnoxious, loud, or other inappropriate behavior following events.

Will alcoholic beverages be served? YES ☐ NO ☒

Will alcoholic beverages be sold? YES ☒ NO ☐ *If yes, SC ABC permit required.*

Vendors: Please list any vendors, including applicant, for whom you are requesting permission to sell alcohol and the proposed locations for sales.

All licensed establishments in the event zone as well as any Conway Alive secured on-site vendor.

The following does not apply to restaurants:

Have you applied for a South Carolina temporary ABC Permit? YES ☐ NO ☒

Name of insurance company providing general liability with liquor liability insurance for the event naming the City of Conway as additional insured (a copy of the Certificate of Insurance must be provided): _____

CNA

ACKNOWLEDGMENT: *I acknowledge that I have read and do fully understand the Special Event Permit Application including required inspections, fees, and Alcohol Control Policy attached to this application and agree to comply with the guideline set forth herein.*

Applicant's Signature: Hillary Howard

Date: 01/14/2026



SPECIAL EVENTS ALCOHOL CONTROL POLICY

All event organizers and restaurants are required to be familiar with and follow the guidelines when participating in special events where alcoholic beverages will be served. It is understood that responsibility for fully meeting these requirements during an event rests with the entity, vendor, or restaurant serving alcohol within the special event area. Under City ordinance, any time a Special Event permit is approved, beer and/or wine may be openly carried within the area that the event is being held. As such, it is vital that the holder of the Special Event permit is aware of and understands the following:

1. Hard alcohol (liquor) may not be present, possessed, consumed and/or served at any permitted special event. *Section 7-2-2 (b) (1) states "The sale of alcohol within the designated area of a special event is limited to beer and wine."*
2. Public consumption of alcohol as authorized by the special event permit shall not begin before the designated event start time. There shall be no open containers of alcohol allowed in the event area before this designated time. Any vendor or participating restaurants must discontinue alcohol distribution for public consumption within the event area at a minimum of 30 minutes prior to the end of the event. All alcohol must be cleared from the event site at the end of the event.
3. At no other time may alcohol be present, possessed, served, and consumed in the public area.
4. It is a violation to permit or knowingly allow a person under 21 years of age to purchase or possess or consume liquor, beer or wine. The seller of beer or wine must clearly display signs stating that the purchase or possession of beer or wine by a person under the age of 21 is unlawful.
5. Signs informing participants that alcohol beverages are prohibited on City streets and sidewalks beyond the boundaries of the designated special event area will be posted by the City.
6. No alcohol may be served in glass containers or bottles.
7. It is a violation to sell liquor, beer or wine to an intoxicated person. Any person in an intoxicated condition, even if of legal age, must be denied alcohol.

If your event is proposed to be located on property owned by the City of Conway, approval of this permit shall grant the license and permission to use said property. The approval of the City Administrator or City Council shall be required for such use.

If your event is to be held on property not owned by the sponsoring organization, the property owner must complete the following:

PROPERTY OWNER PERMISSION LETTER

I (we), being the property owner of _____ (address),
give permission for _____ to hold a special event on
my/our property.

Date

Signature

Witness

Address

Printed Witness Name

Telephone Number

INSURANCE REQUIREMENTS FOR SPECIAL EVENTS HELD ON CITY PROPERTY

The event must maintain general liability insurance and, if beer and wine is to be served, liquor liability insurance for the event for which the permit has been obtained. The City of Conway shall be named as an additional insured on the policy with respect to claims arising from the use of property owned or operated by the city and the issuing of the permit by the city. The applicant shall submit a Certificate of Insurance verifying the following minimum coverage and specifically identifying the City of Conway as an additional insured. **Your permit will not be issued if the Certificate of Insurance has not been received prior to event.** The City of Conway must be listed as the "Certificate Holder" on the Certificate of Insurance.

Each Occurrence	1,000,000
Personal Injury	1,000,000
General Aggregate	2,000,000

.....
Application completed by:

Contact No.:

Date:

Hillary Howard

843450 6241

01/14/2026

Special events permits are granted in accordance with the City of Conway Code of Ordinances and in no way imply assumption of liability by the City of Conway. Your organization is fully responsible for complying with all applicable laws and safety procedures. A permit does not authorize you to enter upon private property or to, in any way, hinder or obstruct pedestrian or vehicular traffic. The City of Conway reserves the right to modify the conditions of this permit or to cancel it entirely if it is deemed appropriate.

Please return completed permit application to:

City of Conway Administration
Attn: Special Event Permits
P.O. Drawer 1075
Conway, SC 29528-1075

FIRE DEPARTMENT OUTDOOR VENDOR/EVENT GUIDELINES

The City of Conway Fire Rescue has implemented the following guidelines that must be followed while vendors are participating in outdoor events. The City Fire Marshal will be performing inspections of vendors prior to the beginning of the event.

- All Tents 400 square ft. or larger, will not be allowed without prior approval from the Fire Marshal.
- Cooking will not be allowed under any **Tents**, unless prior approval is obtained from the Fire Marshal.
- A 12 foot walkway must be placed between every fifth tent/vendor.
- All Membrane/Air Inflated Structures (Inflatable Structures/Moonwalks/Bounce Houses) must meet the NFPA 701 Standard and have a permanently affixed label identifying the material/fabric and size of the structure.
- All Tents and Membrane/Air Inflated Structures shall be properly anchored as to withstand the elements of weather and to prevent collapse.
- "NO SMOKING" is allowed under any tents regardless of size.
- All outside cooking that will be producing any grease laden vapors (Deep fat fryers) must have a **Class K Fire Extinguisher**. Surface cooking equipment must have a minimum of a **5 lb. ABC Fire Extinguisher**. Surface frying will not be allowed. (Ex: a cooking vat on top of a stove containing more than one inch of cooking oil or grease.)
- Venders that are only "warming" food must have a minimum of a **5 lb. ABC Fire Extinguisher**.
- All self- contained vendors (Ex: Portable kitchen that is in a trailer/food truck) must have a hood system and meet the NFPA 96 standard.
- All LP Gas cylinders must be a minimum of 10 feet from any cooking appliance and secured in an upright position.
- Extension cords must be commercial grade. (Minimum 12 gauge and must have a ground.) All extension cords must be secured so as to not create a trip or fall hazard. The use of multi-plug adapters is allowed as long as the amperage rating of the adapter is not exceeded.

Thank you for your assistance. If you have any questions, please contact the Fire Marshal at (843)248-1720.

RELEASE AND INDEMNIFICATION AGREEMENT
City of Conway

THIS IS A RELEASE OF LIABILITY AND INDEMNIFICATION AGREEMENT. THE SPECIAL EVENTS HOLDER MUST READ CAREFULLY BEFORE SIGNING.

In consideration for being permitted to engage in the following special event on City of Conway property:

Conway Alive Waccamaw Expo

Special Event Holder hereby acknowledges, represents, and agrees as follows:

- A. We understand that activities associated with the above-described special event are or may be dangerous and do or may involve risks of injury, loss, or damage to us and/or to third parties. We further acknowledge that such risks may include but are not limited to bodily injury, personal injury, sickness, disease, death, and property loss or damage, arising from the event.

hah (Special Event Holder initial here)

- B. If required by this paragraph, we agree to require each participant in our special event to execute a release and indemnification agreement for ourselves and for City of Conway on a form approved by the City of Conway.

hah (Special Event Holder initial here)

- C. We agree to procure, keep in force, and pay for special event insurance coverage, from an insurer acceptable to the City of Conway, for the duration of the above referenced event.

hah (Special Event Holder initial here)

- D. By signing this **RELEASE AND INDEMNIFICATION AGREEMENT**, we hereby expressly assume all such risks of injury, loss, or damage to us or to any related third party, arising out of or in any way related to the above-described activities, whether or not caused by the act, omission, negligence, or other fault of the City of Conway, its officers, its employees, or by any other cause.

hah (Special Event Holder initial here)

E. By signing this **RELEASE AND INDEMNIFICATION AGREEMENT**, we further hereby exempt, release, and discharge the City of Conway, its officers, and its employees, from any and all claims, demands, and actions for such injury, loss, or damage to us or to any third party, arising out of or in any way related to the above-described activities, whether or not caused by the act, omission, negligence, or other fault of the City of Conway, its officers, its employees, or by any other cause.

hah (Special Event Holder initial here)

F. We further agree to defend, indemnify and hold harmless the City of Conway, its officers, employees, insurers, and self-insurance pool, from and against all liability, claims, and demands, court costs, and attorneys' fees, including those arising from any third party claim asserted against the City of Conway, its officers, employees, insurers, or self-insurance pool, on account of injury, loss, or damage, including without limitation claims arising from bodily injury, personal injury, sickness, disease, death, property loss or damage, or any other loss of any kind whatsoever, which arise out of or are in any way related to the above-described activities, whether or not caused by our act, omission, negligence, or other fault, or by the act, omission, negligence, or other fault of the City of Conway, its officers, its employees, or by any other cause.

hah (Special Event Holder initial here)

G. By signing this **RELEASE AND INDEMNIFICATION AGREEMENT**, we hereby acknowledge and agree that said agreement extends to all acts, omissions, negligence, or other fault of the City of Conway, its officers, and/or its employees, and that said agreement is intended to be as broad and inclusive as is permitted by the laws of the State of South Carolina. If any portion hereof is held invalid, it is further agreed that the balance shall, notwithstanding, continue in full legal force and effect.

hah (Special Event Holder initial here)

H. We understand and agree that this **RELEASE AND INDEMNIFICATION AGREEMENT** shall be governed by the laws of the State of South Carolina, and that jurisdiction and venue for any suit or cause of action under this agreement shall lie in the courts.

hah (Special Event Holder initial here)

I. This **RELEASE AND INDEMNIFICATION AGREEMENT** shall be effective as of the date or dates of the applicable Special Event, shall continue in full force until our responsibilities hereunder are fully discharged, and shall be binding upon us, our successors, representatives, heirs, executors, assigns, and transferees.

hah (Special Event Holder initial here)

IN WITNESS THEREOF, this **RELEASE AND INDEMNIFICATION AGREEMENT** is executed by the Special Event Holder, acting by and through the undersigned, who represents that he or she is properly authorized to bind the Special Event Holder hereto.

PRINTED NAME OF SPECIAL EVENT PERMIT HOLDER:

Conway Downtown Alive

PRINTED NAME AND TITLE OF PERSON SIGNING ON BEHALF OF SPECIAL EVENTS HOLDER:

NAME: Hillary Howard

TITLE: Executive Director

SIGNATURE: Hillary Howard

DATE: 01/14/2026

FACILITY USE AGREEMENT AND RELEASE/INDEMNIFICATION

City of Conway

- A. In consideration for being permitted to use the facilities of the City of Conway, Conway Downtown Alive

(hereinafter "Applicant") agrees to indemnify and hold harmless, City of Conway its officers, employees, insurers, and SCMIT/SCMIRF Insurance Programs, from and against all liability, claims, and demands, which are incurred, made, or brought by any person or entity, on account of damage, loss, or injury, including without limitation claims arising from property loss or damage, bodily injury, personal injury, sickness, disease, death, or any other loss of any kind whatsoever, which arise out of or are in any manner connected with the use of the facilities, whether any such liability, claims, and demands result from the act, omission, negligence, or other fault on the part of the City of Conway, its officers, or its employees, or from any other cause whatsoever.

- B. By signing below, Applicant agrees that, in the event of any damage, loss, or injury to the facilities or to any property or equipment therein, the City of Conway may require reimbursement for the full amount of such damage, loss, or injury and all costs associated therewith upon billing by City of Conway.

- C. In addition, in consideration for being permitting to use the facilities, Applicant, on behalf of itself, and its officers, employees, members, and invitees, hereby expressly exempts and releases the City of Conway, its officers, employees, insurers, and self-insurance pool, from and against all liability, claims, and demands, on account of injury, loss, or damage, including without limitation claims arising from property loss or damage, bodily injury, personal injury, sickness, disease, or death, that Applicant may incur as a result of such use, whether any such liability, claims, and demands result from the act, omission, negligence, or other fault on the part of the City of Conway, its officers, or its employees, or from any other cause whatsoever.

Conway Downtown Alive

NAME OF PERSON/ORGANIZATION

Hillary Howard

SIGNATURE OF PERSON/ORGANIZATION REPRESENTATIVE

01/14/2026

DATE

[FOR OFFICE USE ONLY]

Special Event: Waccamaw Expo 2026 Date(s) March 26-28 2026

Sponsoring Organization: Conway Downtown Alive

Application completed by: Hilary Howard Contact No.: 843 248-6260 Date: January 14 2026

☒ Recommend approval	☐ Recommend disapproval
<u>1/16/2026</u> Date	
Police Department	
Fees or charges associated with this event: <u>see attached</u>	
Special Conditions/Comments: <u>see attached</u>	
<u> </u>	
<u> </u>	
Police Officers	\$50.00/hour per officer 5 hour min

☒ Recommend approval	☐ Recommend disapproval
<u>1/16/2026</u> Date	
Fire Department	
Fees or charges associated with this event: <u>see attached</u>	
Special Conditions/Comments: <u>see attached</u>	
<u> </u>	
<u> </u>	
Fire Inspector/Fire-Rescue Officers \$50.00/hour per officer 4 hour, 2 personnel min \$300 apparatus fee	

☒ Recommend approval	☐ Recommend disapproval
<u>1/16/2026</u> Date	
Public Works Department	
Fees or charges associated with this event: <u>see attached</u>	
Special Conditions/Comments: <u>see attached</u>	
<u> </u>	
<u> </u>	
<u>Residential & Non Residential Street Closure</u>	
Barricades	\$20.00 each
Public Works Employee	\$25.00/hour per employee

[FOR OFFICE USE ONLY]

☐ Recommend approval	☐ Recommend disapproval
Parks & Rec. Department	Date
Fees or charges associated with this event: _____	
Special Conditions/Comments: _____	

Parks & Rec. Employees	\$25.00/hour per employee

☒ Recommend approval	☐ Recommend disapproval
Planning Department	1/16/2026 Date
Special Conditions/Comments: See attached	

☐ License(s) obtained for _____ vendor(s)	☐ License(s) not required
Has general liability and liquor liability insurance (if applicable) listing the City of Conway as additional insured been secured? ☐ Yes ☐ No	
Business License Department	Date
Special Conditions/Comments: _____	

Business License Fee	\$5.00/per vendor

CERTIFICATE OF LIABILITY INSURANCE



March 27-28, 2026

Special Event Permit Additional Information

Street & Area Closures:

4:00 AM Thursday, March 26-11:00 AM Sunday, March 29
City Hall Parking Lot, Town Green, Town Green Parking Lot

3 PM Friday, March 27-7 PM Saturday, March 28
Laurel Street from Scarborough Alley to Laurel Street Fountain
Peanut Warehouse Rear Parking Lot
Peanut Road

Additional Requests:

27,000 gallons of water from fire hydrant on-site to fill DockDogs pool-March 26-29, 2026 at Town Green
Draining of 27,000 gallons of water into existing basin to empty DockDogs pool-March 28-29, 2026
Rolling trash carts at 200 Laurel Street and 110 Laurel Street
Two sets of bleachers on Town Green-March 26-28, 2026
Bicycle Barricades to create enclosed area behind Dock Dogs pool for Dog Town and staging
Power pull at 200 Laurel Street, 110 Laurel Street, and parking lot behind Peanut Warehouse
Picnic Tables 200 Laurel Street
Barricades for road closure on Laurel Street March 27-28, 2026

See photos below for DockDogs set-up examples. Please note that due to the change of the parking lot surface area, the Dock Dogs Pool will be erected on the Town Green.





FOOD
TRUCKS

SCARBOROUGH ALLEY

MAIN ST

KINGSTON ST

DOGTOWN

THIRD AVE

TOWN GREEN
DOCK DOGS
MARCH 26-28

VENDORS
& BOATS

VENDORS
& BOATS

PROGRAMS
MARCH 28

VENDORS
PROGRAMS
& BOATS

SECOND AVE

ELM ST

VENDORS
& BOATS

DATE: FEBRUARY 17, 2026
ITEM: III.E.

ISSUE:

Request from Coastal Race Productions and Run CRP to host Halloween Hustle – October 3, 2026 from 7:00 a.m. to 10:30 a.m.

BACKGROUND:

Coastal Race Productions and Run CRP will partner with Conway Parks and Recreation to host 3 runs thru downtown and surrounding areas.

- 5k will start at 8:30 a.m. (see attached map for route)
- 10k will start at 7:00 a.m. (see attached map for route)
- 1 mile will start at 9:30 a.m. (see attached map for route)

Coastal Race Productions is requesting to close down the marina parking lot on September 30th and park their race trailers and box trucks at the end of Elm Street on October 1. Portable toilets will be located at 2 water stops (location to be determined).

There is a request for roll carts, police assistance, and fire assistance. There will also be a 10x10 tent used.

The permit holder will host an after party that will include BBQ and a beer garden (if proper paperwork is secured).

Approximately 2000 participants are expected and 6 vendors.

RECOMMENDATION:

Approve the special event permit as presented.



RECEIVED
11/15/2024

October 3, 2026

We were thrilled with the turn out for both our first and second year events and are excited to start planning for 2026. With a proposed date of October 3, 2026. We would continue with the 10K, 5K & 1 Mile plus the ability to run all three and complete the challenge. The road race portion would be complete by 10:30am and the after party by 11:00. Attached you will find our routes including turn by turn instructions of all three courses and our proposed site plan.

Special Requests:

- The ability to park our trailers and box truck beginning Wednesday 9/30 at the marina parking lot.
- The ability to place 1 to 2 portable toilets at each of the 2 water stops along the route.
- Host after party within the city marina parking lot
 - Serving BBQ (premade off-site and served on-site).
 - Beer Garden (we will secure ABC permit).
- The ability to place 8 to 10, 24 x 24 inch "It's Race Week" signs at key locations 2 weeks prior to the event.
- The ability to close down the Marina parking lot Thursday night in order to begin set up and stage our after party area including barricades on Friday morning 10/2.
- Stage cones in stacks off of roads at intersections on Friday 10/2
- BBQ, Beer, Portajons Delivery on Friday 10/2.



For Office Use Only
Permit Application

- ☐ Approved
☐ Disapproved
☐ Charges in the amount of: _____

Signature

Date

SPECIAL EVENT PERMIT APPLICATION

**APPLICATION FOR PERMIT MUST BE FILED NOT LESS THAN 30 DAYS IN ADVANCE
OF THE PROPOSED ACTIVITY.**

According to the Code of Ordinances of the City of Conway, it is unlawful for any person to hold, manage, conduct, aid, participate in, form, start or carry on any parade or public meeting or assembly or picketing, in or upon any public street, park or other public grounds in the city unless and until a permit to conduct such meeting, assembly, parade or picketing has been obtained. A special event application is also required for events held on private property within the city that may expect a large crowd, impact on the neighborhood and/or city services, or require other permits such as zoning, signage, etc. Charges may apply to each application. The City of Conway, at its discretion, may choose to waive any fees and charges for special events held by bonafide, non-profit organizations.

An aerial sketch/layout of all outdoor events shall be provided with the application. For parades, this shall include blocked roadways, etc. A copy of any public advertisements shall also be included, if available at the time of the application.

Event Information

Name of the event: **Halloween Hustle**

What is the location or route of the activity? **(Please attach any necessary route maps.)**

10K, 5K & 1 Mile Routes attached

What is the proposed date(s) of the activity? **Oct 3, 2026** Proposed Times **7:00am** to **10:30am**

Describe the event in detail **Road Race providing a fun, healthy event for families with a focus on Sports Tourism.**

List any streets that may need to be closed, included the date(s) and times in which they will be closed and re-opened: **Attached**

What is the approximate number of participants? **2000**

What is the approximate number of vendors? **4 to 6**

Any vendors at this event who do not have 501(c)(3) nonprofit status are required to purchase a City of Conway business license.

Organization Information

Name of organization: Coastal Race Productions LLC & RunCRP

Address of organization: PO Box 6333 Ocean Isle Beach NC 28469

Telephone number of organization: 910-713-3331

Are you conducting the activity on behalf of an organization? YES ☒ NO ☐

Is your organization a non-profit 501(c)(3) organization? YES ☒ NO ☐

Permit Holder Information

Name of permit holder: JoJo Terragna

Address of permit holder: 1946 Indigo Cove Way

City: Calabash State: NC Zip: 28469

Telephone number of permit holder: 910-713-3331 Email jojo@coastalraceproductions.com

Event Point of Contact Information (if different than permit holder)

Name: David Hutnik

Telephone: 910-363-7776

Email: david@coastalraceproductions.com

Affiliation w/Event: Race Director

Public Safety Considerations

The City of Conway Police and/or Fire Departments may require additional fees for coverage, inspections, or any combination thereof.

The following circumstances **will** require fire department staffing on-site for which fees will be required to be paid prior to the event:

- Events that will have a net (total throughout event) attendance of 5,000 persons or more
- Events in facilities that will exceed the occupancy rating (parameters will be developed on a case-by-case basis)
- Pyrotechnic and fireworks special events
- Events in which there is a high hazard or potential risk to the attendees or public

Are you requesting on-site police coverage? YES ☒ NO ☐

Are you requesting fire/medical on-site coverage? YES ☒ NO ☐

Check all that may apply below (sound ordinance will apply):

Live band(s)		Loudspeakers	☒	Amplifiers	
--------------	--	--------------	-------------------------------------	------------	--

Police and Fire Coverage Fees:

- \$50/hour (minimum of 4 hours fire; 5 hours police)
- \$300 fire apparatus fee

Check all that apply below. Any selected may trigger an on-site inspection by the Fire Department:

None (skip this section)	✓	Outdoor Assembly		Indoor Assembly	
Air Supported Structures (inflatables)	✓	Concert		Stage(s)	
Carnival/Fair		Mobile Food (truck/trailer/cart)		Tents	✓
Temporary Cooking Booth (LPG)	✓	Temporary Structures		Generators	
Bonfire		Open Flame/Torches		Pyrotechnics	
Fireworks Displays		Amusement Buildings		Other	

If you have air supported structures, how many will you have? 0

If you have tents, how many will you have? 4 What is the size of the largest tent? 10ft

If you have mobile food trucks/trailers/carts, how many are you going to have? 0

If you have temporary cooking booths, how many are you going to have? 1-BBQ

Provide a list of the following information for mobile food trucks/trailers/carts and/or temporary cooking booths:

- Vendor Name(s)
- Type(s) (booth, truck, trailer, cart)
- Phone Number for Vendor(s)
- Point of Contact for each vendor

Additional Considerations

Will supplementary utility services such as power and water be used in addition to what is available in the area?

YES ☐ NO ☒

If yes, describe in detail the specific utilities and location(s). Any additional utilities must be provided by the applicant

Have you requested or obtained a permit from any other jurisdiction (city or county) within which the activity shall commence, terminated, or occur in part? YES ☐ NO ☒ yes, please provide a copy(ies).

How do you plan to remove garbage? Request use of Rollout Carts

Will existing restroom facilities be adequate? YES ☐ NO ☒

If no, describe plans to augment available sanitary facilities: _____

We will provide portable Toilets 1 per 75 participants

Please include any additional information that may be useful: _____

Attached

Alcohol Sales at Special Event

Procedures and logistics for serving alcoholic beverages must be submitted with the special event permit application. These should include but are not limited to location, hours of operation, locations with site diagram and security procedures. Consideration will also be given as to whether alcohol sales would create potentially dangerous situations due to the nature of the event. Permission to serve or consume alcohol is granted by the city as part of the special event permit; however, such service must comply with all South Carolina Alcohol Beverage Control Commission regulations and the City of Conway Special Events Alcohol Control Policy. The City reserves the right to revoke the permit or require the applicant to discontinue alcohol sales whenever the consumption of alcohol by participants becomes excessive or when, over a period of time, participants regularly demonstrate obnoxious, loud, or other inappropriate behavior following events.

Will alcoholic beverages be served? YES ☒ NO ☐

Will alcoholic beverages be sold? YES ☒ NO ☐

If yes, SC ABC permit required.

Hard alcohol (liquor) may not be present, possessed, consumed and/or served at any permitted special event. Section 7-2-2 (b) (1) states "*The sale of alcohol within the designated area of a special event is limited to beer and wine.*" No glass containers or bottles are permitted.

Vendors: Please list any vendors, including applicant, for whom you are requesting permission to sell alcohol and the proposed locations for sales.

RunCRP

Black Dog Running

Coastal Brews Coffee

The following does not apply to restaurants:

Have you applied for a South Carolina temporary ABC Permit? YES ☐ NO ☒

Name of insurance company providing general liability with liquor liability insurance for the event naming the City of Conway as additional insured (a copy of the Certificate of Insurance must be provided): _____

Nicholas Hill Group

ACKNOWLEDGMENT: *I acknowledge that I have read and do fully understand the Special Event Permit Application including required inspections, fees, and Alcohol Control Policy attached to this application and agree to comply with the guideline set forth herein.*

Applicant's Signature: _____

Date: _____



SPECIAL EVENTS ALCOHOL CONTROL POLICY

All event organizers and restaurants are required to be familiar with and follow the guidelines when participating in special events where alcoholic beverages will be served. It is understood that responsibility for fully meeting these requirements during an event rests with the entity, vendor, or restaurant serving alcohol within the special event area. Under City ordinance, any time a Special Event permit is approved, beer and/or wine may be openly carried within the area that the event is being held. As such, it is vital that the holder of the Special Event permit is aware of and understands the following:

1. Hard alcohol (liquor) may not be present, possessed, consumed and/or served at any permitted special event. *Section 7-2-2 (b) (1) states "The sale of alcohol within the designated area of a special event is limited to beer and wine."*
2. Public consumption of alcohol as authorized by the special event permit shall not begin before the designated event start time. There shall be no open containers of alcohol allowed in the event area before this designated time. Any vendor or participating restaurants must discontinue alcohol distribution for public consumption within the event area at a minimum of 30 minutes prior to the end of the event. All alcohol must be cleared from the event site at the end of the event.
3. At no other time may alcohol be present, possessed, served, and consumed in the public area.
4. It is a violation to permit or knowingly allow a person under 21 years of age to purchase or possess or consume liquor, beer or wine. The seller of beer or wine must clearly display signs stating that the purchase or possession of beer or wine by a person under the age of 21 is unlawful.
5. Signs informing participants that alcohol beverages are prohibited on City streets and sidewalks beyond the boundaries of the designated special event area will be posted by the City.
6. No alcohol may be in served in glass containers or bottles.
7. It is a violation to sell liquor, beer or wine to an intoxicated person. Any person in an intoxicated condition, even if of legal age, must be denied alcohol.

If your event is proposed to be located on property owned by the City of Conway, approval of this permit shall grant the license and permission to use said property. The approval of the City Administrator or City Council shall be required for such use.

If your event is to be held on property not owned by the sponsoring organization, the property owner must complete the following:

PROPERTY OWNER PERMISSION LETTER

I (we), being the property owner of _____ (address),
give permission for _____ to hold a special event on
my/our property.

Date

Signature

Witness

Address

Printed Witness Name

Telephone Number

INSURANCE REQUIREMENTS FOR SPECIAL EVENTS HELD ON CITY PROPERTY

The event must maintain general liability insurance and, if beer and wine is to be served, liquor liability insurance for the event for which the permit has been obtained. The City of Conway shall be named as an additional insured on the policy with respect to claims arising from the use of property owned or operated by the city and the issuing of the permit by the city. The applicant shall submit a Certificate of Insurance verifying the following minimum coverage and specifically identifying the City of Conway as an additional insured. **Your permit will not be issued if the Certificate of Insurance has not been received prior to event.** The City of Conway must be listed as the "Certificate Holder" on the Certificate of Insurance.

Each Occurrence	1,000,000
Personal Injury	1,000,000
General Aggregate	2,000,000

.....
Application completed by:

Contact No.:

Date:

Special events permits are granted in accordance with the City of Conway Code of Ordinances and in no way imply assumption of liability by the City of Conway. Your organization is fully responsible for complying with all applicable laws and safety procedures. A permit does not authorize you to enter upon private property or to, in any way, hinder or obstruct pedestrian or vehicular traffic. The City of Conway reserves the right to modify the conditions of this permit or to cancel it entirely if it is deemed appropriate.

Please return completed permit application to:

City of Conway Administration
Attn: Special Event Permits
P.O. Drawer 1075
Conway, SC 29528-1075

FIRE DEPARTMENT OUTDOOR VENDOR/EVENT GUIDELINES

The City of Conway Fire Rescue has implemented the following guidelines that must be followed while vendors are participating in outdoor events. The City Fire Marshal will be performing inspections of vendors prior to the beginning of the event.

- All Tents 400 square ft. or larger, will not be allowed without prior approval from the Fire Marshal.
- Cooking will not be allowed under any **Tents**, unless prior approval is obtained from the Fire Marshal.
- A 12 foot walkway must be placed between every fifth tent/vendor.
- All Membrane/Air Inflated Structures (Inflatable Structures/Moonwalks/Bounce Houses) must meet the NFPA 701 Standard and have a permanently affixed label identifying the material/fabric and size of the structure.
- All Tents and Membrane/Air Inflated Structures shall be properly anchored as to withstand the elements of weather and to prevent collapse.
- "NO SMOKING" is allowed under any tents regardless of size.
- All outside cooking that will be producing any grease laden vapors (Deep fat fryers) must have a **Class K Fire Extinguisher**. Surface cooking equipment must have a minimum of a **5 lb. ABC Fire Extinguisher**. Surface frying will not be allowed. (Ex: a cooking vat on top of a stove containing more than one inch of cooking oil or grease.)
- Venders that are only "warming" food must have a minimum of a **5 lb. ABC Fire Extinguisher**.
- All self- contained vendors (Ex: Portable kitchen that is in a trailer/food truck) must have a hood system and meet the NFPA 96 standard.
- All LP Gas cylinders must be a minimum of 10 feet from any cooking appliance and secured in an upright position.
- Extension cords must be commercial grade. (Minimum 12 gauge and must have a ground.) All extension cords must be secured so as to not create a trip or fall hazard. The use of multi-plug adapters is allowed as long as the amperage rating of the adapter is not exceeded.

Thank you for your assistance. If you have any questions, please contact the Fire Marshal at (843)248-1720.

RELEASE AND INDEMNIFICATION AGREEMENT
City of Conway

THIS IS A RELEASE OF LIABILITY AND INDEMNIFICATION AGREEMENT. THE SPECIAL EVENTS HOLDER MUST READ CAREFULLY BEFORE SIGNING.

In consideration for being permitted to engage in the following special event on City of Conway property:

City Marina Parking Lot, Riverwalk Area, Grass lot for parking, end of Elm Street and other lots for parking.

Special Event Holder hereby acknowledges, represents, and agrees as follows:

- A. We understand that activities associated with the above-described special event are or may be dangerous and do or may involve risks of injury, loss, or damage to us and/or to third parties. We further acknowledge that such risks may include but are not limited to bodily injury, personal injury, sickness, disease, death, and property loss or damage, arising from the event.

 JT (Special Event Holder initial here)

- B. If required by this paragraph, we agree to require each participant in our special event to execute a release and indemnification agreement for ourselves and for City of Conway on a form approved by the City of Conway.

 JT (Special Event Holder initial here)

- C. We agree to procure, keep in force, and pay for special event insurance coverage, from an insurer acceptable to the City of Conway, for the duration of the above referenced event.

 JT (Special Event Holder initial here)

- D. By signing this **RELEASE AND INDEMNIFICATION AGREEMENT**, we hereby expressly assume all such risks of injury, loss, or damage to us or to any related third party, arising out of or in any way related to the above-described activities, whether or not caused by the act, omission, negligence, or other fault of the City of Conway, its officers, its employees, or by any other cause.

 JT (Special Event Holder initial here)

E. By signing this **RELEASE AND INDEMNIFICATION AGREEMENT**, we further hereby exempt, release, and discharge the City of Conway, its officers, and its employees, from any and all claims, demands, and actions for such injury, loss, or damage to us or to any third party, arising out of or in any way related to the above-described activities, whether or not caused by the act, omission, negligence, or other fault of the City of Conway, its officers, its employees, or by any other cause.

 JT (**Special Event Holder initial here**)

F. We further agree to defend, indemnify and hold harmless the City of Conway, its officers, employees, insurers, and self-insurance pool, from and against all liability, claims, and demands, court costs, and attorneys' fees, including those arising from any third party claim asserted against the City of Conway, its officers, employees, insurers, or self-insurance pool, on account of injury, loss, or damage, including without limitation claims arising from bodily injury, personal injury, sickness, disease, death, property loss or damage, or any other loss of any kind whatsoever, which arise out of or are in any way related to the above-described activities, whether or not caused by our act, omission, negligence, or other fault, or by the act, omission, negligence, or other fault of the City of Conway, its officers, its employees, or by any other cause.

 JT (**Special Event Holder initial here**)

G. By signing this **RELEASE AND INDEMNIFICATION AGREEMENT**, we hereby acknowledge and agree that said agreement extends to all acts, omissions, negligence, or other fault of the City of Conway, its officers, and/or its employees, and that said agreement is intended to be as broad and inclusive as is permitted by the laws of the State of South Carolina. If any portion hereof is held invalid, it is further agreed that the balance shall, notwithstanding, continue in full legal force and effect.

 JT (**Special Event Holder initial here**)

H. We understand and agree that this **RELEASE AND INDEMNIFICATION AGREEMENT** shall be governed by the laws of the State of South Carolina, and that jurisdiction and venue for any suit or cause of action under this agreement shall lie in the courts.

 JT (**Special Event Holder initial here**)

- I. This **RELEASE AND INDEMNIFICATION AGREEMENT** shall be effective as of the date or dates of the applicable Special Event, shall continue in full force until our responsibilities hereunder are fully discharged, and shall be binding upon us, our successors, representatives, heirs, executors, assigns, and transferees.

JT

(Special Event Holder initial here)

IN WITNESS THEREOF, this **RELEASE AND INDEMNIFICATION AGREEMENT** is executed by the Special Event Holder, acting by and through the undersigned, who represents that he or she is properly authorized to bind the Special Event Holder hereto.

PRINTED NAME OF SPECIAL EVENT PERMIT HOLDER:

Coastal Race Productions LLC

PRINTED NAME AND TITLE OF PERSON SIGNING ON BEHALF OF SPECIAL EVENTS HOLDER:

NAME: **JoJo Terragna**

TITLE: **Race Director**

SIGNATURE:

DATE: **1-14-2026**

FACILITY USE AGREEMENT AND RELEASE/INDEMNIFICATION

City of Conway

- A. In consideration for being permitted to use the facilities of the City of Conway, City Marina parking lot, Riverwalk area, grass lot for parking, end of Elm Street and other lots (hereinafter "Applicant") agrees to indemnify and hold harmless, City of Conway its officers, employees, insurers, and SCMIT/SCMIRF Insurance Programs, from and against all liability, claims, and demands, which are incurred, made, or brought by any person or entity, on account of damage, loss, or injury, including without limitation claims arising from property loss or damage, bodily injury, personal injury, sickness, disease, death, or any other loss of any kind whatsoever, which arise out of or are in any manner connected with the use of the facilities, whether any such liability, claims, and demands result from the act, omission, negligence, or other fault on the part of the City of Conway, its officers, or its employees, or from any other cause whatsoever.
- B. By signing below, Applicant agrees that, in the event of any damage, loss, or injury to the facilities or to any property or equipment therein, the City of Conway may require reimbursement for the full amount of such damage, loss, or injury and all costs associated therewith upon billing by City of Conway.
- C. In addition, in consideration for being permitting to use the facilities, Applicant, on behalf of itself, and its officers, employees, members, and invitees, hereby expressly exempts and releases the City of Conway, its officers, employees, insurers, and self-insurance pool, from and against all liability, claims, and demands, on account of injury, loss, or damage, including without limitation claims arising from property loss or damage, bodily injury, personal injury, sickness, disease, or death, that Applicant may incur as a result of such use, whether any such liability, claims, and demands result from the act, omission, negligence, or other fault on the part of the City of Conway, its officers, or its employees, or from any other cause whatsoever.

JoJo Terragna - Coastal Race Productions LLC

NAME OF PERSON/ORGANIZATION

SIGNATURE OF PERSON/ORGANIZATION REPRESENTATIVE

1-14-2026

DATE

[FOR OFFICE USE ONLY]

Special Event: Halloween Hustle Date(s) October 3 2026

Sponsoring Organization: Coastal Race Productions

Application completed by: JoJo Terragna Contact No.: 910-713-3331 Date: January 14 2026

☒ Recommend approval	☐ Recommend disapproval
<u>1/16/2026</u> Date	
Police Department	
Fees or charges associated with this event: <u>see attached</u>	
Special Conditions/Comments: <u>see attached</u>	
<u> </u>	
<u> </u>	
Police Officers	\$50.00/hour per officer 5 hour min

☒ Recommend approval	☐ Recommend disapproval
<u>1/16/2026</u> Date	
Fire Department	
Fees or charges associated with this event: <u>see attached</u>	
Special Conditions/Comments: <u>see attached</u>	
<u> </u>	
<u> </u>	
Fire Inspector/Fire-Rescue Officers \$50.00/hour per officer 4 hour, 2 personnel min \$300 apparatus fee	

☒ Recommend approval	☐ Recommend disapproval
<u>1/16/2026</u> Date	
Public Works Department	
Fees or charges associated with this event: <u>see attached</u>	
Special Conditions/Comments: <u>see attached</u>	
<u> </u>	
<u> </u>	
<u>Residential & Non Residential Street Closure</u>	
Barricades	\$20.00 each
Public Works Employee	\$25.00/hour per employee

[FOR OFFICE USE ONLY]

☐ Recommend approval	☐ Recommend disapproval

Parks & Rec. Department	Date
Fees or charges associated with this event: _____	
Special Conditions/Comments: _____	

Parks & Rec. Employees	\$25.00/hour per employee

☒ Recommend approval	☐ Recommend disapproval

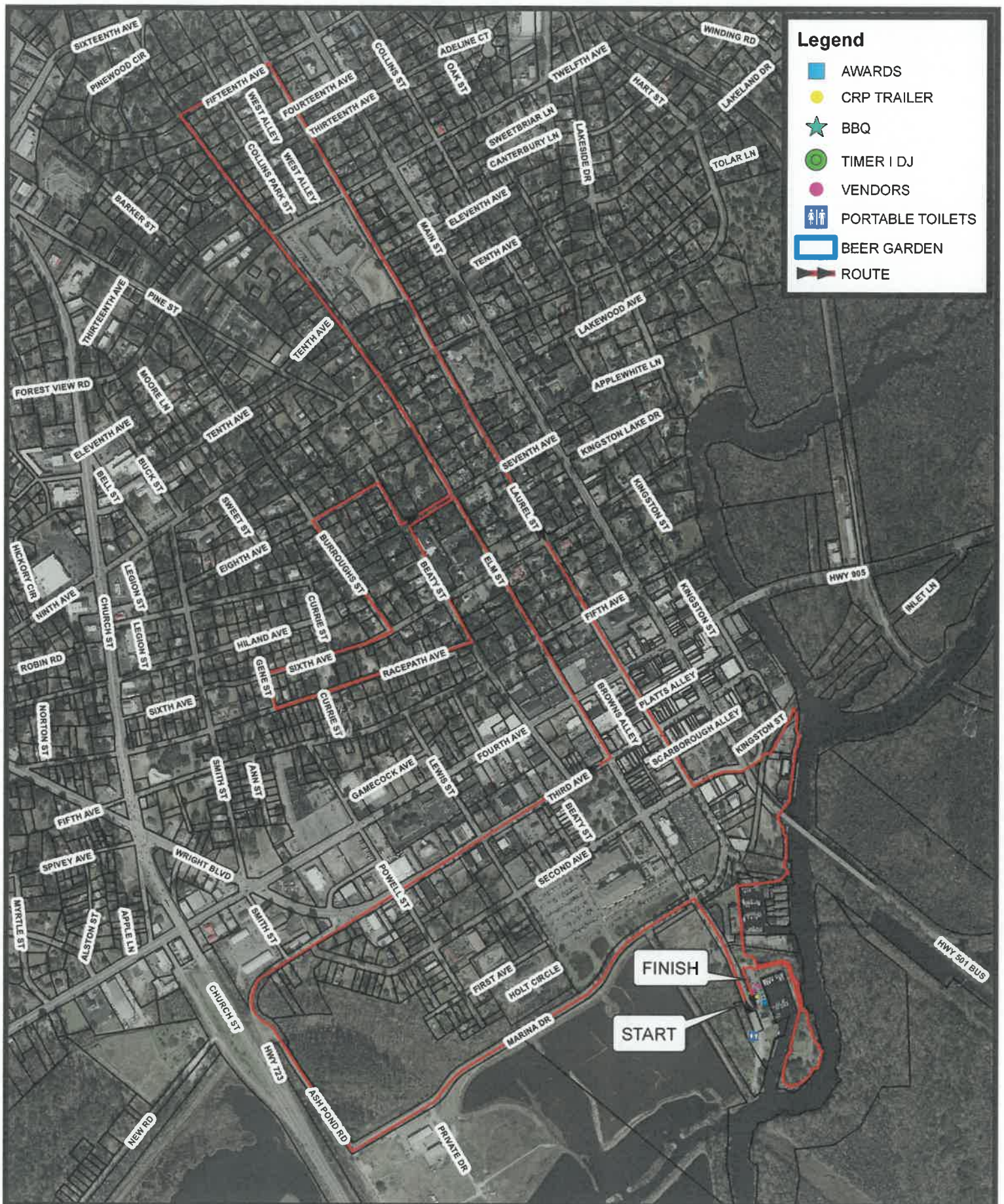
Planning Department	Date
Special Conditions/Comments: _____	

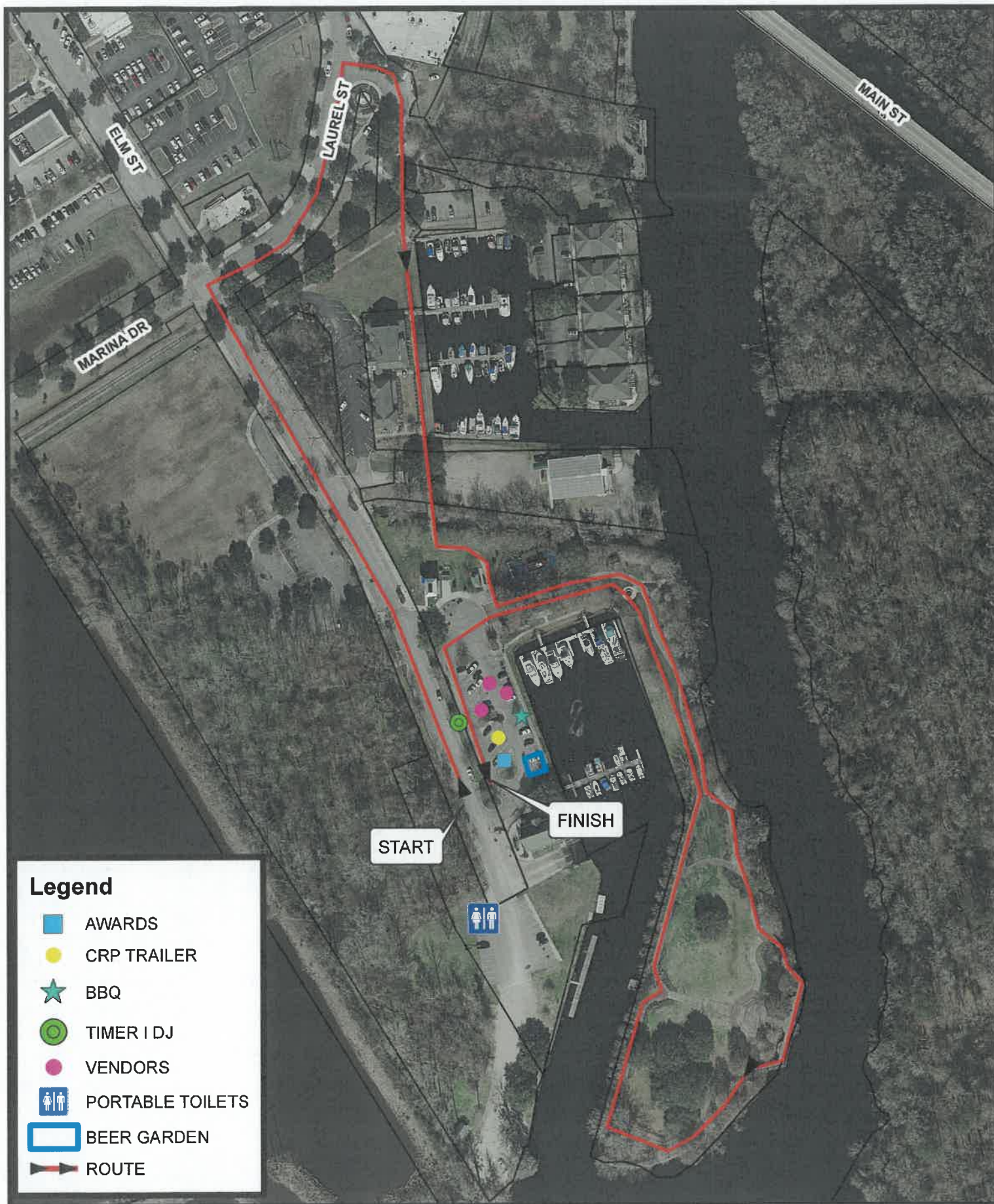
☐ License(s) obtained for _____ vendor(s)	☐ License(s) not required
Has general liability and liquor liability insurance (if applicable) listing the City of Conway as additional insured been secured? ☐ Yes ☐ No	

Business License Department	Date
Special Conditions/Comments: _____	

Business License Fee	\$5.00/per vendor







DATE: FEBRUARY 17, 2026
ITEM: III.F.

ISSUE:

Acceptance of a bid for purchase of one Torchmate 4000 Series Plasma CNC machine for the Construction Services Department

BACKGROUND:

Funds were included in Construction Services FY 2025-26 budget for the purchase of the Plasma CNC machine. The City budgeted \$35,000. The remaining \$919.50 will come from Construction Services Small Tools and Equipment account.

The City received the following bids:

2026 Torchmate 4000 Series Plasma CNC machine -

- *Lincoln Electric* \$ 35,919.50

RECOMMENDATION:

Accept the bid as shown above



2026 Torchmate 4000 Series

prices are in US Dollars

Quote #: MC-4505_80-29527

Date 01/20/2026

Quote Valid for 30 Days

MACHINE	MACHINE SIZE	POWER SUPPLY	QTY	PRICE
Half Sheet Capacity Machine ✓	4400 (4'x4')	FlexCut 80 ✓	1	\$30,499.00
Full Sheet Capacity Machine	4505 (5'x5') ✓	FlexCut 125		
Single or Three phase power, 50/60hz, 208-575vAC		P/N	LECS-080-4505-00	
\$ 0.00				MACHINE(s) TOTAL \$ 30,499.00
ACCESSORIES, CONSUMABLES AND SOFTWARE OPTIONS				
Lincoln Electric PlateGuard™ Water Table Additive (5 Gallons)	TMS-310-0001-00	1	\$ 241.50	
Pneumatic Plate Marking Tool (Assembly required)	TMS-203-1000-24		\$ 0.00	
Plasma Cutting Accessory Kit, Advanced	TMS-101-1000-33		\$ 0.00	
Flexcut Consumable Starter Kit	TMS-010-0001-17		\$ 0.00	
Torchmate CAD CAM v10 Full with Nesting and Vectorization	TMS-106-0011-20	1	\$ 1,529.00	
Onboard VMD Nest, with DXF & DWG Import capability	TMS-103-0001-10		\$ 0.00	
Torchmate CAD CAM Additional License	TMS-106-0011-22		\$ 0.00	
Two Stage Air filtration, moisture separation and Dryer assembly	TMS-214-0000-00		\$ 0.00	
Universal Shelf for tools, mouse and keyboard	TMS-182-3003-01		\$ 0.00	
Shelf for FlexCut Plasma Cutter	TMS-182-3007-00		\$ 0.00	
Bottle Opener	TMS-182-3015-01		\$ 0.00	
Package of single hooks for Pegboards	TMS-182-3016-00		\$ 0.00	
6 pack Bottle, or Tool Holder	TMS-182-3004-01		\$ 0.00	
4.5" Angle Grinder Holder for Pegboards	TMS-182-3006-00		\$ 0.00	
4.5" Disc holder for Grinding Wheels/Flap Discs for Pegboards	TMS-182-3005-00		\$ 0.00	
\$ 0.00				Accessories Total \$ 1,770.50
WARRANTY & TRAINING OPTIONS				
Gold - 2 Year Extended Warranty	TMS-010-0001-24		\$ 0.00	
Torchmate Success Package Bronze ☒	TMS-010-0001-14	1	\$ 1,050.00	
Torchmate Academy Online Learning Portal, 4x00 Machine and TMCAD	TMS-010-0001-06		\$ 0.00	
TMCAD Basic Project Book Classroom Series	TMS-106-0010-10		\$ 0.00	
Torchmate Student Curriculum	TMS-010-0001-08		\$ 0.00	
Torchmate Teacher Answer Key for Student Curriculum	TMS-010-0001-09		\$ 0.00	
Onsite Training, 2 Days	TMS-010-0003-02		\$ 0.00	
In-house or Regional Training, Location:	TMS-010-0002-01		\$ 0.00	
\$ 0.00				Training Total \$ 1,050.00
CUSTOMER NAME City of Conway, SC-Public Works Facility		Subtotal		\$ 33,319.50
EMAIL khardee@conwaysc.gov		Shipping Total		\$ 2,600.00
SHIPPING ADDRESS:		Tax		\$ 0.00
2940 Jerry Barnhill Boulevard Conway, South Carolina 29527		Grand Total		\$ 35,919.50
Forklift Onsite? Yes ☒ No ☐		I have been made aware of my training options, I have received the terms and conditions		
PO #		Customer Signature		
Sales Associate Maria Clark Inside Cutting Systems				
TSR				
Distributor				

This quote is valid for 30 days, and is governed by Seller's Terms and Conditions of Sale attached hereto and/or located at the website indicated below. Any reference to Buyer's request for quote incorporates only the technical information described therein. ALL TERMS AND CONDITIONS IN BUYER'S REQUEST FOR PROPOSAL/QUOTE ARE DEEMED MATERIAL ALTERATIONS AND ARE HEREBY EXPRESSLY REJECTED. Seller's Website: <https://torchmate.com/terms-and-conditions>

January 20, 2026

CITY OF CONWAY
CITY COUNCIL MEETING
CONWAY CITY HALL
229 MAIN STREET, CONWAY
TUESDAY, JANUARY 20, 2026

PRESENT: Mayor Barbara Jo Blain, Mayor Pro Tem Beth Helms, Amanda Butler, William Goldfinch, Justin Jordan. **ABSENT:** Julie Hardwick, Larry White – both attending HLAD.

STAFF: Adam Emrick, City Administrator; Mary Catherine Hyman, Deputy City Administrator; John Rogers, Deputy City Administrator; June Wood, Public Information Officer; Jeff Leveille, Technology Services Director; Jason Perzan, Fire Chief; Reggie Jenerette, Solid Waste Director; Robert Cooper, Construction Services Director; Lynn Smith, Human Resource Director; Ted Dudley, Public Utilities Director; Jessica Hucks, Planning and Development Director; Brandon Harrelson, Public Works Director; Dale Long, Police Chief; Timmy Williams, Hospitality and Beautification Director; Kayla Fleming, Municipal Judge; Ashley Smith, Parks and Recreation Director; Kelli Thomas, Deputy PIO; Bobby Wallace, Fleet Maintenance Director; Allison Williams, Finance Director; and Alicia Shelley, City Clerk.

OTHERS: There were approximately 20 others in attendance.

CALL TO ORDER: Mayor Blain called the meeting to order.

INVOCATION/PLEDGE OF ALLEGIANCE: Helms gave the invocation and led the Pledge of Allegiance.

The requirements for posting notice of this meeting under South Carolina's Freedom of Information Act (FOIA) were met.

CONSENT AGENDA:

- A. Final Reading of Ordinance #ZA2025-09-02 (C) to annex approximately 107.75 +/- acres of property located at or near the corner of Cultra Rd and Oak Street (PIN 325-00-00-0011).**
- B. Final Reading of Ordinance #ZA2025-09-02 (F) to rezone approximately 107.75 +/- acres of property located at or near the corner of Cultra Rd. and Oak Street (PIN 325-00-00-0011) from the Horry County Commercial Forest Agriculture (CFA) district to the City of Conway Medium Density Residential (R-2) district and the Conservation Preservation (CP) district upon annexation into the City of Conway.**
- C. Final Reading of Ordinance #ZA2026-01-20 (B) to annex approximately 0.15 acres of property located at 182 Quail Run (PIN 383-09-04-0040).**
- D. Final Reading of Ordinance #ZA2026-01-20 (F) to rezone approximately 0.15 +/- acres of property located at 182 Quail Run (PIN 383-09-04-0040), from Horry**

County Residential, no mobile homes allowed (SF10) district to the City of Conway Low/Medium-Density Residential (R-1) district.

- E. Final Reading of Ordinance #ZA2026-01-20 (E) to annex approximately 0.37+/- acres of property located at 801 Donald Street (PIN 369-12-04-0002).**
- F. Final Reading of Ordinance #ZA2026-01-20 (G) to rezone approximately 0.37+/- acres of property located at 801 Donald Street (PIN 369-12-04-0002), from Horry County Residential, no mobile homes allowed (SF10) district to the City of Conway Low/Medium-Density Residential (R-1) district.**
- G. Final Reading of Ordinance #ZA2026-01-20 (C) to annex approximately 0.4+/- acres of property located at 5007 Presbyterian Drive (PIN 383-08-02-0010).**
- H. Final Reading of Ordinance #ZA2026-01-20 (H) to rezone approximately 0.4+/- acres of property located at 5007 Presbyterian Drive (PIN 383-08-02-0010), from Horry County Residential, no mobile homes allowed (SF10) district to the City of Conway Low/Medium-Density Residential (R-1) district.**
- I. Final Reading of Ordinance #ZA2026-01-20 (I) to rezone approximately 0.44+/- acres of property located on Hwy 701 N / Main Street (PIN 325-13-01-0013), from City of Conway Low/Medium Density Residential (R-1) district to the City of Conway Highway Commercial (HC) district.**
- J. Approval of a Resolution accepting dedication of roadways & drainage and the financial guarantee for the roadway warranty for Hainer Place, Phase 2, subdivision (Blueberry Drive, Cottontail Drive, Cedarwood Drive, Oak Wood Drive, and Trap Lane).**
- K. Approval of the reallocation of previously budgeted FY 2025/2026 capital funds for sod replacement at soccer field #1.**
- L. Approval of the reallocation of previously budgeted FY 2025/2026 capital funds for playground installation and Lady Bug Park turf repairs.**
- M. Approval of a Resolution accepting dedication of roadways & drainage and the financial guarantee for the roadway warranty for Collins Walk, Phase 2, subdivision (Blueback Herring Way, American Shad Street, Bluegill Street, Redear Sunfish Avenue).**
- N. Approval of the 2026 Risk Management Resolution**
- O. Approval of the purchase of an electric boat for the Kingston Ferry Project**
- P. Approval of acceptance of a bid for Lakeside Cemetery & Rosehill Cemetery Lawn Care Service**

Q. Approval of January 5, 2026 Council Meeting Minutes

APPROVAL OF CONSENT AGENDA: Motion: Goldfinch made a motion, seconded by Butler to approve the January 20, 2026 consent agenda. **Vote:** Unanimous. Motion carried.

SPECIAL PRESENTATION:

- A. Presentation of Employee of the Month for January 2026 – Public Service –** A. Smith presented Tristan Casper with the Employee of the Month award.
- B. Presentation of the 2025 City of Conway Audit Report - Nathan Skipper, Smith Sapp CPAs –** Nathan Skipper of Smith Sapp CPAs gave a brief overview of the independent auditor's report regarding the City's Annual Comprehensive Financial Report for the fiscal year ended June 30, 2025.

FIRST READING:

- A. First Reading of Ordinance #ZA2026-02-02 (C) to rezone approximately 0.22 +/- acres of property located at 250 Chevy Chase Drive (PIN 367-13-01-0031) from the Horry County Residential, including mobile homes (MSF10) district to the City of Conway Low/Medium-Density Residential (R-1) district upon annexation.** Hucks stated that first reading of the ordinance to annex this property was approved at the December 1, 2025 council meeting, which is required in accordance with city requirements for connection to utility services. The property is currently zoned Horry County MSF10, which is a residential district that includes manufactured homes on minimum lot sizes of 10,000 square feet. The requested zoning upon annexation is R-1, which is consistent with the zoning of other properties that have been annexed in recent years, as well as the city's future land use map. Hucks said that Planning Commission held the required public hearing on the proposed zoning of the property at their January 8, 2026 meeting and recommended approval. Hucks stated that staff also recommends approval of R-1 zoning.

Motion: Jordan made a motion, seconded by Butler to approve first reading of Ordinance #2026-02-02 (C) zoning the property at 250 Chevy Chase Drive to City of Conway R-1. **Vote:** Unanimous. Motion carried.

- B. First Reading of Ordinance #ZA2026-02-02 (D) to rezone approximately 50.64 +/- acres of property located on E. Country Club Drive (PIN 339-00-00-0026), from the City of Conway Low/ Medium Residential (R-1) to the City of Conway Conservation Preservation (CP).** Hucks stated that this item was discussed at the January 5 council meeting. The property is now owned by the city, and the city is seeking to rezone the property to CP for protection of the environmentally sensitive and flood prone areas the property contains. Planning Commission held the required public hearing at their January 8, 2026 meeting and recommended approval of the proposed zoning. Hucks said that staff also recommends approval of the CP zoning.

Motion: Helms made a motion, seconded by Goldfinch to approve first reading of Ordinance #2026-02-02 (D) rezoning the property on E. Country Club Drive to CP.

Vote: Unanimous. Motion carried.

- C. First Reading of Ordinance #ZA2026-03-16 (C) to annex approximately 0.2 +/- acres of property located at 1326 Cottage Lane (PIN 338-10-02-0007).** Hucks stated that this property is located directly behind the parcel that has frontage on Church Street and Cottage Lane that was recently annexed and rezoned to Highway Commercial, in conjunction with the abutting property. The property is currently vacant, and the applicant is seeking to annex the property for future commercial development. Two other parcels on Cottage Lane on the other side of the subject property are also going through the annexation and rezoning process, so annexation of this property further closes this donut hole in the city, leaving just one property on Cottage Lane not within the city's jurisdiction. Hucks said that Planning Commission will hold a public hearing on the proposed zoning upon annexation to Highway Commercial at their February 5 meeting, and their recommendation will be forwarded to council along with first reading of an ordinance to one the property Highway Commercial Hucks said that this ordinance is for first reading of annexation only, in which staff recommends approval.

Motion: Blain made a motion, seconded by Butler to approve first reading of Ordinance #2026-03-16 (C) annexing the property at 1326 Cottage Lane. **Vote:** Unanimous. Motion carried.

CONSIDERATION:

- A. Consideration of the approval of changing the name for a new single-family development located on East Country Club Drive from "Rivers Edge Village" to "Homestead" (PIN 339-00-00-0025).** Hucks said that this development is located on East Country Club Drive, between Highway 905 and Long Avenue Ext. Council approved the current name, Rivers Edge Village, at their May 6, 2024 meeting. The preliminary plans for this development were approved in October of last year. the applicant is seeking to rename the approved development, which is a Conservation Subdivision, to "Homestead." Hucks said that in accordance with the UDO, council must review and approve all subdivision names. Hucks said that staff does recommend approval of the proposed name change.

Motion: Goldfinch made a motion, seconded by Blain to approve the subdivision name change to "Homestead." **Vote:** Unanimous. Motion carried.

- B. Consideration of the approval of a resolution authorizing a fee in lieu of open space for the proposed expansion of University Suites, located on Technology Blvd (PIN 383-10-03-0020).** Hucks stated that University Suites, located on Technology Blvd, is being expanded to include an additional 24 units on the opposite side of the street. This property was rezoned last year in conjunction with the original University Suites development to the R-3, or high-density residential district. The property is 1.75 acres in size, and there are 24 units proposed for construction. The requirements for open space

have been amended a few times over the last 10 or so years, and a 2016 amendment included a revision requiring that a fee in lieu of open space be provided when less than one acre of open space is calculated using the formula determining the amount of open space. This was because the amount of open space being required at the time for some of the developments would not have been compliant with the open space suitability standards in effect at that time. How the total amount of open space that is determined has also been amended, to a much simpler formula, which now requires that there be 1,000 sq. ft. of open space for each lot or unit in a proposed development. This means that there would need to be a minimum of 44 lots or units proposed to meet the minimum standard for providing open space onsite (43,560 sq. ft.).

Hucks said that in addition to the requirement to submit a fee in lieu of providing open space when less than one acre is required, the applicant is required to submit a written appraisal of the market value of the land to be developed, as if the development has been completed; in other words, post-development value. As part of the applicant's request for preliminary plan approval, which is considered by Planning Commission, the applicant requested a design modification from the appraisal requirements, requesting that the contracted amount for the property be accepted in determining the dollar amount for the open space fee in lieu. Planning Commission approved the design modification request, and granted preliminary plan approval, contingent upon final review and approval of the Technical Review Committee. Hucks stated that a separate request considered on the same agenda was for the same project, asking for approval of the fee in lieu amount of open space, but in a reduced amount, which is required to receive a recommendation by Planning Commission before being considered by Council, based on the following factors: (1) This is an infill development, an expansion of an existing student housing project that already contains open space amenities, including an outdoor pool, amenity center, a dog park, among other things, that will be available for use by the new residents; and (2) Although the open space areas shown to be provided on this site do not meet the minimum standards, there is some passive open space being provided, in addition to the fee in lieu.

Hucks said that Planning Commission considered the second request for the reduced fee in lieu amount at their January 8, 2026 meeting. Part of the discussion included the amount of open space that was already in place for the existing University Suites, which was approved under a different regulatory framework when previously zoned as a Planned Development and the open space was calculated very differently at that time. Because the open space that does exist is considered nonconforming, it cannot be credited toward the requirement for the proposed expansion. The open space ordinance currently in effect sets a standard method for calculating the fee based on the value of the land, the size of the site, and the amount of open space that would otherwise be required, plus a 25% surcharge, which was adopted as part of the most recent amendments to the open space ordinance. Using that method, and the contracted amount that was approved by Planning Commission via a design modification, the full fee in lieu of providing open space onsite is \$223,800. Planning Commission considered the applicant's request to reduce the fee in lieu amount that is calculated, based on the value of the land via the method they approved, and did not reach consensus on the fee in lieu amount. Two motions were made;

neither received a majority. It was split 3/3 both times. As a result, the applicant's request was denied.

Hucks stated that the question is not whether open space is required but in applying the policy that is in effect, whether the proposed fee in lieu amount is sufficient for this project. Based on the number of units proposed, the ordinance calculates the amount of open space required to be 24,000 sq. ft.; a little more than half an acre. As previously stated, using the applicant's own contracted amount, the fee in lieu amount would otherwise be \$223,800, when you take into account the 25% additional fee that is required. The applicant is requesting approval of a reduced fee in lieu amount of \$52,152.86, based on the reasons previously provided, and citing in their application that the project only lacks 6,991 sq. ft. of "suitable" open space if the requirement for the fee in lieu for less than one acre of open space did not exist.

Hucks said that staff's determination and recommendation is based on a few factors:

- The formula for determining the fee in lieu of open space is designed to approximate the cost of acquiring and developing new open space when a project creates demand for new park land. In this case, the city would have to acquire roughly half an acre of land elsewhere. The standard calculation works best for large, standalone developments where residents will rely entirely on new or offsite public facilities, not ones that have private amenities nearby.
- This project is a small, infill expansion, not a new, isolated development. Residents will have access to private amenities directly across the street, which already serves a similar population. As a result, the demand this project places on City parks and recreation facilities could be considered much less than what the formula in the ordinance assumes. The assessed fee (\$223,800) reflects a hypothetical cost based solely on land value, not actual use or impact.
- Applying the full fee in this case could unintentionally discourage infill development in areas the city wants it, pushing development farther out where infrastructure and services are more costly, contributing towards urban sprawl. A reduced fee supports the City's broader goals of efficient land use, student housing near campuses, and minimizing sprawl, while still complying with the ordinance. Staff's recommendation is to approve a reduction in the fee in lieu amount to \$65,191.008, which includes an additional 25% fee on top of the applicant's proposed fee of \$52,152. This approach balances the ordinance requirements with proportionality – the fee still contributes to city open space but does not over-penalize an infill project that is already leveraging existing infrastructure.

Goldfinch has concerns with the fee in lieu amount as University Suites was built in 2007 and the requirements were different then. Hucks explained that this is a new part and not part of the original development but has the same owners and is an expansion of the original directly across the street.

Blain said that she agrees with Goldfinch and is willing to charge the owners with a lesser fee.

Helms also agreed with Goldfinch but had concerns about traffic in that area. Hucks said that Technology Blvd is a city road and the residents would be able to just walk across the street.

Hucks added that staff is working on options for situations such as this moving forward.

Emrick explained the open space fund.

Motion: Goldfinch made a motion, seconded by Blain to approve staff's recommendation for a reduction in the fee in lieu amount to \$65,191.08. **Vote:** Unanimous. Motion carried.

PUBLIC INPUT:

- Lizzy Marlowe – spoke to council in opposition of the buffer ordinance from 2018.
- Tonya Robinson – spoke on behalf of community members that are in opposition of a sports complex being placed on the former Whittemore Elementary site and supports a community center at this location. Asked who made the decision to make this site a sports complex.

There was no further public input. **Motion:** Blain made a motion, seconded by Jordan, to close public input. **Vote:** Unanimous. Motion carried.

CITY ADMINISTRATOR'S REPORT:

Emrick informed Council of the following:

- Staff has started decorating for Valentine's Day and hope to have everything out by February 1. Decorations will be left up until February 23 and then staff will start switching to Spring and Easter.
- The wreaths on the bridge will come down tonight.
- Emrick reminded council that in 6 weeks, we will be getting ready to leave for our annual Budget Retreat and if there are any specific requests from City Council for retreat consideration, please get those to him as soon as possible so that there is time to review them and prepare a presentation for consideration.
- Staff was requested to do a speed survey at Laurel Street, near 5th Avenue. This study was conducted in November. The posted speed on Laurel is 25mph and the average speed was 28.87 mph. This indicates that there is not a speed issue on Laurel at this location worthy of further consideration.
- As you all aware, we have a major Stormwater project happening throughout the Conwayborough and Snowhill adjacent neighborhoods. This is a grant funded, extremely tight time window, massive project that will upgrade the stormwater infrastructure from Pine Street all the way to Kingston Lake. This project both replaces aging stormwater pipes and upsizes them, making the drainage systems more effective in heavy rain events and adding lifespan to the network. Mary Catherine Hyman will now give a more detailed update on this project, where it now stands and what future impacts may result from it.

Hyman updated council on the road closures for the following stormwater improvements:

- Pine Street Outfall
- Beaty Street Outfall
- Park View Road
- Graham and Long Roads
- Highway 701 and Boundary
- Ackerrose Drive in Rosehaven
- Ridgewood Drive
- Blue Bell Lane
- Moore Lane
- Laurel Street Drainage
- ERF at Fourth and Laurel

Emrick continued by saying:

- The mayor mentioned at the outset of the meeting that two of our Council Members are in Columbia today, representing the City at Hometown Legislative Action Day. This event serves as a centralized forum for local government leaders to inform themselves about legislative developments, advocate for their communities, and cultivate productive dialogue with state policymakers.
- There are some large culverts under Mill Pond Road that have settled, creating two big dips in the road before reaching Church Street. Mill Pond is down to one lane in that area to fix some joints in the culverts and then King Asphalt will come through and resurface that area when the temperatures rise and get it scheduled.
- The serious threat of a winter storm this weekend begins on Saturday and continues into Sunday, with sub-freezing temperatures continuing past that. The main concern is ice, especially from freezing rain. Temperatures near or below freezing could cause rain to freeze on roads, bridges, trees, and power lines. Even a small amount of ice can make travel dangerous and may lead to slick roads and possible power outages. The city has begun necessary preparations, and we are continuing to monitor forecasts closely. Emrick said he will keep Council updated as updates are received.
- John Rogers has begun to work on the next Citizens Academy which will kick off in the Spring.
- There are Department Head reports from Lynn Smith in HR, Chief Long in Police and Robert Cooper in Construction Services.
- No workshop, but there are a couple of Executive Session items as outlined in the agenda.

L. Smith, Cooper and Long all gave brief departmental reports.

There was some discussion about police officer incentives for those hired that are already certified, parking citations for those in the fire zones at Food Lion, and the recently purchased Jamestown property.

COUNCIL INPUT:

Helms

- Thanked the Fire Department for having Santa on the firetrucks riding through the neighborhoods.
- Asked for the Budget Books early
- Asked about special Olympics volunteers
- Hope everyone enjoyed MLK day off.

Butler

- Commended the Conway Horry County MLK Committee for a wonderful event honoring the life and legacy of Dr. Martin Luther King Jr.
- Thanked the community members that reached out to her about the Whittemore Elementary School site. Butler went on to say that the site is historic, and the history is not being erased or replaced. Voices are being heard. Wants everyone to be more transparent and to be integral in the efforts to honor and remember that site. Butler said that she opens and welcomes any dialogue and says that she will do her part to make sure that she not only listens but also speaks on behalf of those that have come to her with their concerns. Butler stated that we are 1 Conway and are stronger together; and said there are times when we all must come together for a common cause, and she believes that this is one of the causes. The site is important and will continue to be important and it is the city's job to remember that site. Butler pledges to make sure she communicates more effectively with the community and the remaining council members concerning that site.

Goldfinch and Blain said that Butler was very well said in her remarks.

EXECUTIVE SESSION: Motion: Goldfinch made a motion, seconded by Jordan to enter into Executive Session for the following: (A) Consideration of appointments to boards, commissions and committees [pursuant to SC Code §30-4-70(A) (1)]; (B) Discussion regarding Potential Acquisition of Property on Sherwood [pursuant to SC Code §30-4-70 (A) (2)]; and (C) Discussion of Employment of an Employee in the Police Department [pursuant to SC Code §30-4-70 (A) (1)]. **Vote:** Unanimous. Motion carried.

RECONVENE FROM EXECUTIVE SESSION: Motion: Blain made a motion, seconded by Helms to leave Executive Session. **Vote:** Unanimous. Motion carried.

POSSIBLE ACTION ON MATTERS DISCUSSED IN EXECUTIVE SESSION: Motion: Helms made a motion, seconded by Jordan to uphold the decision of the grievance committee's recommendation regarding an employee in the Police Department. **Vote:** Unanimous. Motion carried.

ADJOURNMENT: Motion: Butler made a motion, seconded by Goldfinch, to adjourn the meeting. **Vote:** Unanimous. Motion carried.

January 20, 2026

APPROVAL OF MINUTES: Minutes approved by City Council this 17 day of February, 2026.

Alicia Shelley, City Clerk

DATE: FEBRUARY 17, 2026
ITEM: IV.A.

Presentation of Longevity Awards – January 2026

- o 5 Years – Nickey Richardson, Police
- o 25 Years – Jason Perzan, Fire

DATE: FEBRUARY 17, 2026
ITEM: IV.B.

Proclamation honoring Black History Month

DATE: FEBRUARY 17, 2026
ITEM: IV.C.

Conway Downtown Alive Annual Visitor Center Update – Hillary Howard

DATE: FEBRUARY 17, 2026
ITEM: IV.D.

Update on the 2025-26 Mayor's Youth Advisory Council (Platt)



STAFF REPORT

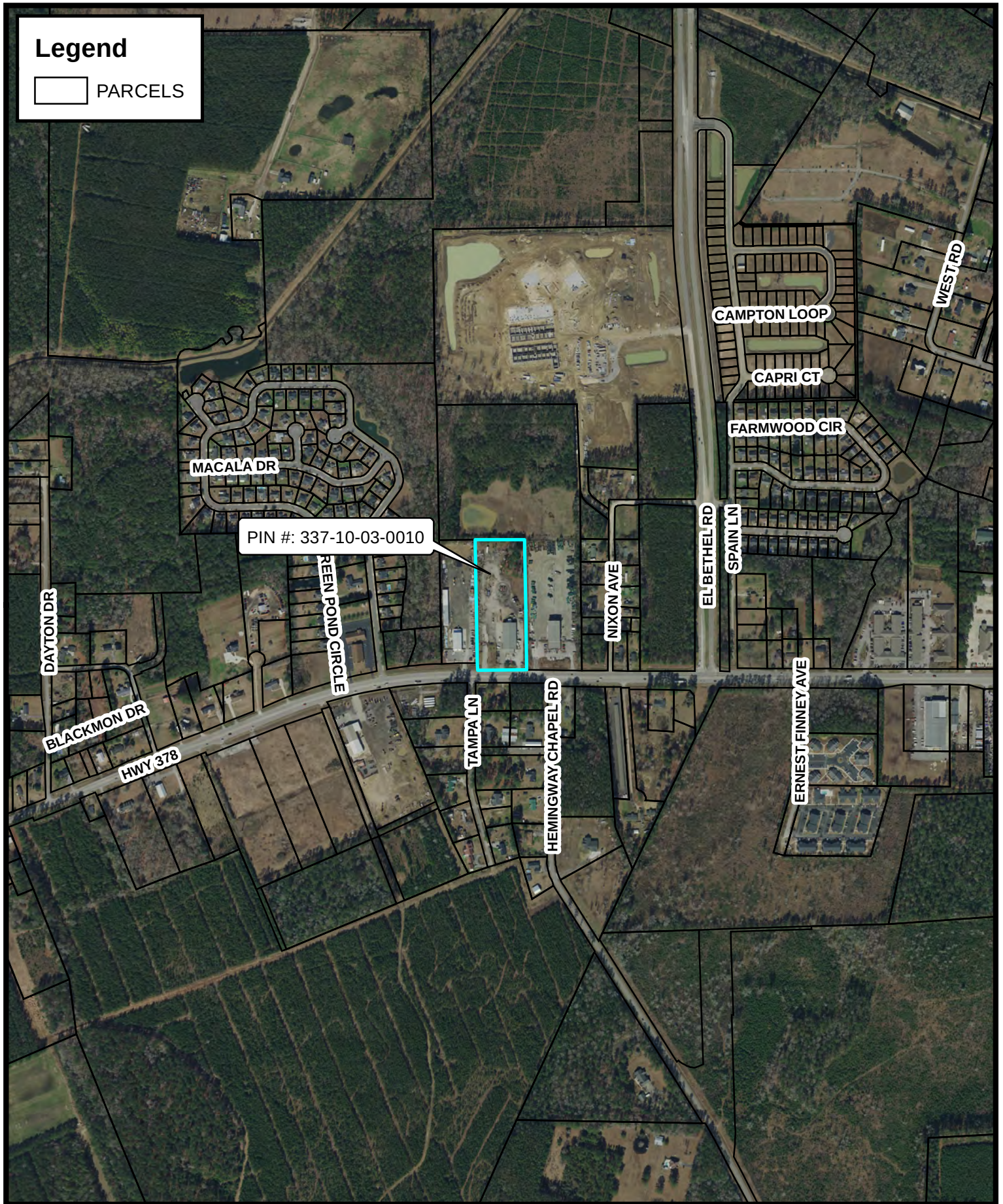
2578 Hwy 378 (Special Presentation)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: IV.E.
ORDINANCE: N/A	AGENDA SECTION: <i>Special Presentation</i>
ISSUE: Discussion of a request to rezone approximately 5.28 +/- acres of property located at 2578 Hwy 378, from the Highway Commercial (HC) district to the Heavy Industrial (HI) district.	
APPLICANT(S): Brad Richardson, Richardson Family Holdings, LLC	PIN(s): 337-10-03-0010
CURRENT ZONING: Highway Commercial (HC)	PROPOSED ZONING: Heavy Industrial (HI)
BACKGROUND: The subject property was originally annexed into the City in 2001 [#ZA2001-06-11(C)] and was likely annexed as Highway Commercial. The applicants have applied for a business license that would allow them to sell and display heavy equipment. While such a use is not currently detailed in the <i>use tables</i> in <i>Article 4</i> of the UDO, similar industrial uses, such as storage/shed sales, and manufactured and modular home sales, are only permitted in the Light and Heavy Industrial districts. More specifically, Wholesaling, Storing and Distributing (heavy) must be in the Heavy Industrial (HI) district only. The surrounding properties (on either side) are zoned HC as well; however, the current uses on these properties are more industrial in nature, as well as other property on the other side of Hwy 378, which is zoned industrial. Per <i>Section 3.2.14</i> of the UDO, the Heavy Industrial (HI) district is intended to accommodate areas for heavy manufacturing, distribution and processing.	
SURROUNDING USES/ZONING: The property abuts Waste Management (sanitation service co.) and on the other side, property also owned by the applicant, both of which are zoned Highway Commercial, which is consistent with the future land use map as well.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Highway Commercial. Per <i>Section 3.2.10</i> of the UDO, the intent of the HC district is to provide compatible locations to serve the automobile oriented commercial activities in harmony with major highway developments, reduce traffic congestions and to enhance the aesthetic atmosphere of the City.	
PLANNING COMMISSION RECOMMENDATION (and public hearing): Planning Commission will hold the public hearing on this request at their March 5th meeting, after which their recommendation will be forwarded to City Council.	
TRC RECOMMENDATION / COMMENTS (if applicable): None at this time	
ATTACHMENTS: GIS Maps; Application	



Legend

 PARCELS

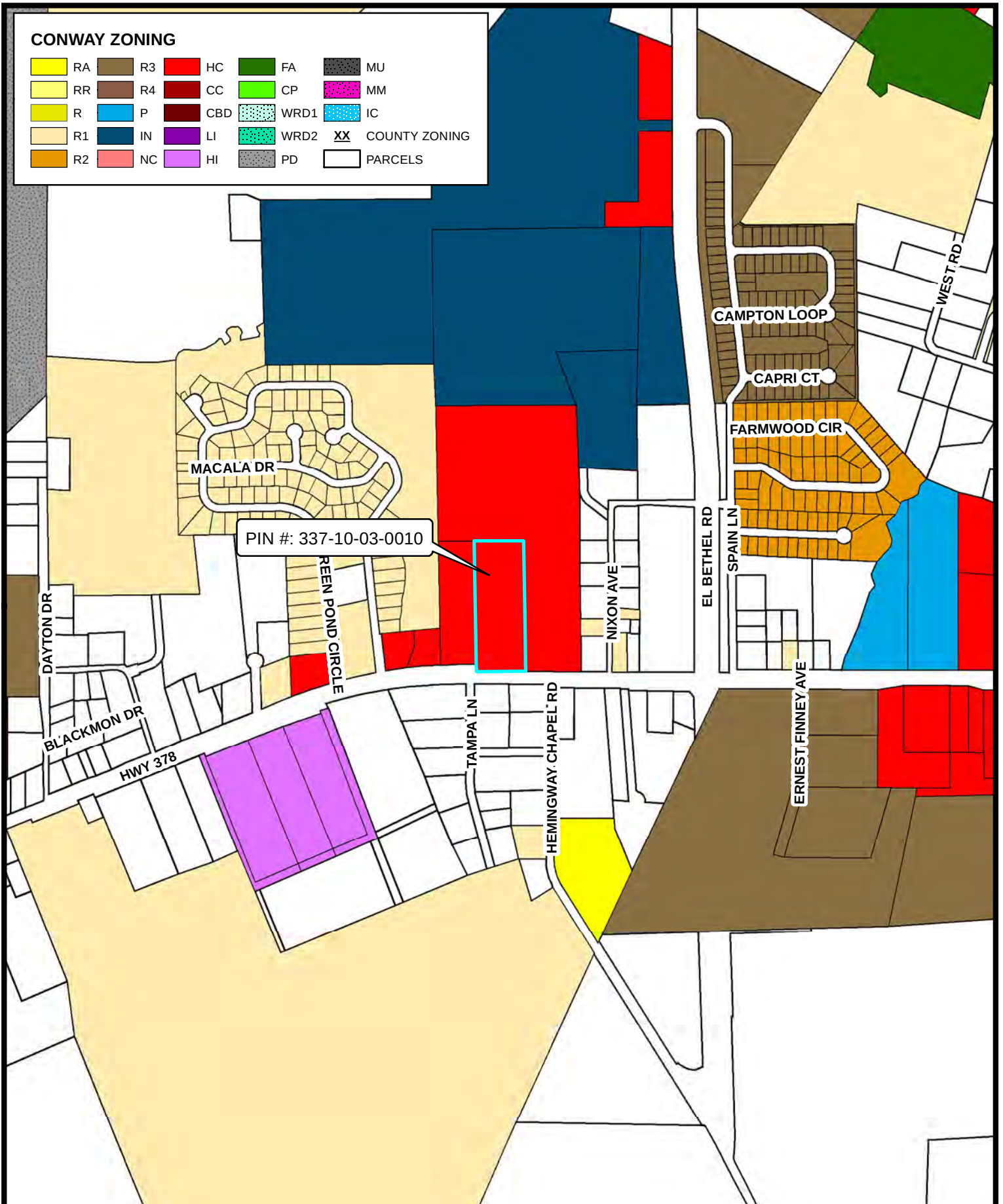


2578 HWY 378 (REZ from HC to HI)



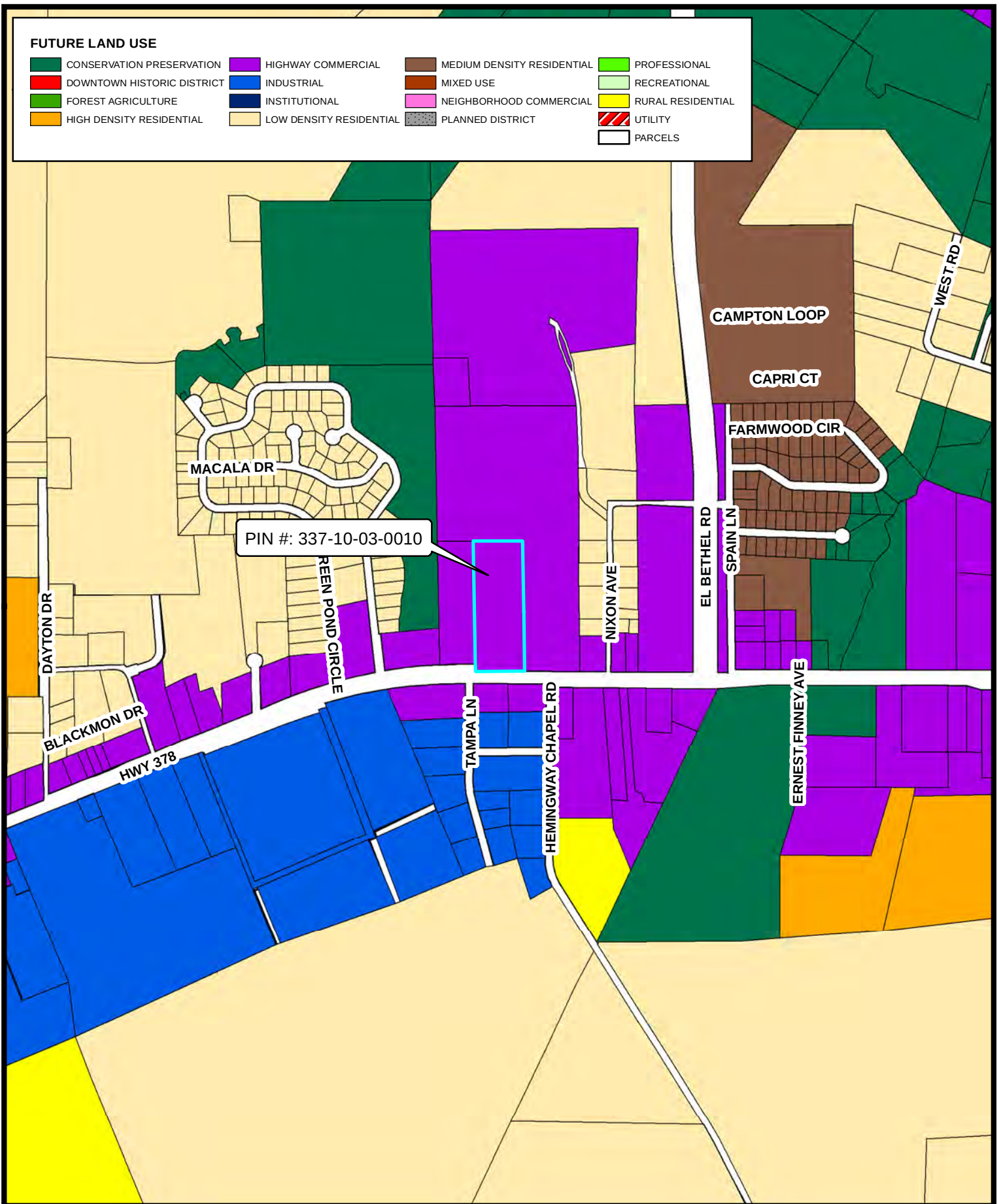
CONWAY ZONING

RA	R3	HC	FA	MU
RR	R4	CC	CP	MM
R	P	CBD	WRD1	IC
R1	IN	LI	WRD2	XX COUNTY ZONING
R2	NC	HI	PD	PARCELS



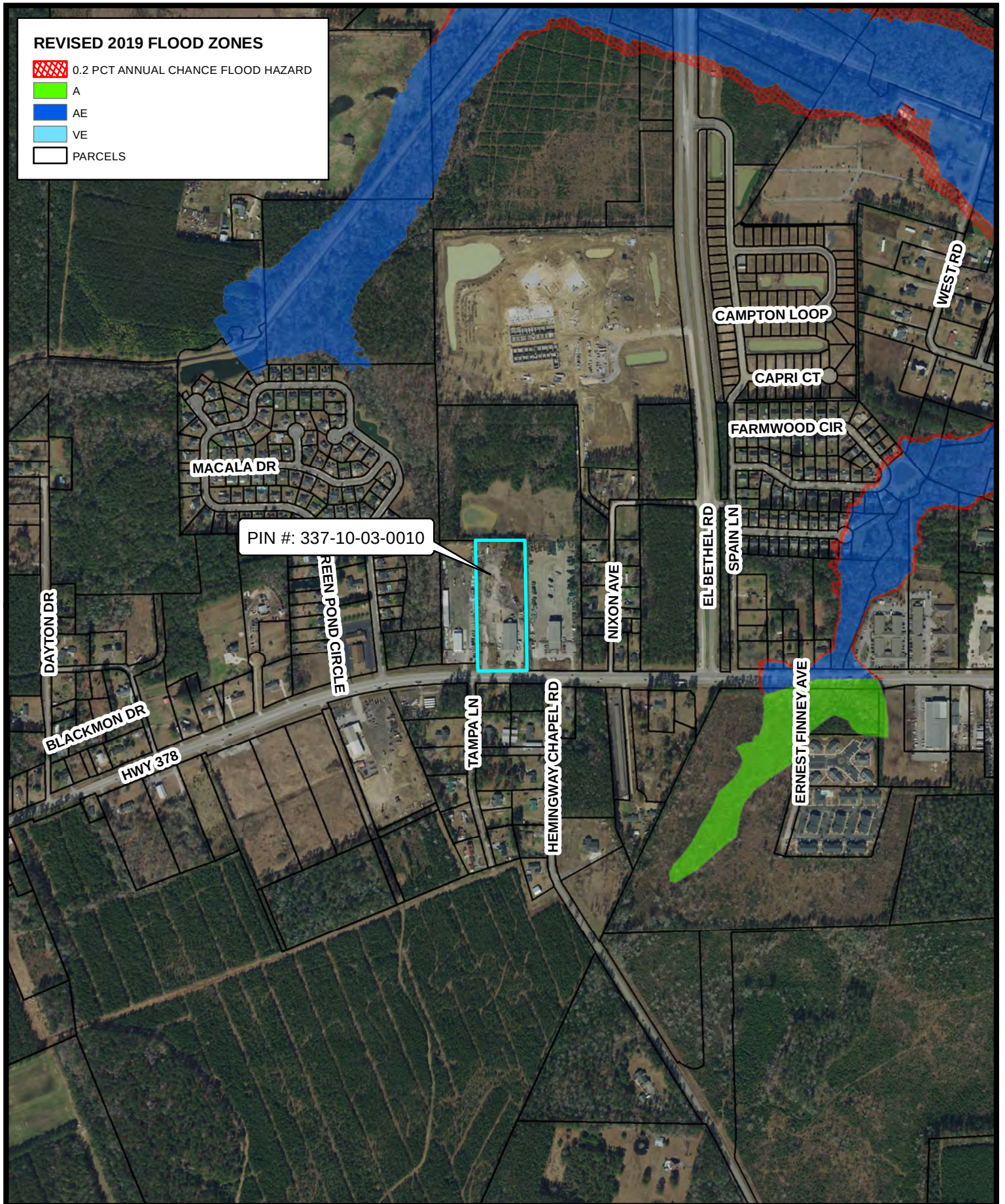
FUTURE LAND USE

CONSERVATION PRESERVATION	HIGHWAY COMMERCIAL	MEDIUM DENSITY RESIDENTIAL	PROFESSIONAL
DOWNTOWN HISTORIC DISTRICT	INDUSTRIAL	MIXED USE	RECREATIONAL
FOREST AGRICULTURE	INSTITUTIONAL	NEIGHBORHOOD COMMERCIAL	RURAL RESIDENTIAL
HIGH DENSITY RESIDENTIAL	LOW DENSITY RESIDENTIAL	PLANNED DISTRICT	UTILITY
			PARCELS



REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS





Zoning Map Amendment Application

Incomplete applications will not be accepted.

Staff Use Only

Received: _____
Staff: _____

City of Conway Planning Department
206 Laurel Street, 29526

Phone: (843) 488-9888
Conway, South Carolina

FAX: (843) 488-9890
www.cityofconway.com

Notice

All zoning map amendments shall follow the procedures set forth in Section 13.1.7 of the City of Conway Unified Development Ordinance. Amendments to the Official Zoning Map shall be initiated by members of City Council, the Planning Commission, the Planning Director, or owner(s) of the subject property. In order to partially defray the administrative cost of zoning map amendments, the applicant shall pay a filing fee to the City of Conway in the amount of \$250.00 at the time this application is submitted. A plat of the property to be rezoned shall be submitted with this application.

PHYSICAL ADDRESS OF PROPERTY: 2578 Hwy 378 FEE PAID ☒ YES ☐ NO

AREA OF SUBJECT PROPERTY (ACREAGE): 5.28 TMS #: 1220005167

CURRENT ZONING CLASSIFICATION: HC COMPREHENSIVE PLAN 2019 FUTURE LAND USE HL

REQUESTED ZONING CLASSIFICATION: HI

NAME OF APPLICANT: [PRINT] Brad Richardson PHONE # [REDACTED]

MAILING ADDRESS OF APPLICANT: [REDACTED]

NAME OF PROPERTY OWNER(S): [IF DIFFERENT FROM APPLICANT]

Richardson Family Holdings LLC PHONE # [REDACTED]

MAILING ADDRESS OF PROPERTY OWNER(S): [IF DIFFERENT FROM APPLICANT]

DESIGNATION OF AGENT [COMPLETE ONLY IF OWNER IS NOT THE APPLICANT]

I (we) hereby appoint the person named as applicant as my (our) agent to represent me (us) and act on my (our) behalf in this request for rezoning.

PROPERTY OWNER'S SIGNATURE(S)

DATE

PROPERTY OWNER'S SIGNATURE(S)

DATE

I (we) the applicant do hereby certify that all information presented in this Zoning Map Amendment Application is correct

[Signature]
APPLICANT'S SIGNATURE

1/22/26
DATE



STAFF REPORT

First Reading of Ordinance #ZA2026-04-20 (A)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: V.A.
ORDINANCE: #ZA2026-04-20 (A)	AGENDA SECTION: First Reading
ISSUE: Petition to annex approximately 1.08+/- acres of property located off of Cates Bay Hwy.	
APPLICANT(S): Sandridge Community Improvement Council, Inc.	PIN(s): 369-11-04-0004
CURRENT ZONING: Horry County Commercial Forest Agriculture (CFA)	PROPOSED ZONING (upon annexation): Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property was transferred to the Sandridge Community Improvement Council, Inc. on July 10, 1981. The property contains a picnic structure and is a part of the Horry County Sandridge Park, although it is not owned by Horry County Gov't. The property is accessed via an easement from Cates Bay Hwy, but this easement is private and is not a public road. The property also abuts the proposed Conway Perimeter Rd. Property adjacent to the subject parcel is within the city limits. Annexation is being requested as a requirement for reconnection to the city utility services.	
SURROUNDING USES/ZONING: The property abuts the New Castle Subdivision located within the city limits, zoned R-1 and is surrounded by other lots, zoned CFA in the unincorporated area of the county.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Recreational. <i>Per UDO, the recreational areas are designated specifically for leisure activities, such as parks, playgrounds, sports fields, swimming areas, walking trails, etc., where the primary use is for public enjoyment and recreation.</i>	
PLANNING COMMISSION RECOMMENDATION (and public hearing): If Council approves first reading of the ordinance to annex the subject property, Planning Commission will hold a public hearing on the requested zoning upon annexation at their April 2nd meeting.	
TRC RECOMMENDATION / COMMENTS (if applicable):	
RECOMMENDED ACTION: Staff recommends against annexation of the subject property.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-04-20 (A)

AN ORDINANCE TO ANNEX INTO THE CITY LIMITS OF CONWAY, APPROXIMATELY 1.08+/- ACRES OF PROPERTY, IDENTIFIED BY PIN: 369-11-04-0004 AND LOCATED OFF CATES BAY HWY, TO INCLUDE ALL WATERWAYS, ROADS, AND RIGHTS-OF-WAY ADJACENT TO THE PROPERTY.

SECTION 1. FINDINGS OF FACTS:

- WHEREAS,** Section § 5-3-150, Code of Laws of South Carolina (1976) as amended, provides a method of annexing property into a city or town by a petition signed by all persons owning real estate in the area requesting annexation; and
- WHEREAS,** A proper petition has been filed with the City of Conway by one hundred percent (100%) of the freeholders owning one hundred percent (100%) of the assessed value of the contiguous property herein described, petitioning for annexation of the property to the City of Conway under the provisions of SC Code of Laws, Section § 5-3-150(3); and
- WHEREAS,** The area comprising said property is contiguous to the City of Conway and meets all statutory requirements for annexation; and
- WHEREAS,** It appears to City Council that annexation would be in the best interest of property owners and the City.

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Council of the City of Conway, South Carolina, duly assembled and with authority of same, pursuant to Section § 5-3-150, Code of Laws of South Carolina (1976), as amended, the following described property is hereby annexed to and made part of the City of Conway, to wit:

Approximately 1.08+/- acres of property identified by PIN: 369-11-04-0004 and located off Cates Bay Hwy

Upon annexation, the property shall become subject to the City's jurisdiction for the rendition of all applicable municipal services. This annexation includes all waterways, roads, and rights-of-way adjacent to the property. For a more specific description of said property, see attached map(s).

SECTION 2. APPLICATION OF ZONING:

The official zoning map of the City of Conway shall be amended by separate ordinance following Planning Commission review and recommendation in accordance with S.C. Code § 6-29-760.

SECTION 3. EFFECTIVE DATE:

The annexation is effective as of the date of the final reading of this Ordinance.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

William M. Goldfinch IV, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: _____

Final Reading: _____

Legend



PARCELS

PIN #: 369-11-04-0004

GEORGE LN

ODIHAM PL

CADBURY CT

BRAMBER PL

DIRTY BRANCH RD



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 369-11-04-0004
TMS #: 136-00-03-140
KATES BAY HWY (SANDRIDGE COMMUNITY)



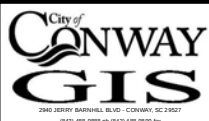
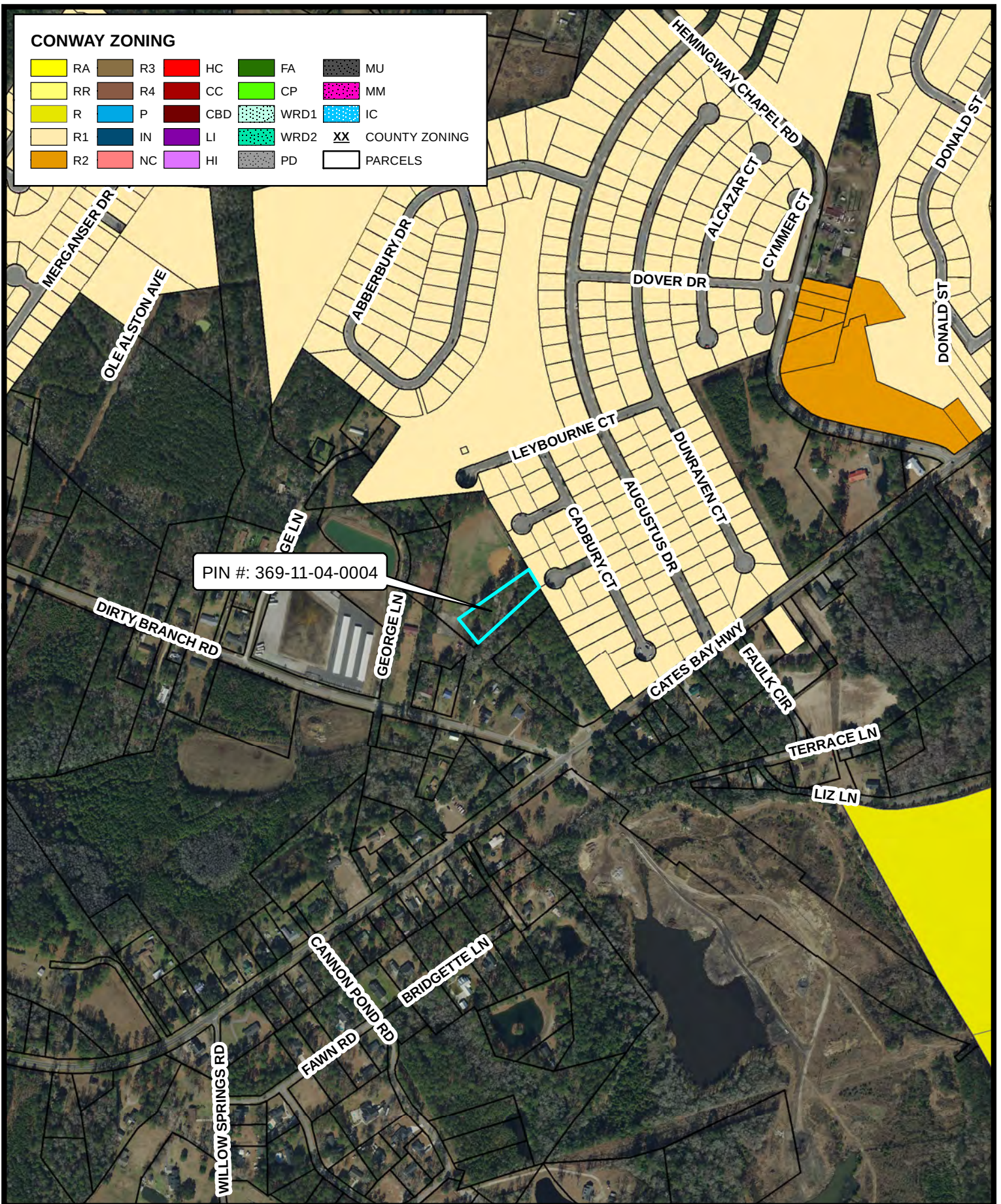


Sandridge Park parcel (ANX)



CONWAY ZONING

RA	R3	HC	FA	MU
RR	R4	CC	CP	MM
R	P	CBD	WRD1	IC
R1	IN	LI	WRD2	XX COUNTY ZONING
R2	NC	HI	PD	PARCELS



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.

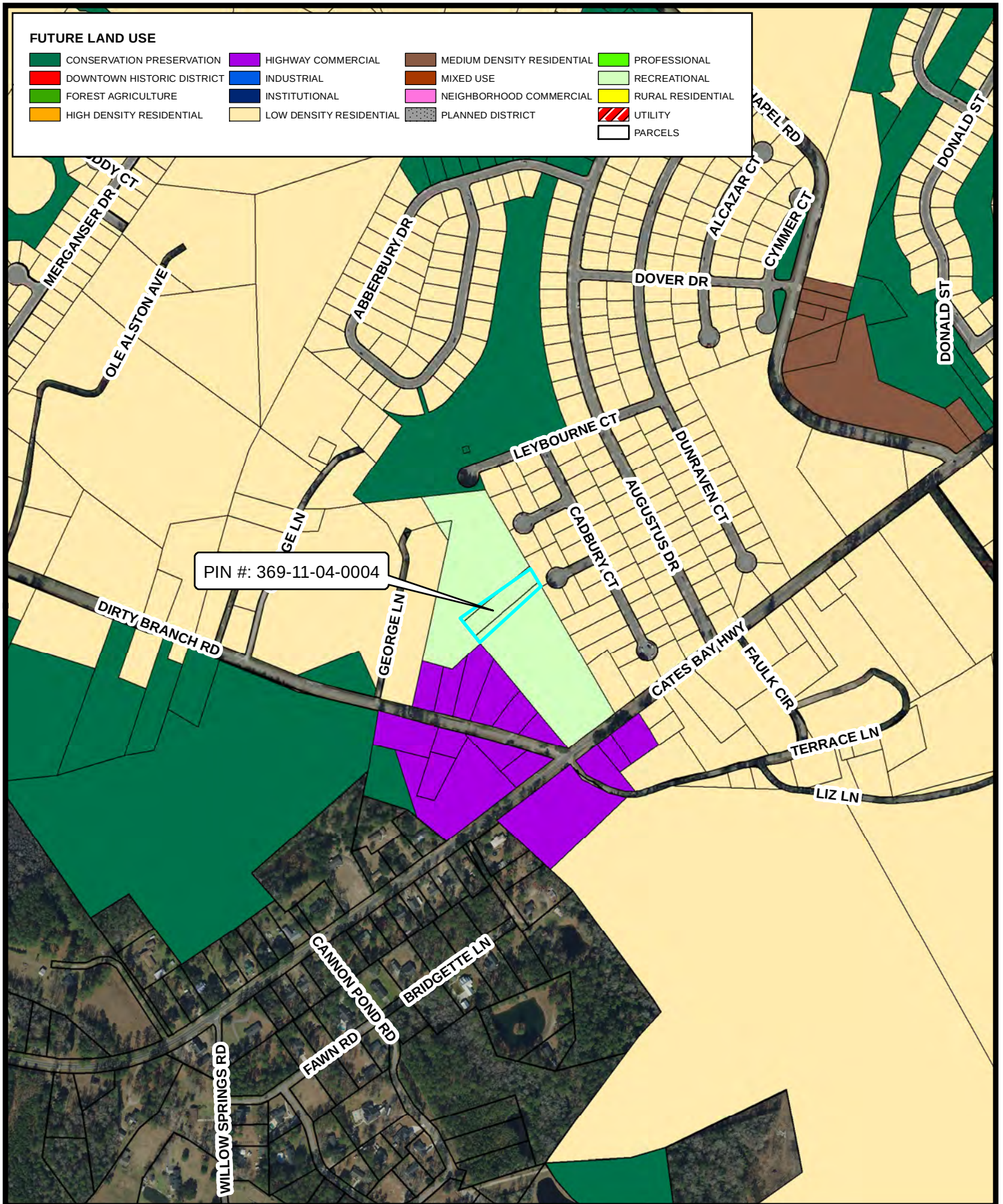


PIN #: 369-11-04-0004
TMS #: 136-00-03-140
KATES BAY HWY (SANDRIDGE COMMUNITY)



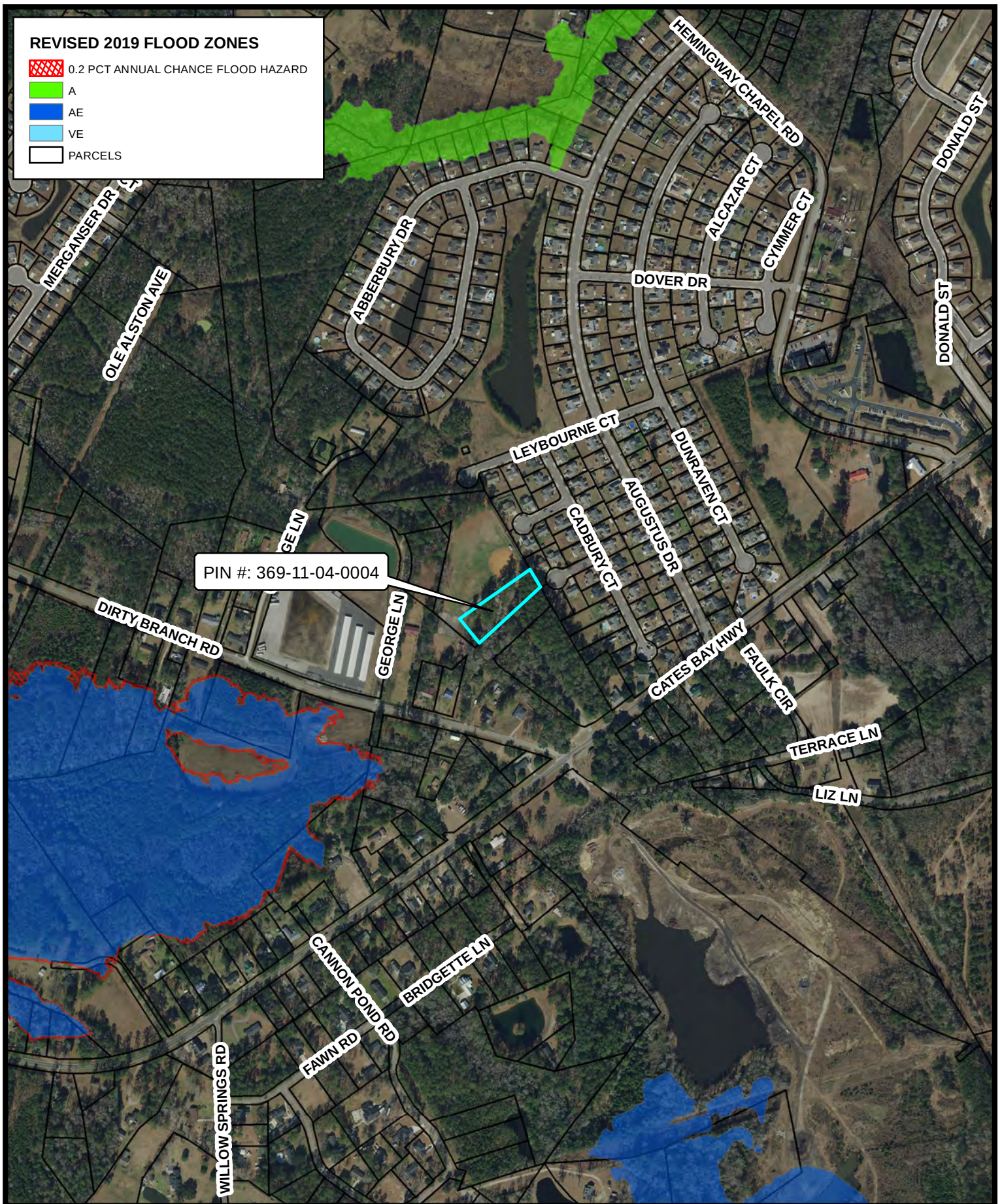
FUTURE LAND USE

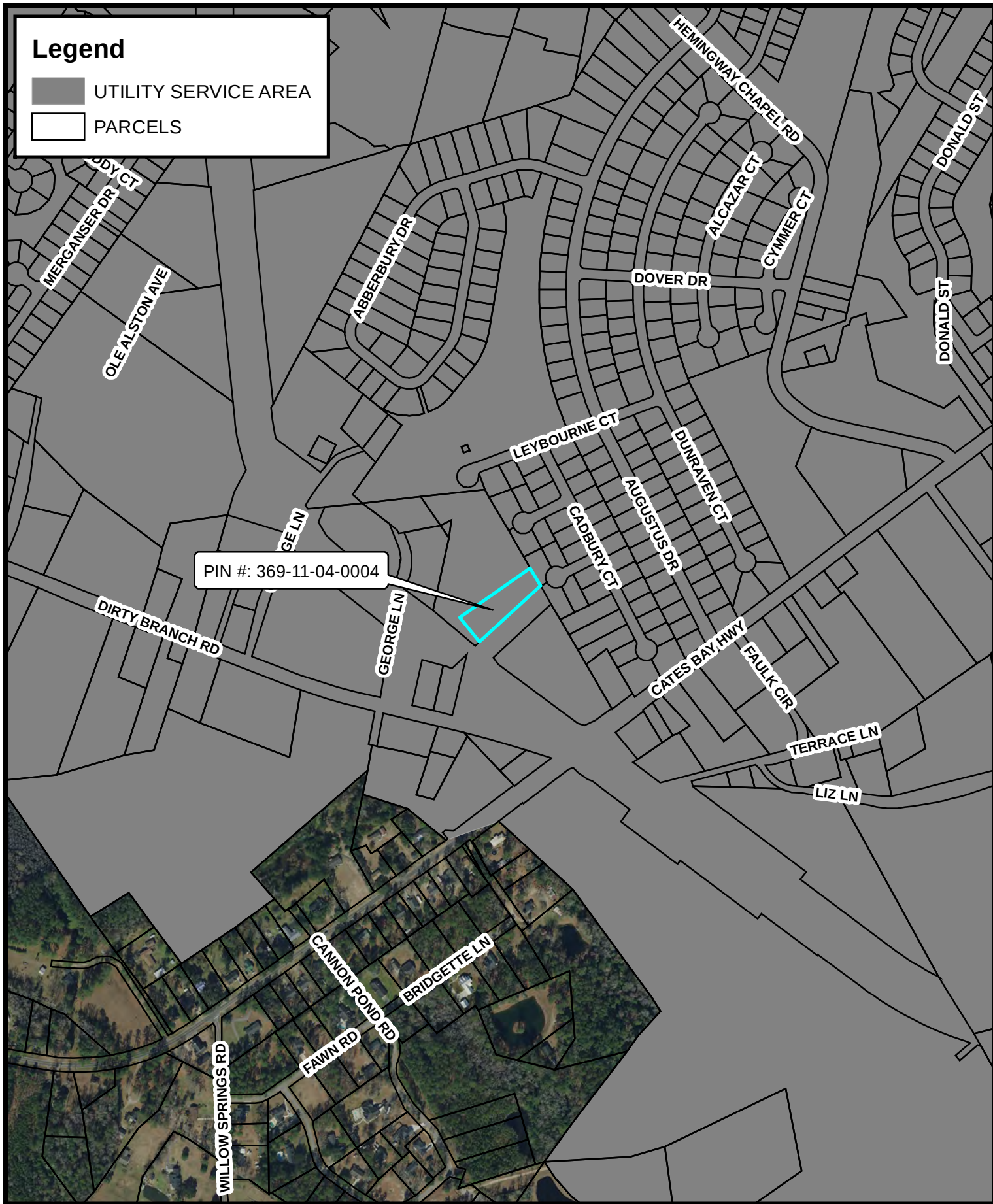
 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS



REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS







PETITION FOR ANNEXATION

Staff Use Only

Received: _____

BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, if available

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: Conway, SC (Sandridge Community) ADDRESS: 3428 Kates Bay Hwy Conway, SC 29527
PIN(s): 369 11 04 0004 ACREAGE: 1.08

PURPOSE OF ANNEXATION:

- ☒ Connection to City water / sewer Reconnect
☐ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: _____

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Sandridge Community Improvement Council
MAILING ADDRESS: 3428 Kates Bay Hwy Conway, SC 29527
PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S): Sandridge Community Improvement Council
MAILING ADDRESS: 3428 Kates Bay Hwy Conway SC 29527
PHONE: [REDACTED] EMAIL: [REDACTED]

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☒ NO

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____

BS&A #: _____

Existing structures and/or uses of property

Are there any structures on the lot? ☒ YES ☐ NO

If yes, what type of structure is on the property? Concession stand and restrooms

What is the current use of the property? functions

Are there any building permits or development plans in progress or pending for the property? ☐ YES ☐ NO

If yes, what are the permit(s) or development plans for? _____

Does the property contain any of the following?

☐ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☐ Flood zone and/or Floodway

☐ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? _____

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☐ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☐ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES:

Pete Wilkes III

Print Name

Pete Wilkes III

Signature

01/23/2026

Date

Print Name

Signature

Date

Are all property owners represented in the signatures provided above? ☐ YES ☐ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

Staff Use Only

Received: _____

BS&A #: _____

PROPERTY INFORMATION:

LOCATION: _____ ADDRESS: Kates Bay Hwy.

PIN(s): 369 11 04 0004 ACREAGE: 1.08

CURRENT ZONING CLASSIFICATION: CFA

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: Recreation

REQUESTED ZONING CLASSIFICATION: _____

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☐ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☐ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Sandridge Community Improvement Council (Pete Wilkes, III)

MAILING ADDRESS: 3428 Kates Bay Hwy Conway SC 29527

PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): Sandridge Community Improvement Council

MAILING ADDRESS: 3428 Kates Bay Hwy Conway SC 29527

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☐ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

Pete Wilkes, III.

Print

Pete Wilkes, III.

Signature

01/23/2026

Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



STAFF REPORT

First Reading of Ordinance #ZA2026-03-16 (D)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: V.B.
ORDINANCE: #ZA2026-03-16 (D)	AGENDA SECTION: First Reading
ISSUE: First reading of an ordinance to rezone approximately 1+/- acres of property located at 3000 Hwy 378	
APPLICANT(S): Singh Wholesale Properties LLC	PIN(s): 337-16-04-0011
CURRENT ZONING: Horry County Highway Commercial (HC)	PROPOSED ZONING: Highway Commercial (HC)
BACKGROUND: The subject property was transferred to the current owners on October 15, 2025. Restrictive Covenants were recorded on December 2, 1991. The property contains a commercial structure and has historically been used as a used car dealership but appears to be currently vacant. Property adjacent to the subject parcel is within the city limits. Annexation is being requested as a requirement for a name change to the city utility service account.	
SURROUNDING USES / ZONING: The property abuts an active automotive business already within the city limits, zoned HC and is surrounded by commercial lots, zoned HC in the unincorporated area of the county.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Highway Commercial (HC). Per Section 3.2.10 of the UDO, the intent of the HC district is to provide compatible locations to serve the automobile oriented commercial activities in harmony with major highway developments, reduce traffic congestions and to enhance the aesthetic atmosphere of the City.	
CITY COUNCIL: Council approved 1st reading of ordinance #ZA2026-03-16 (A) to annex the properties at their January 5th meeting.	
PLANNING COMMISSION RECOMMENDATION: <i>Approval</i> Planning Commission held the required Public Hearing and voted to recommend approval of the proposed zoning at their February 5th meeting.	
RECOMMENDED ACTION: Staff recommends approval of first reading to rezone the subject property HC upon annexation.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-03-16 (D)

AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF CONWAY, TO ASSIGN A ZONING CLASSIFICATION TO RECENTLY ANNEXED PARCEL IDENTIFIED BY PIN: 337-16-04-0011, CONSISTING OF 1+/- ACRES, AND LOCATED AT 3000 HWY 378.

WHEREAS, the City of Conway adopted Ordinance #ZA2026-03-16 (A) on January 5, 2026 annexing a parcel or parcels of land located at 3000 Hwy 378, consisting of 1+/- acres, and identified as PIN 337-16-04-0011; and

WHEREAS, pursuant to SC Code § 6-29-760(A), the Planning Commission held a duly advertised public hearing on February 5, 2026 and recommended that the subject property be assigned the zoning classification of Highway Commercial (HC); and

WHEREAS, City Council finds that such zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Low/ Medium-Density Residential (R-1) to the following parcel(s):

- **PIN** 337-16-04-0011
- **Address or location:** 3000 Hwy 378, Conway, SC
- **Legal Description** (*per county land records*): ; E OF 378

SECTION 2. EFFECTIVE DATE:

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED that all ordinances or parts of ordinances inconsistent with this ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

William M. Goldfinch IV, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading:

Planning Commission Recommendation: 2/5/2026

Final Reading:

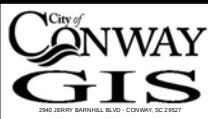
Legend

 PARCELS

PIN #: 337-16-04-0011

HWY 378

DIRTY BRANCH RD



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 337-16-04-0011
TMS #: 136-00-01-010
3000 HWY 378



Legend

PARCELS

PIN #: 337-16-04-0011

HWY 378

DIRTY BRANCH RD

JERRY BARNHILL BLVD

DAYTON DR

STALVEY RD

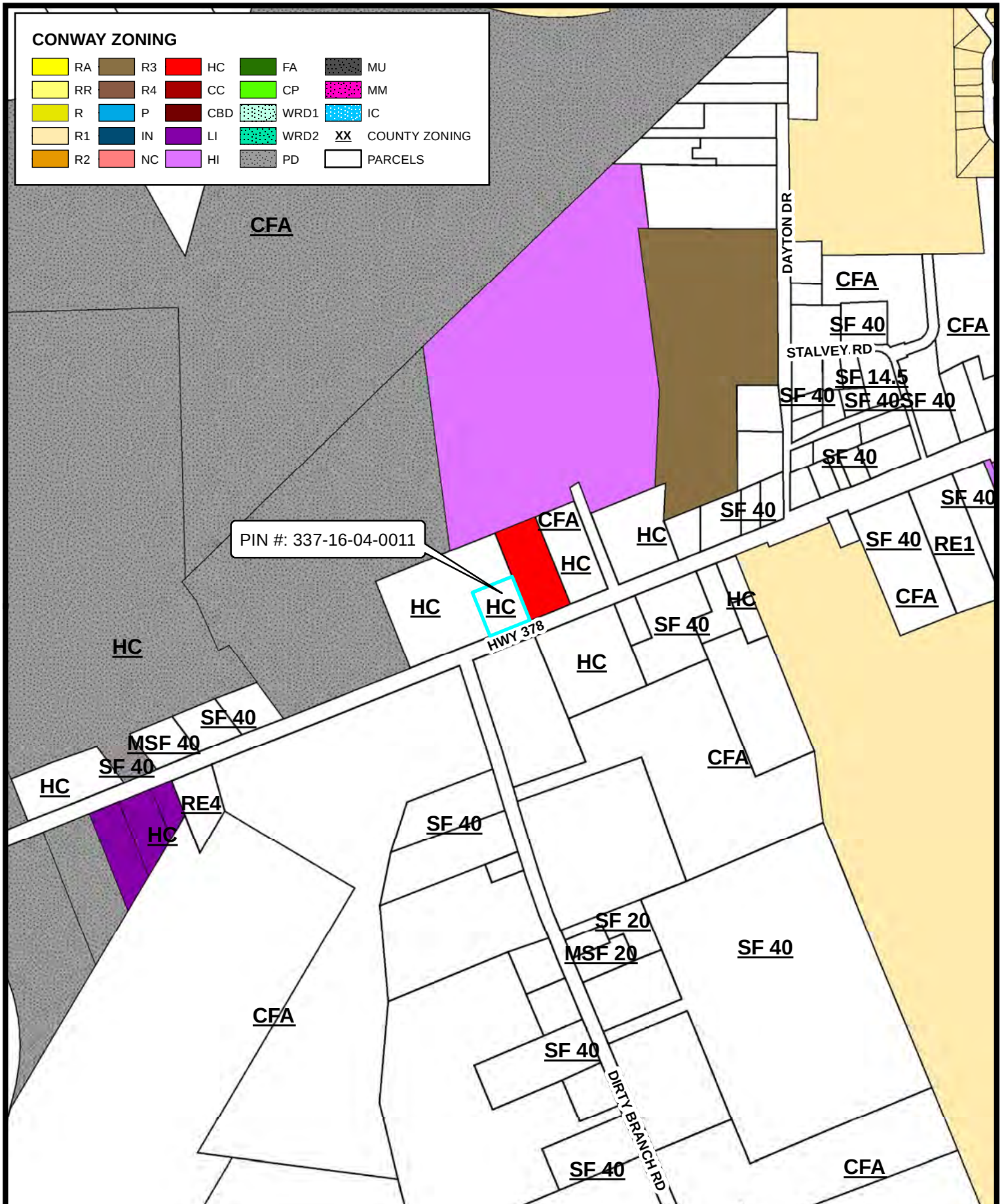
BLACKMON DR

3000 Hwy 378



CONWAY ZONING

RA	R3	HC	FA	MU
RR	R4	CC	CP	MM
R	P	CBD	WRD1	IC
R1	IN	LI	WRD2	XX COUNTY ZONING
R2	NC	HI	PD	PARCELS



FUTURE LAND USE

 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS

PIN #: 337-16-04-0011

HWY 378

JERRY BARNHILL BLVD

DAYTON DR

STALVEY RD

BLACKMON DR

DIRTY BRANCH RD

REVISED 2019 FLOOD ZONES

-  0.2 PCT ANNUAL CHANCE FLOOD HAZARD
-  A
-  AE
-  VE
-  PARCELS

PIN #: 337-16-04-0011

HWY 378

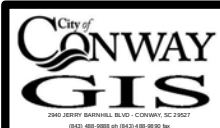
DIRTY BRANCH RD

JERRY BARNHILL BLVD

DAYTON DR

STALVEY RD

BLACKMON DR



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 337-16-04-0011
 TMS #: 136-00-01-010
 3000 HWY 378





PETITION FOR ANNEXATION

Staff Use Only

Received: _____

BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, *if available*

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: Hwy 378 Conway ADDRESS: 3,000
PIN(s): 33716040011 ACREAGE: 1

PURPOSE OF ANNEXATION:

- ☒ Connection to City water / sewer
☐ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: _____

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Singh Wholesale Properties LLC
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S): [Signature]
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☐ NO

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____

BS&A #: _____

Existing structures and/or uses of property

Are there any structures on the lot? ☒ YES ☐ NO

If yes, what type of structure is on the property? building

What is the current use of the property? not any plan to use yet

Are there any building permits or development plans in progress or pending for the property? ☐ YES ☒ NO

If yes, what are the permit(s) or development plans for? _____

Does the property contain any of the following?

☐ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☐ Flood zone and/or Floodway

☐ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? _____

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☒ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☒ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES:

DAIVAR SINGH

Print Name

Daiv Singh

Signature

3/19/2015

Date

Print Name

Signature

Date

Are all property owners represented in the signatures provided above? ☐ YES ☐ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

Staff Use Only

Received: _____

BS&A #: _____

PROPERTY INFORMATION:

LOCATION: HWY 328 Conway ADDRESS: 3000

PIN(s): 33716040011 ACREAGE: .99

CURRENT ZONING CLASSIFICATION: HC

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: HC

REQUESTED ZONING CLASSIFICATION: HC (prefer not to Annex)

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☐ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☒ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Singh Wholesale Properties LLC

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): DALVIR SINGH

MAILING ADDRESS: SAME

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ YES ☐ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

DALVIR SINGH

Print

Dalvir Singh

Signature

3/12/25

Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



STAFF REPORT

First Reading of Ordinance #ZA2026-03-16 (E)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: V.C.
ORDINANCE: #ZA2026-03-16 (E)	AGENDA SECTION: First Reading
ISSUE: First reading of an ordinance to rezone approximately 0.43+/- acres of property located at 1322 & 1324 Cottage Lane	
APPLICANT(S): Sara Jo Lewis	PIN(s): 338-10-02-0006, & - 0005
CURRENT ZONING: Horry County Residential, mobile homes allowed (MSF10)	PROPOSED ZONING: Low/Medium-Density Residential (R-1)
BACKGROUND: The subject property, identified as Lot 4 1322 Cottage Lane & Lot 5 1324 Cottage Lane's restrictive covenants were recorded on November 26, 2025. Both properties contain one single-family dwelling. Properties abutting the rear and directly across Cottage Lane from the subject parcel are already within the city limits. Annexation is being requested as a requirement to connect to city services following a name change to the city utility service account. The applicant is requesting Low/ medium Density Residential (R-1) which is not supported by the Future Land Use Map, which identifies the subject properties as being Highway Commercial (HC). The HC zoning district would not prevent the homes from being used as residencies it would simply restrict the ability to expand the use in the future, as the existing residential structures would become legal nonconforming uses under the HC district.	
SURROUNDING USES / ZONING: The properties are surrounded on two sides by properties already in the city limits and zoned HC. The properties on either side of the parcels are vacant wooded lots with the rear abutting property being commercial uses like fast food establishments among others all zoned HC in the city limits.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Highway Commercial (HC). Per Section 3.2.10 of the UDO, the intent of the HC district is to provide compatible locations to serve the automobile oriented commercial activities in harmony with major highway developments, reduce traffic congestions and to enhance the aesthetic atmosphere of the City.	
CITY COUNCIL: Council approved 1st reading of ordinance #ZA2026-03-16 (B) to annex the properties at their January 5th meeting.	
PLANNING COMMISSION RECOMMENDATION: <i>Approval</i> Planning Commission held the required Public Hearing and voted to recommend approval of the HC zoning district at their February 5th meeting.	
RECOMMENDED ACTION: Staff recommends approval of first reading to rezone the subject property R-1 upon annexation.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-03-16 (E)

AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF CONWAY, TO ASSIGN A ZONING CLASSIFICATION TO RECENTLY ANNEXED PARCEL IDENTIFIED BY PINS: 338-10-02-0006 & - 0005, CONSISTING OF 0.43+/- ACRES, AND LOCATED AT 1322 & 1324 COTTAGE LANE.

WHEREAS, the City of Conway adopted Ordinance #ZA2026-03-16 (B) on January 5, 2026 annexing a parcel or parcels of land located at 1322 & 1324 Cottage Lane, consisting of 0.43+/- acres, and identified as PINs 338-10-02-0006, & - 0005; and

WHEREAS, pursuant to SC Code § 6-29-760(A), the Planning Commission held a duly advertised public hearing on February 5, 2026 and recommended that the subject property be assigned the zoning classification of Highway Commercial (HC); and

WHEREAS, City Council finds that such zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Low/ Medium-Density Residential (R-1) to the following parcel(s):

- **PIN** 338-10-02-0006
- **Address or location:** 1324 Cottage Lane, Conway, SC
- **Legal Description** (*per county land records*): WRIGHT SD; LOT 4
- **PIN** 338-10-02-0005
- **Address or location:** 1322 Cottage Lane, Conway, SC
- **Legal Description** (*per county land records*): WRIGHT SD; LOT 5

SECTION 2. EFFECTIVE DATE:

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED that all ordinances or parts of ordinances inconsistent with this ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

William M. Goldfinch IV, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading:

Planning Commission Recommendation: 2/5/2026

Final Reading:

Legend



PARCELS

PIN #: 338-10-02-0005

PIN #: 338-10-02-0006

CHURCH ST

CHURCH ST

COTTAGE LN

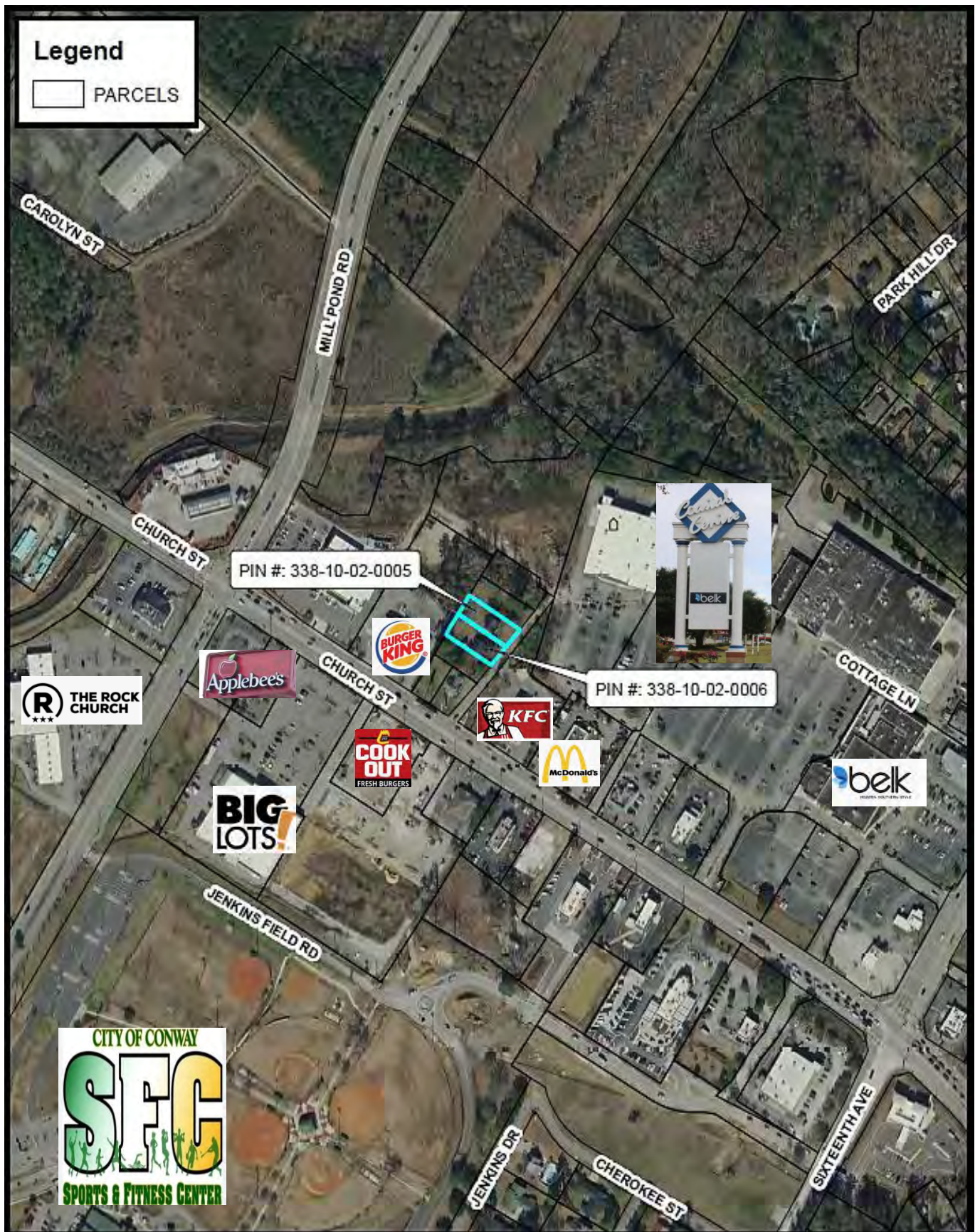


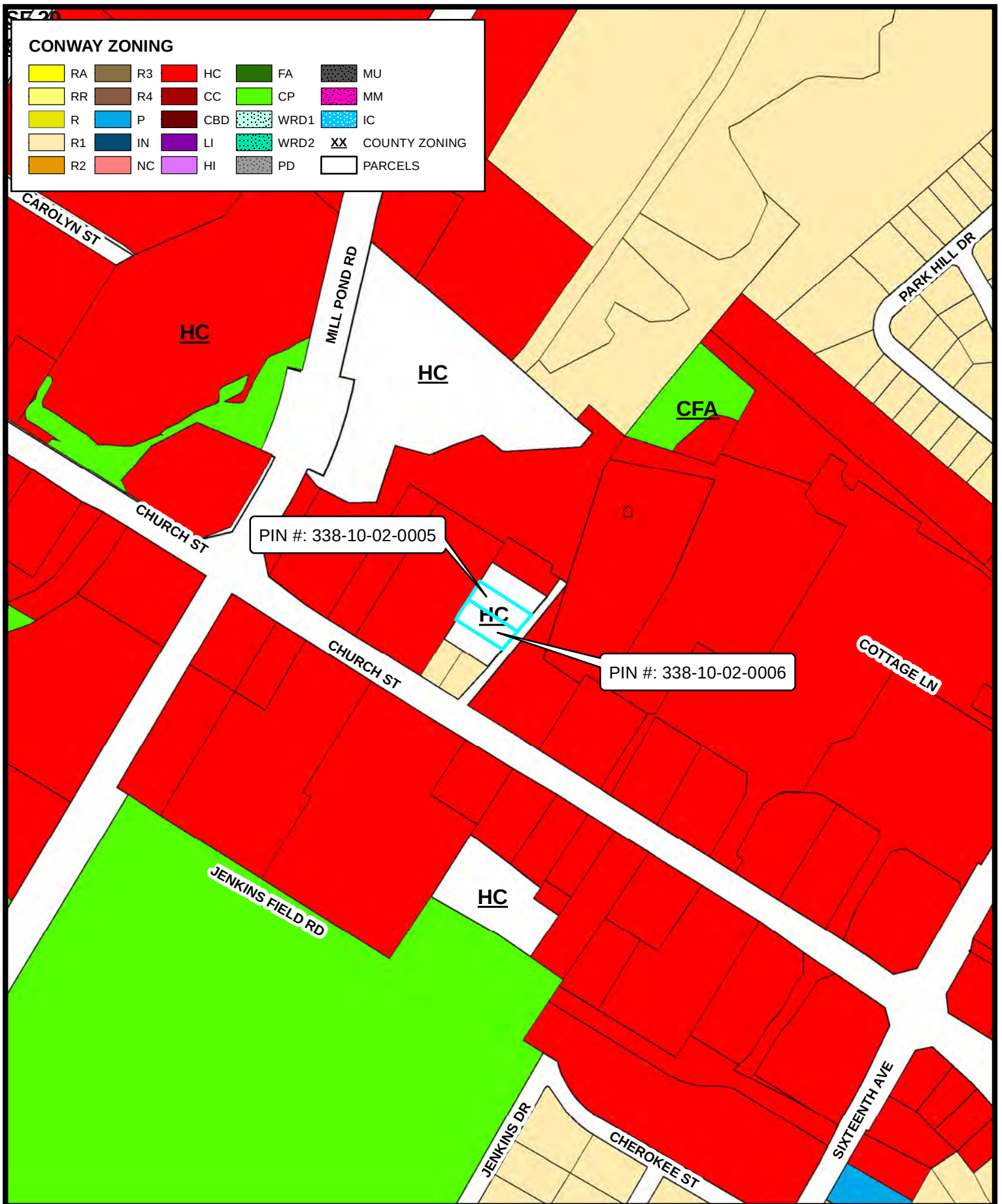
Legend

 PARCELS



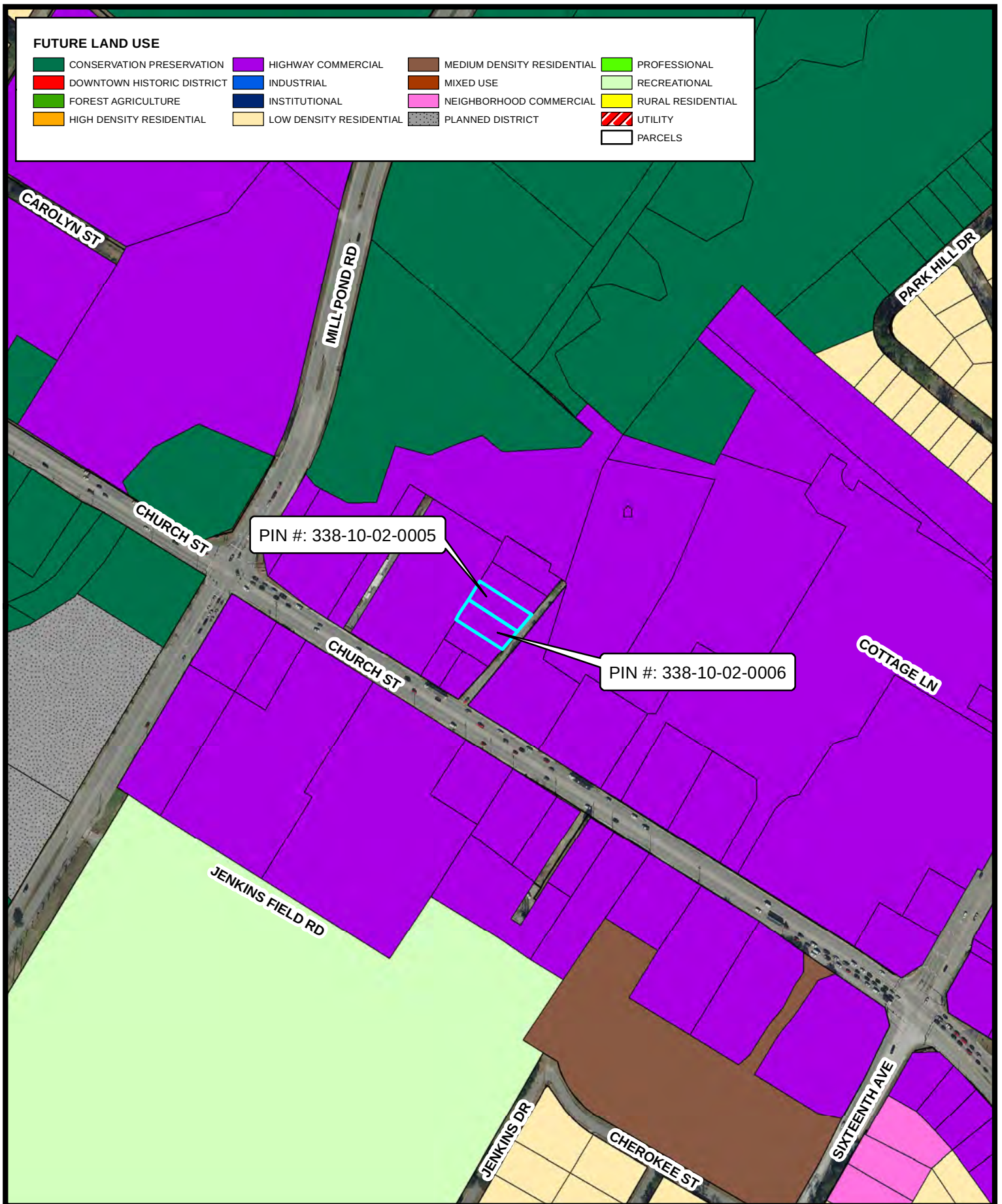
1322 & 1324 Cottage Lane





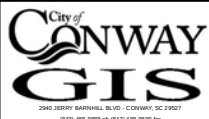
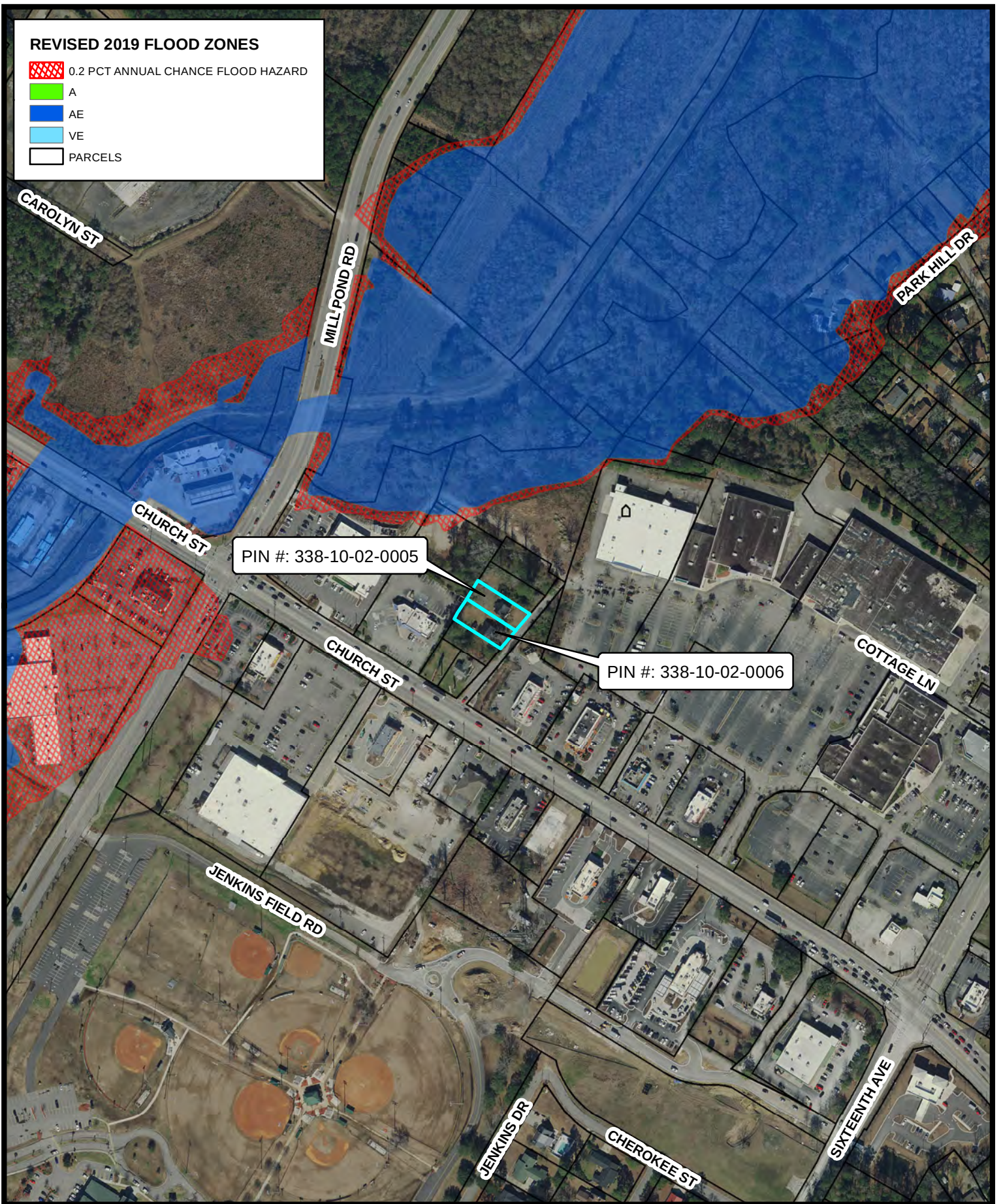
FUTURE LAND USE

 CONSERVATION PRESERVATION	 HIGHWAY COMMERCIAL	 MEDIUM DENSITY RESIDENTIAL	 PROFESSIONAL
 DOWNTOWN HISTORIC DISTRICT	 INDUSTRIAL	 MIXED USE	 RECREATIONAL
 FOREST AGRICULTURE	 INSTITUTIONAL	 NEIGHBORHOOD COMMERCIAL	 RURAL RESIDENTIAL
 HIGH DENSITY RESIDENTIAL	 LOW DENSITY RESIDENTIAL	 PLANNED DISTRICT	 UTILITY
			 PARCELS



REVISED 2019 FLOOD ZONES

- 0.2 PCT ANNUAL CHANCE FLOOD HAZARD
- A
- AE
- VE
- PARCELS



Disclaimer: This map is a graphic representation only. It is NOT a survey. All efforts have been made to ensure its accuracy. However, the City of Conway disclaims all responsibility & liability for the use of this map.



PIN #: 338-10-02-0005
PIN #: 338-10-02-0006
1322 & 1324 COTTAGE LN
(P25-0504)







PETITION FOR ANNEXATION

Staff Use Only

Received: _____

BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, *if available*

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: Conway ADDRESS: 1312 1324 Cottage Lane
PIN(s): 33810020006-05 ACREAGE: 3/4 - 9524.64 sq ft

PURPOSE OF ANNEXATION:

- ☒ Connection to City water / sewer
☐ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: _____

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Sara Jo Lewis
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S): _____
MAILING ADDRESS: _____
PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☒ YES ☐ NO

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

Existing structures and/or uses of property

Are there any structures on the lot? ☒ YES ☐ NO

If yes, what type of structure is on the property? Resd Home

What is the current use of the property? Resd

Are there any building permits or development plans in progress or pending for the property? ☐ YES ☒ NO

If yes, what are the permit(s) or development plans for? _____

Does the property contain any of the following?

☐ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☐ Flood zone and/or Floodway

☐ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? _____

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☒ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☒ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES:

Sara Jo Lewis
Print Name

Sara Jo Lewis
Signature

11-26-25
Date

Print Name

Signature

Date

Are all property owners represented in the signatures provided above? ☐ YES ☐ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

Staff Use Only

Received: _____

BS&A #: _____

PROPERTY INFORMATION:

LOCATION: 1324 Cottage Lane Conway ADDRESS: _____

PIN(s): 33810020006-05 ACREAGE: 1/4 9529.67 sq ft

CURRENT ZONING CLASSIFICATION: HC

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: HC

REQUESTED ZONING CLASSIFICATION: City Water Required R-1

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☐ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☐ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: _____

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

PROPERTY OWNER INFORMATION (if different from applicant):

NAME(S): _____

MAILING ADDRESS: _____

PHONE: _____ EMAIL: _____

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☐ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

Archie Bell

Print

Archie Bell

Signature

11-26-25

Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.



PLANNING DEPARTMENT

196 LAUREL STREET
CONWAY, SOUTH CAROLINA 29526
843-488-9888
WWW.CONWAYSC.GOV

DESIGNATION OF AGENT

(If the Property Owner Wishes To Appoint an Agent to Represent Him or Herself)

Agents Name: Archie Bell
Address: [REDACTED]
Telephone: [REDACTED] Email: [REDACTED]

I hereby appoint the person(s) listed above as agent to act on my behalf for the purpose of filing such application for a variance/rezoning request as he/she shall deem necessary and proper.

Sara Jo Lewis
PROPERTY OWNER(S) NAME (PRINT)

Sara Jo Lewis
PROPERTY OWNER SIGNATURE

11-26-25
DATE

1324 & 1322
Cottage Lane



STAFF REPORT

First Reading of Ordinance #ZA2026-03-16 (F)

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: V.D.
ORDINANCE: #ZA2026-03-16 (F)	AGENDA SECTION: First Reading
ISSUE: First reading of an ordinance to rezone approximately 0.22+/- acres of property located at 1326 Cottage Lane	
APPLICANT(S): Tim White (Gator Coastal Land LLC)	PIN(s): 338-10-02-0007
CURRENT ZONING: Horry County Highway Commercial (HC)	PROPOSED ZONING: Highway Commercial (HC)
BACKGROUND: The subject property, identified as Lot 3 of the Wright SD and located at 1326 Cottage Lane, is currently vacant and is the last property on Cottage Lane that has not been annexed. The owner(s) are seeking to annex the subject property for future commercial development. Properties on the Hwy 501 side were recently annexed as Highway Commercial. Properties on the opposite side are currently undergoing the annexation and zoning process. Annexation of this parcel will close this donut hole within the city limits. The requested zoning upon annexation is Highway Commercial, which is consistent with the City's future land use map.	
SURROUNDING USES / ZONING: The property is surrounded by property already in the city limits or undergoing the annexation process, with properties zoned Highway Commercial (HC). On one side of the property is a parcel containing a single-family home and property on the opposite side contains a dilapidated commercial building that will eventually be removed to make way for new commercial development. Across from the subject property is Kentucky Fried Chicken.	
COMPREHENSIVE PLAN / FUTURE LAND USE MAP: The City's future land use map identifies the property as Highway Commercial (HC). Per Section 3.2.10 of the UDO, the intent of the HC district is to provide compatible locations to serve the automobile oriented commercial activities in harmony with major highway developments, reduce traffic congestions and to enhance the aesthetic atmosphere of the City.	
CITY COUNCIL: Council approved 1 st reading of ordinance #ZA2026-03-16 (C) to annex the properties at their January 5 th meeting.	
PLANNING COMMISSION RECOMMENDATION: <i>Approval</i> Planning Commission held the required Public Hearing and voted to recommend approval of the proposed zoning at their February 5 th meeting.	
RECOMMENDED ACTION: Staff recommends approval of first reading to rezone the subject property HC upon annexation.	
ATTACHMENTS: GIS Maps; Annexation petition	

ORDINANCE #ZA2026-03-16 (F)

AN ORDINANCE TO AMEND THE OFFICIAL ZONING MAP OF THE CITY OF CONWAY, TO ASSIGN A ZONING CLASSIFICATION TO RECENTLY ANNEXED PARCEL IDENTIFIED BY PIN: 338-10-02-0007, CONSISTING OF 0.22+/- ACRES, AND LOCATED AT 1326 COTTAGE LANE.

WHEREAS, the City of Conway adopted Ordinance #ZA2026-03-16 (C) on January 5, 2026 annexing a parcel or parcels of land located at 1326 Cottage Lane, consisting of 0.43+/- acres, and identified as PIN 338-10-02-0007; and

WHEREAS, pursuant to SC Code § 6-29-760(A), the Planning Commission held a duly advertised public hearing on February 5, 2026 and recommended that the subject property be assigned the zoning classification of Highway Commercial (HC); and

WHEREAS, City Council finds that such zoning classification is consistent with the City's Comprehensive Plan and surrounding land uses, and in the best interest of the City;

NOW, THEREFORE, BE IT ORDAINED by Conway City Council, in Council duly assembled, that:

SECTION 1.

The official zoning map is hereby amended to designate the zoning classification(s) of Low/ Medium-Density Residential (R-1) to the following parcel(s):

- **PIN** 338-10-02-0007
- **Address or location:** 1326 Cottage Lane, Conway, SC
- **Legal Description** (*per county land records*): WRIGHT SD; LOT 3

SECTION 2. EFFECTIVE DATE:

This ordinance shall become effective upon adoption of final reading.

AND BE IT FURTHER ORDAINED that all ordinances or parts of ordinances inconsistent with this ordinance are hereby repealed to the extent of such inconsistency.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

Julie Ann Hardwick, Council Member

William M. Goldfinch IV, Council Member

Justin D. Jordan, Council Member

Larry A. White, Council Member

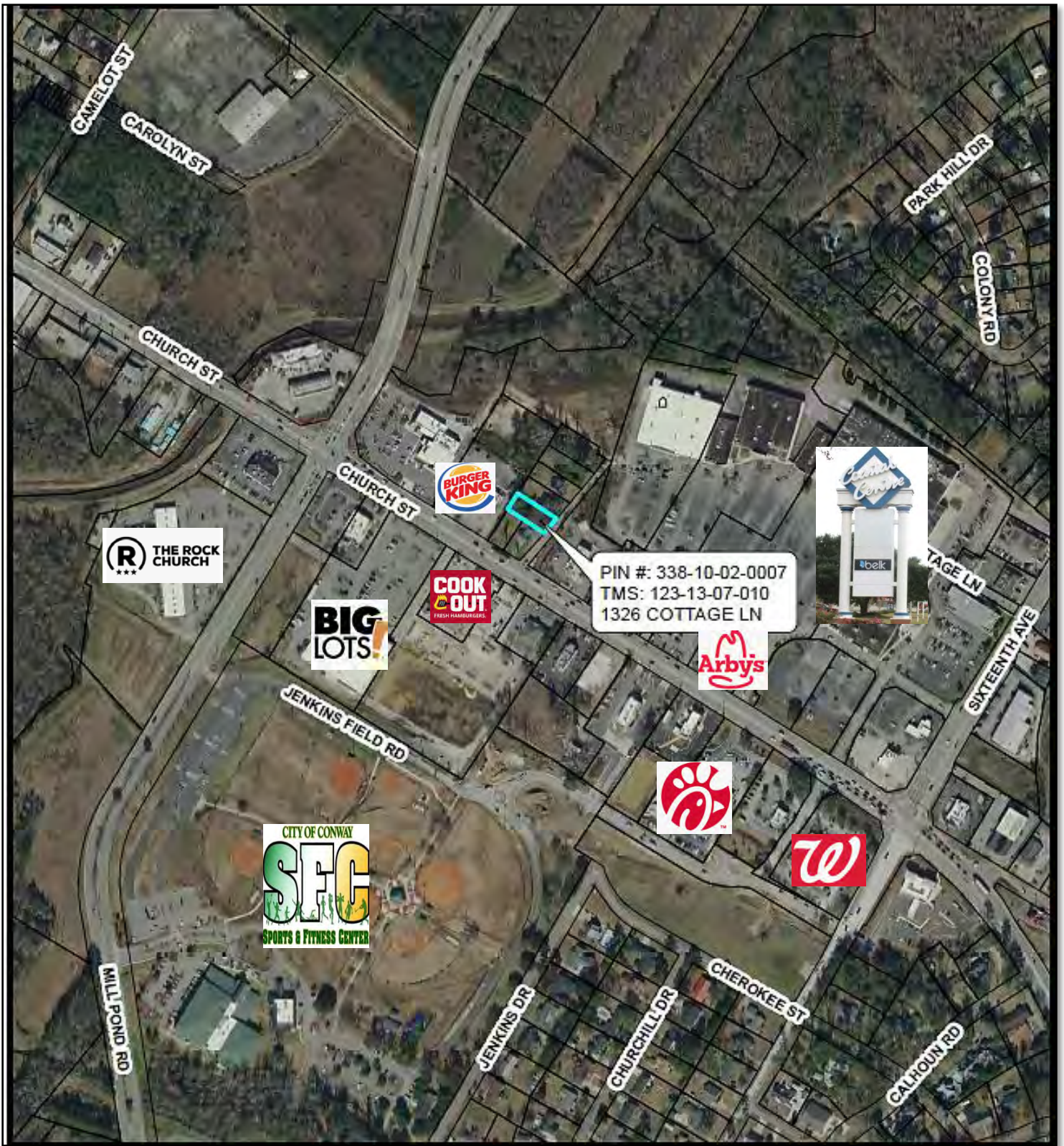
ATTEST: Alicia Shelley, City Clerk

First Reading:

Planning Commission Recommendation: 2/5/2026

Final Reading:

Aerial of 1326 Cottage Lane (Annexation)



Legend



PARCELS

PIN #: 338-10-02-0007
TMS: 123-13-07-010
1326 COTTAGE LN

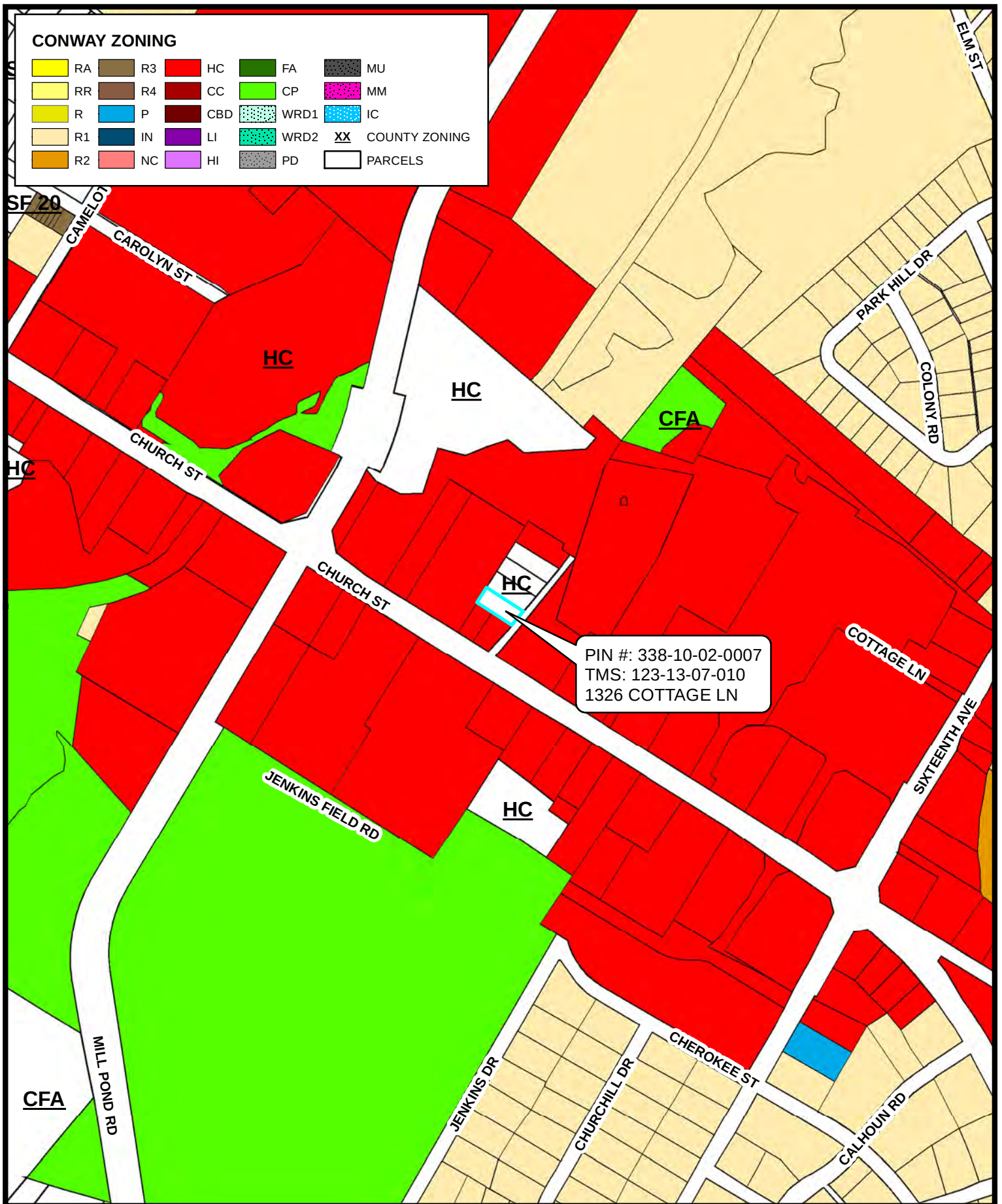
COTTAGE LN

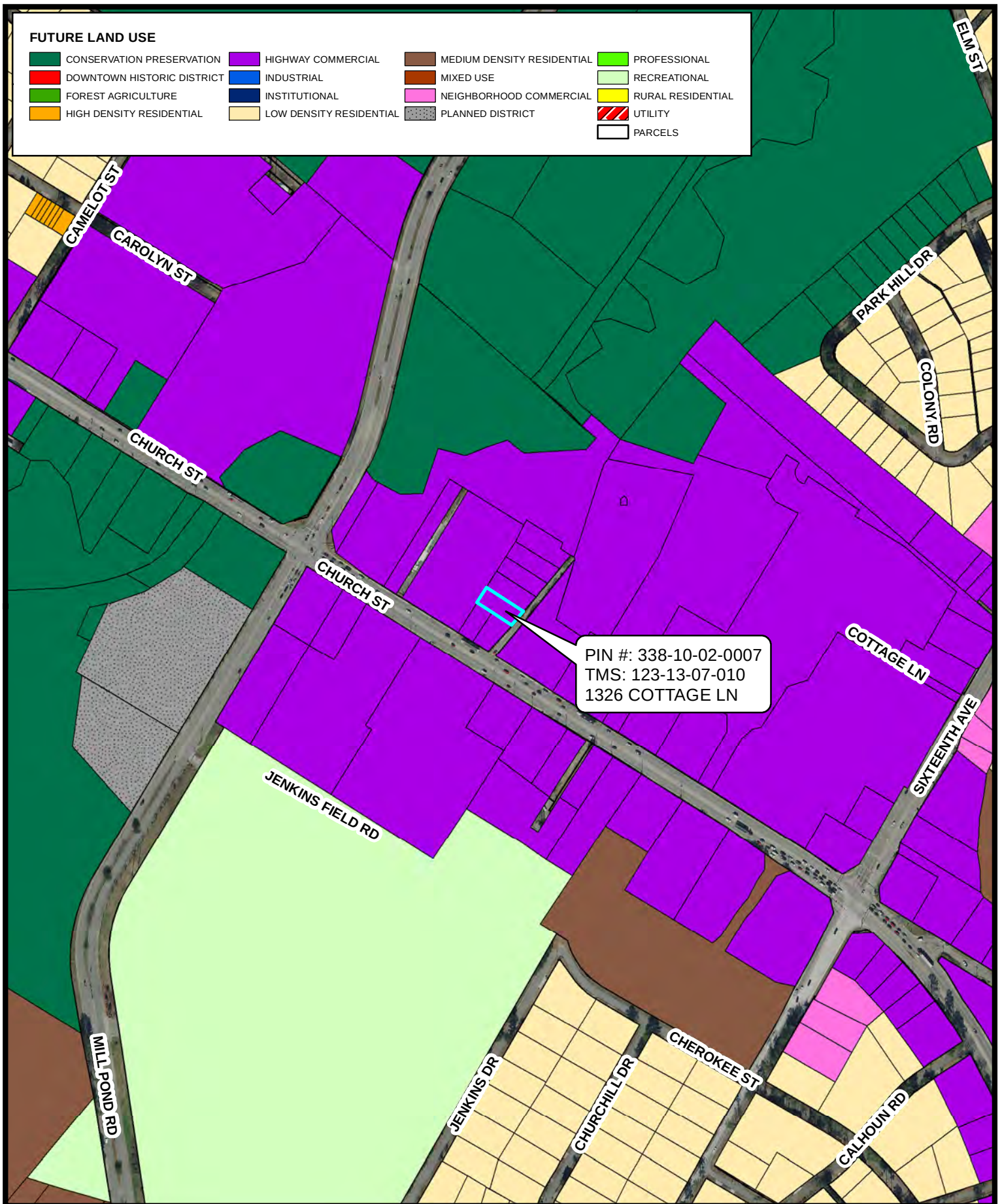
CHURCH ST

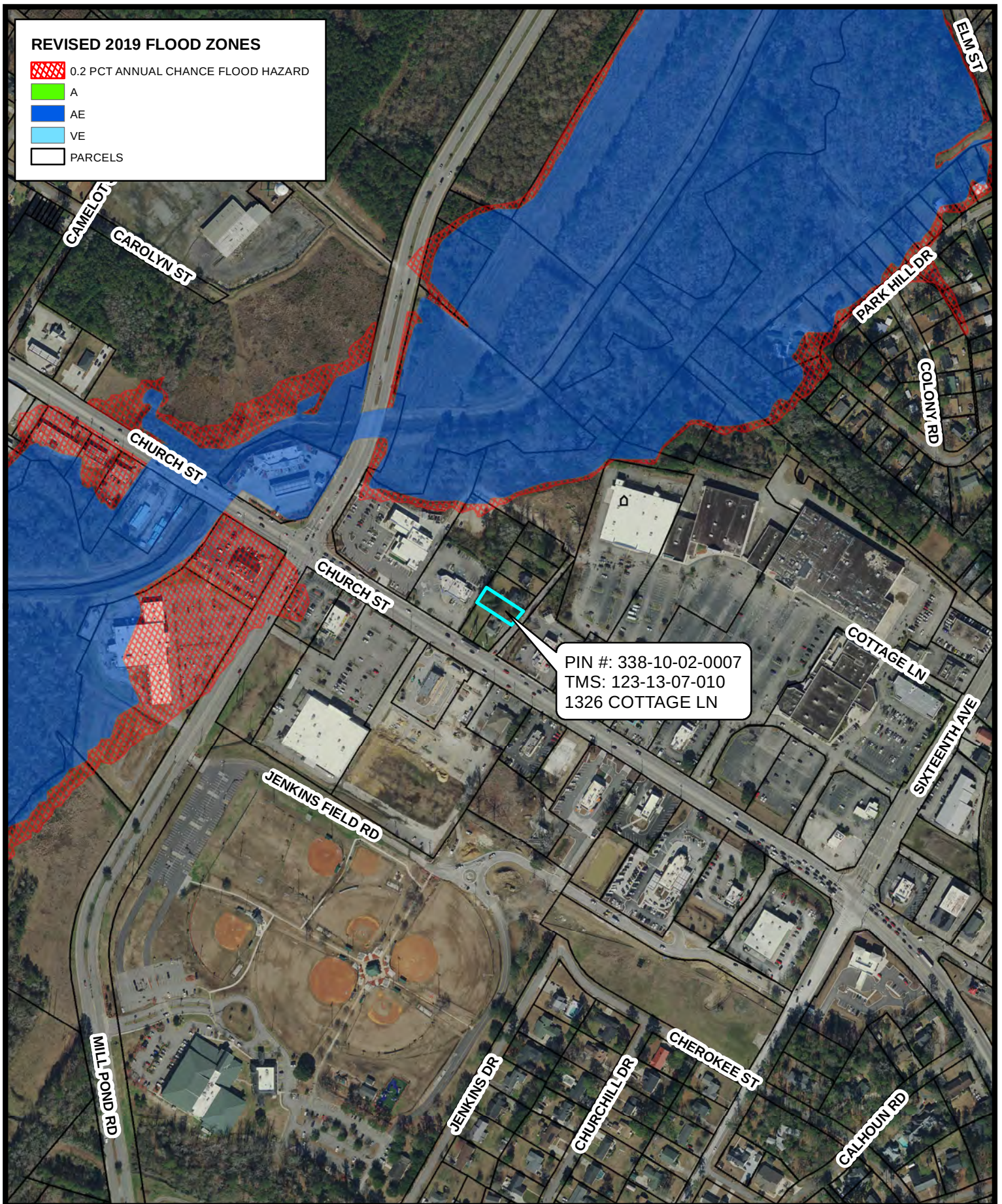
CHURCH ST















PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Instructions:

- Fill out annexation petition and application for a zoning map amendment
- Submit signed forms to City of Conway Planning & Development Department
Department Email: planning@conwaysc.gov
- Provide digital copy of deed and survey/plat with these forms, *if available*

TO THE HONORABLE MAYOR AND CITY COUNCIL OF CONWAY:

Pursuant to S.C. Code Ann. § 5-3-150(3) (1976, as amended)

We, the undersigned, being all owners of record of the real property described herein, petition the City of Conway to annex the subject property into the corporate limits of the City, in accordance with Section 5-3-150(3) of the S.C. Code of Laws.

PROPERTY INFORMATION:

LOCATION: Wright SD; LT 3 ADDRESS: 1326 Cottage Lane
PIN(s): 33810020007 ACREAGE: 0.196

PURPOSE OF ANNEXATION:

- ☐ Connection to City water / sewer
☒ Align with adjoining City development
☐ Other (please explain): _____

REQUESTED ZONING UPON ANNEXATION: _____

APPLICANT INFORMATION:

NAME(s) / ORGANIZATION: Jim White / Georgia Coastal Land LLC
MAILING ADDRESS: [REDACTED]
PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION (if different from Applicant):

NAME(S) Iva Dean Sessions Trustee
MAILING ADDRESS: [REDACTED]
PHONE: [REDACTED] EMAIL: [REDACTED]

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☒ NO

IF NOT: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.



PETITION FOR ANNEXATION

Staff Use Only

Received: _____
BS&A #: _____

Existing structures and/or uses of property

Are there any structures on the lot? ☐ YES ☒ NO

If yes, what type of structure is on the property? _____

What is the current use of the property? _____

Are there any building permits or development plans in progress or pending for the property? ☐ YES ☒ NO

If yes, what are the permit(s) or development plans for? _____

Does the property contain any of the following?

☐ Wetlands (a current valid wetland delineation may be required from the Army Corp of Engineers)

☐ Flood zone and/or Floodway

☐ Easements (e.g. access, utility, etc.). If so, what type of easement(s)? _____

Restrictive Covenants / Deed Restrictions

To your knowledge, is the subject property restricted by a private recorded covenant or deed restriction that is contrary to, conflicts with, or prohibits the proposed use of the land? ☐ YES ☒ NO

If yes, please explain and provide a copy of covenant and/or restriction. _____

Is the city a party to any deed restrictions or easements existing on the property? ☐ YES ☒ NO

If yes, please describe. _____

ACKNOWLEDGEMENT:

By signing this petition, the undersigned affirms:

- They are the sole and rightful owner(s) of the property;
- They are requesting voluntary annexation into the City of Conway;
- They understand that upon annexation, the property will be subject to all taxes, ordinances, and regulations of the City of Conway;
- They affirm that all information submitted is true and correct to the best of their knowledge.

SIGNATURES:

Tim White

Print Name

Tim White

Signature

1/6/2026

Date

Print Name

Signature

Date

Are all property owners represented in the signatures provided above? ☐ YES ☒ NO

If not, please attach additional pages for signatures if necessary, or a designation of agent (DOA) form.

If property is owned by a corporation, LLC or a trust, attach documentation showing authorized signatory.



Application for Zoning Map Amendment

Staff Use Only

Received: _____
BS&A #: _____

City of Conway Planning & Development Department
196 Laurel Street | P.O. Drawer 1075
Conway, South Carolina 29528

Phone: (843) 488-9888
www.conwaysc.gov
Department Email: planning@conwaysc.gov

DISCLAIMER: All applicable fees are due at the time of submission. If you receive a bill, invoice, or payment request from ANY source other than an official City email address, ending in conwaysc.gov, or via the BS&A online portal (bsaonline.com), do not respond or send payment. Instead, contact the City of Conway Planning & Development Department to verify its legitimacy.

Procedures for Zoning Map Amendments

1. All zoning map amendments shall follow the procedures set forth in *Article 13 – Administrative Agencies and Functions, Section 13.1.7*, of the City of Conway Unified Development Ordinance (UDO).
2. Applications may be submitted in person, at the City of Conway Planning & Development Department, located at 196 Laurel Street, Conway, SC 29526, or via email, at planning@conwaysc.gov
3. All fees are due at the time of submission, and are as follows:
 - Base zoning district amendment: \$250.00
 - Planned Development (PD) district: \$2,500.00
 - Planned Development (PD) amendment: \$500.00
4. **Incomplete applications will not be accepted.**
5. Applications for Planned Development (PD) and Mixed-Use (MU) districts shall include all information outlined in *Article 6 – Design Standards, Section 6.4*, of the UDO.
6. Requests that are inconsistent with the zoning designation on the City’s current future land use map or inconsistent with the zoning of surrounding properties may be required to request an amendment to the future land use map in addition to the request to amend the zoning map.
 - Amendments to the City’s future land use map require a 30-day public hearing notice
7. Planning Commission is required to hold a public hearing on the request and make a recommendation to City Council prior to adoption of an ordinance to amend the zoning map, in accordance with state law and city ordinance.
8. Planning Commission may defer a request to the following month’s Planning Commission meeting if the applicant or a representative is not present at the scheduled hearing date.

Applicant and Owner Acknowledgements

By signing this application, I/we acknowledge and understand that:

1. The request to amend the zoning map will be reviewed for compliance with the City’s Unified Development Ordinance (UDO) and Comprehensive Plan.
2. Approval of the request does not constitute approval of site plans, building permits, or other development approvals, even when provided as part of this application.
3. Any false or misleading statements may be grounds for denial or revocation.
4. All application fees are non-refundable.



Application for Zoning Map Amendment

Staff Use Only

Received: _____
BS&A #: _____

PROPERTY INFORMATION:

LOCATION: Wright SD; LT 3 ADDRESS: 1326 Cottage Lane

PIN(s): 33810020007 ACREAGE: 0.196

CURRENT ZONING CLASSIFICATION: Parcel

COMPREHENSIVE PLAN 2035 FUTURE LAND USE: Highway Commercial

REQUESTED ZONING CLASSIFICATION: Highway Commercial

IS AN AMENDMENT TO THE FUTURE LAND USE MAP PROPOSED WITH THIS REQUEST ☐ YES ☒ NO

DOES THE PROPERTY CONTAIN ANY OF THE FOLLOWING:

☐ FLOOD ZONE / FLOOD WAY ☐ WETLANDS ☐ EASEMENTS ☐ RESTRICTIVE COVENANT/DEED RESTRICTION

APPLICANT INFORMATION:

NAME(S) / ORGANIZATION: Tim White / Gator Coastal Land LLC

MAILING ADDRESS: [REDACTED]

PHONE: [REDACTED] EMAIL: [REDACTED]

PROPERTY OWNER INFORMATION *(if different from applicant):*

NAME(S): Iva Jean Sessions Trustee

MAILING ADDRESS: [REDACTED]

PHONE: [REDACTED] EMAIL: [REDACTED]

IS THE APPLICANT THE PROPERTY OWNER? ☐ YES ☒ NO

IF NO: Please provide a Power of Attorney or submit a signed Designation of Agency (DOA) form.

IF PROPERTY IS OWNED BY A CORPORATION, LLC, OR TRUST, ATTACH DOCUMENTATION SHOWING THE AUTHORIZED SIGNATORY.

SIGNATURES:

Tim White

Print

Tim White

Signature

1/6/2026

Date

Print

Signature

Date

Attach additional pages for signatures, if necessary.

THE APPLICANT OR A REPRESENTATIVE MUST BE PRESENT AT THE MEETING.

DATE: FEBRUARY 17, 2026
ITEM: V.E.

ISSUE:

First reading of Ordinance #2026-03-16 (G), an ordinance authorizing the relinquishment of an existing waterline easement and the acceptance of a new 30-foot-wide waterline easement associated with the relocation and upsizing of a City of Conway water transmission line related to Santee Cooper's substation project, owned by the South Carolina Public Service Authority (Santee Cooper) and identified as PINs 369-00-00-0050, 369-00-00-0027 and 369-00-00-0028.

BACKGROUND:

Santee Cooper constructed a new electrical substation to support increased growth in the area. An existing City of Conway waterline conflicted with the substation footprint and was relocated. During relocation, the City upsized the waterline to a 30-inch transmission main to improve system capacity and reliability.

The relocated 30-inch water line has been installed and is currently operational. As a result, a portion of the existing waterline easement is no longer needed, and a new easement is required for the relocated waterline.

RECOMMENDATION:

Approve first reading of Ordinance #2026-03-16 (G).

ORDINANCE #2026-03-16 (G)

**AN ORDINANCE AUTHORIZING THE RELINQUISHMENT OF AN EXISTING
WATERLINE EASEMENT AND THE ACCEPTANCE OF A NEW WATERLINE
EASEMENT FROM THE SOUTH CAROLINA PUBLIC SERVICE AUTHORITY
(SANTEE COOPER)**

WHEREAS, the City of Conway is a municipality duly organized and existing under the laws of the State of South Carolina; and

WHEREAS, the City of Conway previously obtained a waterline easement across property owned by the South Carolina Public Service Authority (Santee Cooper), identified as PINs 369-00-00-0050, 369-00-00-0027, and 369-00-00-0028, for the purpose of operating and maintaining a City waterline; and

WHEREAS, Santee Cooper constructed a new electrical substation to accommodate increased growth in the area, requiring the relocation of the existing City waterline; and

WHEREAS, the City of Conway relocated the waterline and upsized it to a 30-inch transmission main, which has been installed and is currently operational; and

WHEREAS, a portion of the existing waterline easement is no longer necessary for City use and should be formally relinquished; and

WHEREAS, Santee Cooper has granted to the City of Conway a new 30-foot-wide waterline easement across the above-referenced parcels for the relocated waterline, as more particularly described on the attached easement and plat; and

WHEREAS, it is in the best interests of the City of Conway and its citizens to relinquish the existing easement no longer needed and accept the new waterline easement; Therefore be it

ORDAINED, by Conway City Council, in Council duly assembled, that the City of Conway does hereby relinquish and release the portion of the existing waterline easement no longer required by the City, as more particularly described in the partial release of easement document, which is incorporated herein by reference; and be it further

ORDAINED, that the City of Conway does hereby accept the new 30-foot-wide waterline easement granted by the South Carolina Public Service Authority (Santee Cooper) for the relocated 30-inch waterline, as more particularly described in the utility easement and associated plat, which are incorporated herein by reference; and be it further

ORDAINED, that the City Administrator is hereby authorized to execute any and all documents necessary to effectuate the relinquishment and acceptance of the referenced easements.

EFFECTIVE DATE: This ordinance shall become effective as of the date of the final reading of this Ordinance.

RATIFIED BY CITY COUNCIL, duly assembled, this _____ day of _____, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

William M. Goldfinch IV, Council Member

Julie Ann Hardwick, Council Member

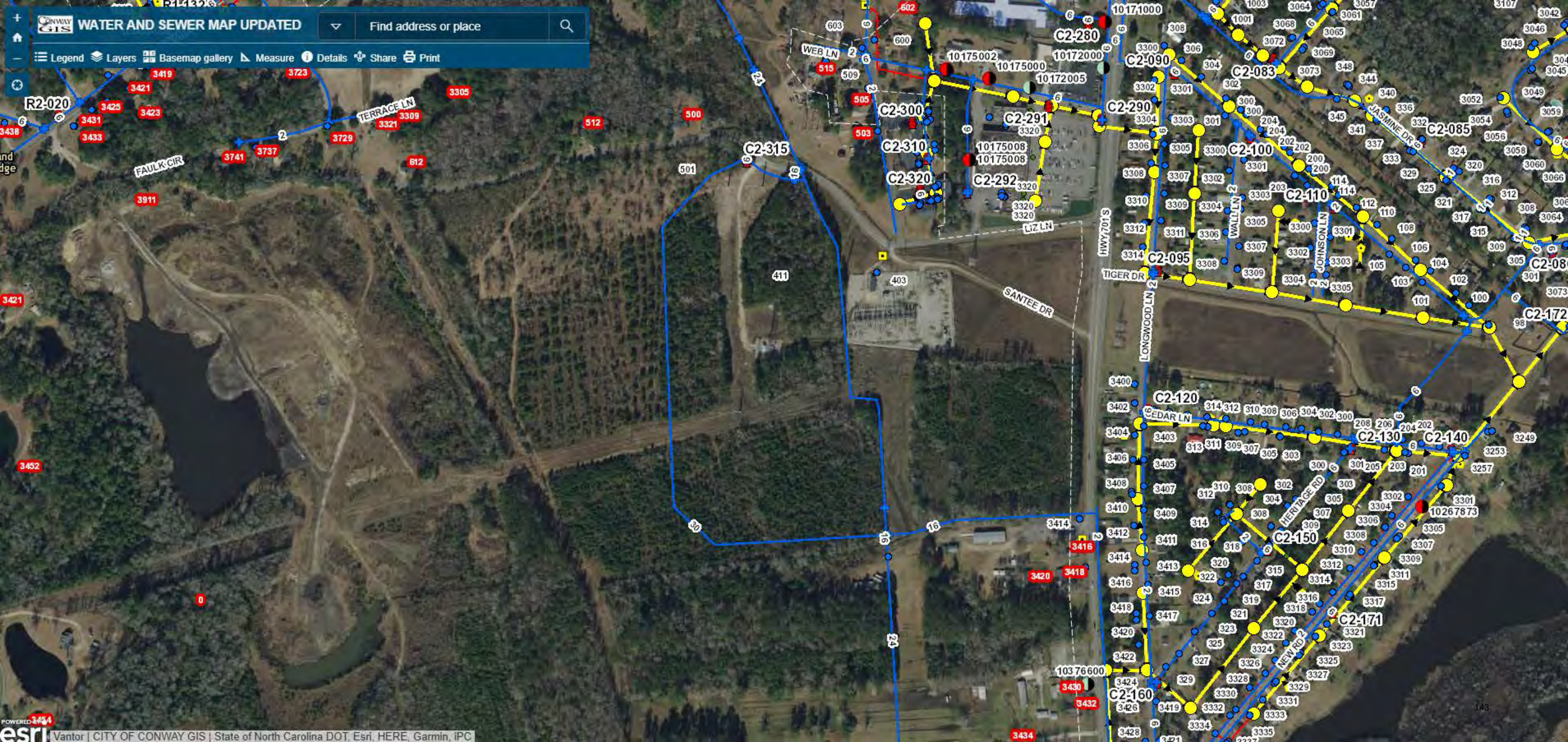
Justin Jordan, Council Member

Larry A. White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: _____

Final Reading: _____



STATE OF SOUTH CAROLINA)
)
COUNTY OF HORRY)

**PARTIAL
RELEASE OF TRANSMISSION
LINE EASEMENT**

THIS RELEASE OF TRANSMISSION LINE EASEMENT is made this _____ day of _____, 2026, by the South Carolina Public Service Authority (“Authority”), Post Office Box 2946101, Moncks Corner, South Carolina 29461, to and for the benefit of City of Conway.

Whereas, City of Conway (“City”) was granted a perpetual Twenty (20’) foot wide easement from James P Creel & Wilma Faye Cooper by instrument recorded in the Office of the Register of Deeds for Horry County, South Carolina, in Book 1465, at Page 693. Reference is hereby made to said instrument for a more complete description of the easement; and

Whereas, South Carolina Public Service Authority acquired title to the property by deed recorded in the Register of Deeds for Horry County, South Carolina, in Deed Book 3077, at Page 977 and in Deed Book 4387, at Page 6, and it is the present owner of the tracts of land which are encumbered by the above referenced easement. This tract is known as PIN #36900000027 and PIN #36900000050; and

Whereas, the City of Conway is releasing only a portion of the easement, shown as “Existing Waterline Easement to be Relinquished” and “further depicted on Authority Drawing No. 5073-D02-5500 and attached as Exhibit “A”; and

NOW THEREFORE, KNOW ALL MEN BY THESE PRESENTS that City of Conway does hereby release and terminate all that certain portion of its easement as referenced above and does hereby remise, release and forever quitclaim unto South Carolina Public Service Authority its successors and assigns forever, the portion of the easement described herein, preserving and retaining all rights it has in the remaining easement and right-of-way.

TO HAVE AND TO HOLD unto South Carolina Public Service Authority its successors and assigns forever.

IN WITNESS WHEREOF, the CITY OF CONWAY has caused these presents to be executed in its corporate name, by its proper officer duly authorized as of the date set forth above.

Signed, Sealed and Delivered
in the Presence of:

CITY OF CONWAY

Print witness #1

By: _____
Name: _____
Its: _____

Print witness #2

STATE OF SOUTH CAROLINA)
)
COUNTY OF HORRY)

I, _____, the undersigned Notary Public, does certify that ____
_____, as _____, of City of Conway personally
appeared before me and having satisfactorily proven to be the person whose name is subscribed
above, has acknowledged the due execution of the within Relinquishment.

Witness my official seal this _____ day of _____, 2026.

Signature of Notary Public
Notary Public for South Carolina
My Commission Expires: _____

STATE OF SOUTH CAROLINA)
)
COUNTY OF HORRY) UTILITY EASEMENT

KNOW ALL MEN BY THESE PRESENTS, THAT I SOUTH CAROLINA PUBLIC SERVICE AUTHORITY in consideration of the sum of One Dollar, receipt of which is hereby acknowledged, have granted, bargained, sold and released, and by these presents do grant, bargain, sell and release, unto the CITY OF CONWAY, its successors and assigns, shown as "New Waterline Easement" as shown on Authority Drawing Number 5073-D02-5500 on a plat prepared by: South Carolina Public Service Authority, entitled: A 30' Waterline Easement Exhibit Showing The Proposed Waterline Location on the Lands of SCPSA Surveyed at the Request of SCPSA and dated: 5/13/2024, as shown on the attached Exhibit "A" below.

The easement herein granted includes, but is not necessarily limited to, the right and privilege of the grantee, its successors and assigns, to construct, maintain, operate, and repair any and all useful, proper, and necessary facilities and improvements for the purpose of conveying, pumping, transporting, and supplying residential, commercial, and/or industrial water and/or for the purposes of conveying, pumping and transporting sanitary sewage and industrial wastewaters and to make such relocation, changes, renewals, substitutions, replacements, and additions of or to the same from time to time as the grantee may deem desirable; the right at all times to cut and keep clear of said easement any and all trees, vegetation, and obstructions that might, in the opinion of the grantee, endanger, inure, or interfere with the proper operation, maintenance, or repair of said utility facilities or their appurtenances, or to interfere with their proper operation or maintenance, together with the right of reasonable ingress and egress in, to, over and across the land(s) of the grantor referred to above for the purpose of exercising the rights or privileges herein

granted; provided, nevertheless, that the failure of the grantee to exercise any of the rights and privileges herein grantee shall not be construed as a waiver or abandonment.

Said utility easement having been offered and said being accepted by action of Conway City Council at its meeting on the _____ day of the month of _____, 2026.

TO HAVE AND TO HOLD all and singular the premises before mentioned for the purposes granted into the said grantee, its successors and assigns forever; **subject, however, to the foregoing exceptions, provisions and reservations, and to the following conditions and covenants of which the grantee binds itself and its successors and assigns, and which covenants and conditions shall run with said Easement in perpetuity:**

(1) The grantee shall be responsible for all loss, cost, damage, and expense, (including judgments, court costs and attorneys' fees) and from all claims and demands therefore from any and all persons whomsoever, including from grantor, its employees or third parties, arising from or in any way connected with the exercise of any rights or privileges granted or conferred by this instrument.

(2) The grantee will be responsible for locating all underground utilities prior to commencement of work. If, during trenching or boring operations, the grantee severs any transmission counterpoise (ground wire running parallel within the right-of-way, The grantee will leave the severed ends exposed above ground, mark the location with flagging, and notify the Santee Cooper transmission crew supervisor at (843) 761-8000 ext. 5942.

(3) The grantee, its successors-in-title and/or assigns hereby agrees and acknowledges that, other than the Improvements permitted herein, no additional Improvements shall be allowed within the bounds of the Easement, including, but not limited to, any structures, to include sheds and fences, utility and wastewater infrastructure, storage, trailers, elevation changes or any

encroachment that diminishes the grantor's ability to traverse the Easement or repair and maintain its facilities without the written consent of the grantor.

(4) The grantee shall construct the Improvements in such a manner as to withstand the traversing of the heavy equipment as required by the grantor for the routine work it performs to its nearby electric facilities within the Easement.

(5) All occupancy or use by the grantee of any part of the Easement shall be at the sole expense of the grantee, which will not assign or in any way alienate any rights or privileges granted in this Agreement without the prior written consent of grantor.

(6) The grantor reserves all rights it may have in and to the Easement by virtue of conveyance, statute, regulation, law, or equity.

(7) The grantee shall properly drain said right-of-way so that no water will collect or stand thereon, be ponded thereby or discharged therefrom so as to endanger or damage any property of the grantor, its lessees, adjacent landowners, or of any and all persons claiming or to claim by, through or under them or any of them.

(8) The grantee shall relocate any markers destroyed by its work, with information being furnished to the grantor so that corrections can be made on drawings.

(9) The grantee agrees that no use of the right-of-way shall be such as to endanger health, create a nuisance, or otherwise be incompatible with the overall use of the property as it now exists or may be changed in the future or inconsistent with the Easement as it now exists or may be changed in the future in accordance with new amendments, modifications or revisions of the Easement.

(10) The grantee shall notify Santee Cooper's encroachment supervisor at (843) 761-8000 ext. 5918 and Santee Cooper's property management supervisor at (843) 761-8000 ext. 5221, two

(2) weeks prior to construction within the right-of-way. The grantee shall notify Santee Cooper's encroachment supervisor at (843) 761- 8000 ext. 5918 upon completion of the Improvements.

(11) The grantee agrees to caution all persons associated with the construction or maintenance of the Improvements of the very high voltage associated with the overhead transmission lines within the right-of-way. No booms, cranes or other equipment shall be brought closer than OSHA's standards to the energized conductor

(12) The grantee agrees not to plant any vegetation within the right-of-way without prior written consent from Santee Cooper

(13) The grantee acknowledges that the construction and maintenance of the Improvements shall not raise the ground elevation within the right-of-way to such an extent as to violate the clearance requirements set forth by the National Electrical Safety Code and Santee Cooper. The original grade will be restored following construction. Any underground Improvements which cross the right-of-way in a perpendicular manner must be buried a minimum of thirty-six (36") inches deep within the right-of-way. Any underground Improvements which cross the area referred to as "Future Railway" in Exhibit A must be buried a minimum of twelve (12') feet deep. The Grantee agrees to mark the underground Improvements in a clear, conspicuous and permanent manner at both edges. No part of any perpendicular Improvements will be constructed within fifty feet (50') of a pole, guy wire, or guy wire anchor. The grantee shall not impede access to any pole, guy or anchor at any time during construction or maintenance. The grantee agrees not to stockpile or store any materials or equipment within the boundaries of the right-of-way.

(14) Santee Cooper shall not be responsible for any property damage to the Improvements caused by any work it performs within the right-of-way. In the event grantee wishes to replace any part of the Improvements that have been removed or disrupted, the grantee shall obtain Santee

Cooper's written consent, and, if so granted, shall perform such work at grantee's sole cost and expense and shall diligently pursue any necessary repairs in an expedient manner so as to not disrupt Santee Cooper's ability to traverse or utilize the Easement.

TO HAVE AND TO HOLD, all and singular, the said right-of-way and the rights hereinabove granted, unto the said City of Conway, its successors and assigns forever.

IN WITNESS WHEREOF, Grantor(s) has duly executed this Agreement this _____ day of _____, 2026.

Signed, sealed and delivered in the presence of:

South Carolina Public
Service Authority

Print Name: _____

By: _____

Its: _____

Print Name: _____

STATE OF SOUTH CAROLINA

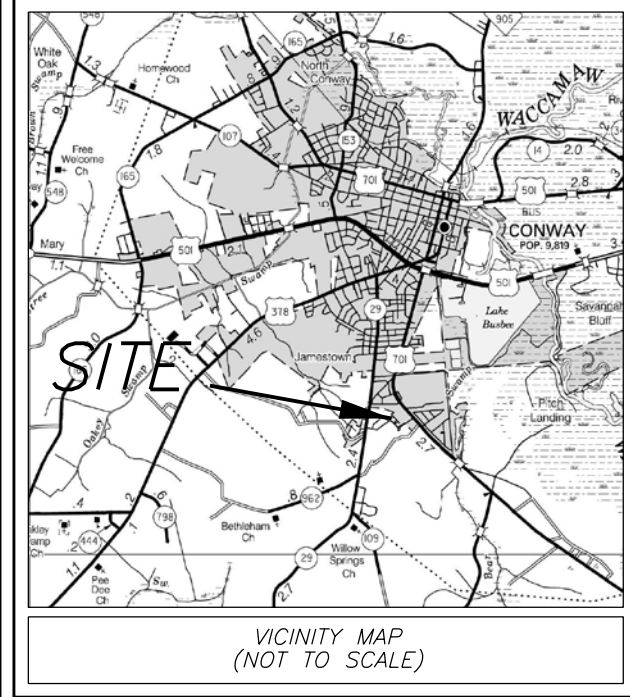
ACKNOWLEDGMENT

COUNTY OF _____

I, _____, the undersigned Notary Public, do certify that _____, as _____ of the South Carolina Public Service Authority, personally appeared before me and having satisfactorily proven to be the person whose name is subscribed above, has acknowledged the due execution of the within easement.

Witness my official seal this _____ day of _____, 2026.

Signature of Notary Public
Notary Public for South Carolina
My Commission Expires: _____



EASEMENT A 1.402 AC. ±
EASEMENT B 0.758 AC. ±
EASEMENT C 0.089 AC. ±
TOTAL AREA 2.249 AC. ±

SOUTH CAROLINA
PUBLIC SERVICE AUTHORITY
369-00-00-0028
DEED BOOK 4387, PAGE 6.

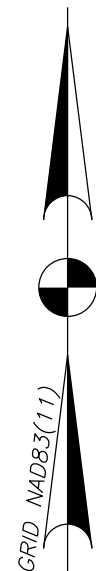
SOUTH CAROLINA
PUBLIC SERVICE AUTHORITY
369-00-00-0027
DB, 3077, PG. 977
PLAT BOOK 212, PAGE 151

JESSE E. RABON
369-13-02-0002
DEED BOOK 533, PAGE 691

JOHNSON STREET
PUBLIC 50' R/W

CURVE TABLE					
CURVE	RADIUS	ARC	CHORD	CHORD BEARING	DELTA ANGLE
C1	239.52'	9.21'	9.21'	S 44°20'38" E	002° 12' 12"
C2	5371.09'	30.01'	30.01'	S 02°37'11" E	000° 19' 12"
C3	1510.30	30.00'	30.00'	S 83°32'17" W	026° 34' 33"

LINE TABLE		
LINE	BEARING	DISTANCE
L1	S 43°14'30" E	22.19'
L2	S 63°35'23" W	24.00'
L3	S 41°59'30" W	271.83'
L4	S 48°00'30" E	208.36'
L5	N 72°13'34" E	180.97'
L6	S 72°13'34" W	147.00'
L7	S 79°13'09" W	69.66'
L8	N 48°00'30" W	233.60'
L9	N 41°59'30" E	289.98'
L10	N 63°35'23" E	117.88'
L11	N 43°14'30" W	11.82'
L12	S 80°05'33" W	16.41'
L13	S 63°35'23" W	140.13'
L14	N 63°35'23" E	42.71'
L15	N 03°00'30" W	86.95'
L16	N 03°00'30" W	32.69'
L17	S 86°44'18" W	54.31'
L18	S 04°15'42" E	5.58'
L19	S 79°13'09" W	40.26'
L20	N 04°15'42" W	10.15'
L21	N 79°13'09" E	54.67'
L22	S 75°38'21" W	30.60'



REFERENCES:
1. SEE PLAT TITLED: PLAT SHOWING THREE TRACTS OF LAND SURVEYED FOR SOUTH CAROLINA PUBLIC SERVICE AUTHORITY, DATED MARCH 17, 2021, SURVEYED BY PARKER LAND SURVEYING.

- NOTES:
- TAX MAP NO. (PARENT TRACT): 369-00-00-0028
 - ACCORDING TO S.C. FLOOD INSURANCE RATE MAP, COMMUNITY PANEL NO. 45051C0529K, EFFECTIVE DATE 12/16/21, HORRY COUNTY, IT IS MY OPINION THAT THE PROPERTY SHOWN ON THIS PLAT IS LOCATED IN FLOOD HAZARD ZONE "X" AREAS DETERMINED TO BE OUTSIDE THE 0.2% ANNUAL CHANCE FLOODPLAIN.
 - ALL BEARINGS AND COORDINATES SHOWN ON THIS SURVEY ARE BASED ON SOUTH CAROLINA STATE PLANE COORDINATE SYSTEM (NAD83). DISTANCES SHOWN ARE GROUND DISTANCES, NOT GRID DISTANCES. TO CONVERT GROUND DISTANCES TO GRID DISTANCES MULTIPLY BY 0.999796939.
 - THIS SURVEY IS VALID ONLY IF THE PRINT OF SAME HAS THE ORIGINAL SIGNATURE AND EMBOSSED SEAL OF THE LAND SURVEYOR.
 - A TITLE SEARCH WAS NOT PERFORMED BY THIS SURVEYOR AT THE TIME OF THIS SURVEY.
 - THE PROPERTY PLATTED HEREON IS SUBJECT TO ALL EASEMENTS AND RESTRICTIONS OF RECORD.
 - SUBSURFACE AND ENVIRONMENTAL CONDITIONS WERE NOT EXAMINED OR CONSIDERED AN ELEMENT OF THIS SURVEY. NO STATEMENT IS MADE REGARDING THE EXISTENCE OF UNDERGROUND OR OVERHEAD CONTINGENCIES THAT MAY AFFECT THE USE OF THIS PROPERTY.
 - THE 30' WATERLINE EASEMENT SHOWN HEREON ARE FOR THE PURPOSE OF THE NON-EXCLUSIVE INSTALLATION, MAINTENANCE, REPAIR AND/OR REPLACEMENT OF UTILITIES. OWNERSHIP AND MAINTENANCE OF SUCH EASEMENT SHALL BE THE COLLECTIVE RESPONSIBILITY OF THE LOT OWNERS/UTILITY PROVIDER(S) AND NOT HORRY COUNTY.
 - THIS 30' EASEMENT IS BEING RELOCATED FOR THE PURPOSE OF INSTALLATION, MAINTENANCE, REPAIR, AND/OR REPLACEMENT OF UTILITIES AND WILL BE OWNED BY THE CITY OF CONWAY.
 - PER THE TREE PRESERVATION ORDINANCE, NO PROTECTED OR LANDMARKED TREES SHALL BE REMOVED WITHOUT WRITTEN APPROVAL OF THE CITY ARBORIST AND THE ISSUANCE OF A TREE REMOVAL PERMIT BY THE CITY OF CONWAY.
 - DEED REFERENCE: D.B. 4387, PG. 6.

CERTIFICATE OF OWNERSHIP AND DEDICATION
THE UNDERSIGNED HEREBY ACKNOWLEDGE THAT I AM (WE ARE) THE OWNER(S) OF THE PROPERTY SHOWN AND DESCRIBED HEREON, AND THAT I (WE) HEREBY ADOPT THIS (PLAN ON DEVELOPMENT) PLAT WITH MY (OUR) FREE CONSENT AND THAT I (WE) HEREBY DEDICATE ALL ITEMS AS SPECIFICALLY SHOWN OR INDICATED ON SAID PLAT.

SIGNATURE: _____

NAME(PRINT): _____ DATE: _____

SIGNATURE: _____

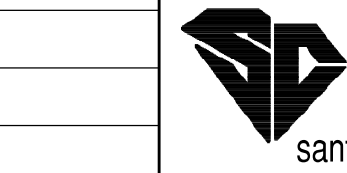
NAME(PRINT): _____ DATE: _____

PRELIMINARY

JOHN R. TYLER, Sr. et al,
369-13-03-0004
PLAT BOOK 230, PAGE 327



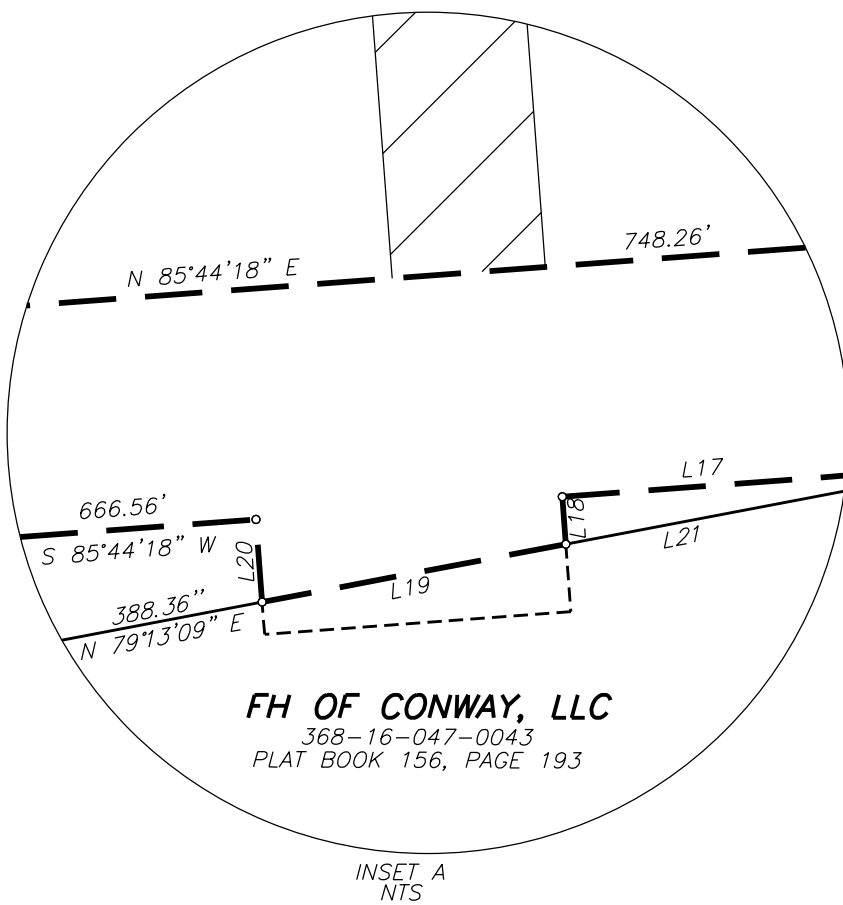
REV.	DATE	DESCRIPTION	DRAFTER	CHECKED	PROJ. NO.	CHECKED	HAIRFIELD	DRAFTER	MCCREA	DATE	5/13/2024	SCALE	1" = 100'	SHEET	1 OF 1



A 30' WATERLINE EASEMENT EXHIBIT SHOWING THE PROPOSED WATERLINE LOCATION ON THE LANDS OF S.C.P.S.A. SURVEYED AT THE REQUEST OF S.C.P.S.A.

APPROVED

CHECKED	HAIRFIELD	SURVEY
DRAFTER	MCCREA	
DATE	5/13/2024	
SCALE	1" = 100'	SHEET 1 OF 1
DRAWING NO.	5073-D02-5500	



FIELD SURVEY DATE: 3/6/2024
HORRY COUNTY, SOUTH CAROLINA



STAFF REPORT

Non-Exclusive Franchise Agreement

COUNCIL MTG DATE: February 17, 2026	AGENDA ITEM: VI.A.
ORDINANCE: #ZA2026-03-16 (H)	AGENDA SECTION: Consideration
ISSUE: Consideration of approval for an extension to the non-exclusive franchise agreement issued to Randall's Culinary Creations Mobile Food Truck at the parking lot located at 7 Elm Street.	
APPLICANT(S): Benny Randall, Randall's Culinary Creations	PIN(s): 367-08-01-0001
BACKGROUND: Mr. Benny Randall was granted a Franchise Agreement for his Mobile Food Vending Unit, by City Council for a period of one year. The Franchise Agreement went into effect on January 27, 2025 and expired on January 27, 2026, for the parking lot located at 7 Elm Street (PIN 367-08-01-0001). Mr. Randall would like to request an extension of the original Franchise Agreement, which per the General Code requires a new ordinance. Sec. 1-3-21-Ordinances Required states: "grant, renew or extend franchises, licenses or rights in public streets or public property, and close abandoned streets". Randall's Culinary Creations has a valid City of Conway Business License and two (2) approved Private Property Mobile Food Vending Permits for Horry County Government & Justice Center as well as Mercy Baptist Church. The approved hours of operation for the Franchise Agreement were 12:00 pm to 9:00 pm or 7:00 am to 7:00 pm Monday through Friday. Mr. Randall would like to add some weekends to the previously approved schedule and extend the life of the Franchise Agreement.	
RECOMMENDED ACTION: Conduct a thorough review of the request and make an informed decision if the franchise agreement should be extended.	
ATTACHMENTS: Mobile Food Vending Application; Site Plan; Insurance Information	

ORDINANCE #ZA2026-03-16 (H)

**AN ORDINANCE EXTENDING A NON-EXCLUSIVE FRANCHISE AGREEMENT
BETWEEN THE CITY OF CONWAY AND BENNY RANDALL, D.B.A. RANDALL'S
CULINARY CREATIONS, TO OPERATE A MOBILE VENDING UNIT IN THE PARKING
LOT LOCATED AT 7 ELM STREET.**

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF CONWAY:

WHEREAS the downtown area of the City of Conway has numerous business offerings including restaurants, shops and a theater, and attracting new types of entertainment for residents and visitors is a priority; and

WHEREAS food truck services have been successful in other communities to add vibrancy in downtown districts; and

WHEREAS the City of Conway owns the parking lot located at 7 Elm Street; and,

WHEREAS the Marina area of the City of Conway is an easy walking distance to many civic and business offices of the City of Conway, the Chamber of Commerce, and the general public; and,

WHEREAS the Mobile Food Vending Unit would not be within 150 feet from a principal public entrance to any food service business; and,

WHEREAS the City Council sees the benefit in providing a non-exclusive Franchise Agreement to allow mobile food service to be conducted on public property at the parking lot located at 7 Elm Street; Therefore:

BE IT ORDAINED, that the Conway City Council in council duly assembled does hereby approve the extension of the attached non-exclusive Franchise Agreement between the City of Conway and Randall's Culinary Creations, effective this ____ day of ____, 2026.

RATIFIED BY CITY COUNCIL, duly assembled, this ____ day of _____, 2026.

Barbara Jo Blain, Mayor

Beth Helms, Mayor Pro Tem

Amanda Butler, Council Member

William M. Goldfinch IV, Council Member

Julie Ann Hardwick, Council Member

Justin D. Jordan, Council Member

Larry White, Council Member

ATTEST: Alicia Shelley, City Clerk

First Reading: _____

Final Reading: _____



CITY OF CONWAY

FRANCHISE AGREEMENT

1. This agreement is being made between the City of Conway, hereinafter referred to as “City” and Benny L. Randall d/b/a Randall’s Culinary Creations, hereinafter referred to as “Vendor” for the operation of a food truck service and the use of City owned parking lots and parking spaces to be used for said services. The agreement shall be effective beginning on **January 27, 2025** and continuing for a period of **one (1) year**, expiring on **January 27, 2026**. This agreement shall be reviewed periodically by the City to assure that the health, safety and welfare of its citizenry are adequately protected. If it is determined that modifications are required, the City may request said amendments at that time. **This agreement may be terminated upon 30 days’ written notice by either party.**
2. The authorized contact for the City shall be the **City Administrator** or his designee.
3. Approved food truck hours of operation are **12:00pm-9:00pm** or **7:00am-7:00pm Monday through Friday**.
4. Approved food truck locations are as follows (only one truck allowed in each location at a time):
 - a. **7 Elm Street (PIN# 367-08-01-0001)**
5. Vendor shall remit a payment of **\$50 as a Franchise Fee** upon execution of this Franchise Agreement. Failure to remit said payment in a timely manner may result in the immediate termination of this agreement.
6. **Payments** - All payments shall be made payable to the City of Conway. Payment may be hand delivered or mailed to the **City of Conway Planning & Development**, 196 Laurel Street, Conway, SC 29526.
7. The City authorizes Vendor to offer food truck services within the City of Conway. All locations must be pre-approved by the City.
8. **Vendor may not operate at any City approved festival or special event without prior written permission from the event organizer.**
9. Vendor may operate only **one (1) food truck** under this Franchise Agreement. Any additional food trucks shall be approved by the City prior to utilization.
10. Vendor shall post the franchise permit at all times while operating.
11. Vendor shall obtain and carry at all times any SCDHEC (South Carolina Department of Health and Environmental Control) food handler and / or other applicable health safety licenses.
12. **If Vendor wants to operate on public property or on private property under a special event permit, he must obtain notarized written permission from the owner to conduct business.**

13. Vendor shall obtain and carry at all times a valid **City of Conway Business License**. Vendor must obtain an annual **Mobile Food Vending Permit**. Food truck permits issued under this ordinance will be valid beginning on enactment date of this Ordinance until April 30 of the ensuing year. In the following year, a permit shall be from May 1 until April 30 of the ensuing year.
14. Vendor is subject to a background check by the Conway Police Department prior to issuance of a zoning permit.
15. Vendor shall provide a list of the items to be sold and shall be limited to selling food and non-alcoholic beverages.
16. All sales shall be made to pedestrians and bikers only. Vendor may not solicit or conduct business with persons in motor vehicles.
17. Vendor may use only music or bells to attract attention but shall not violate the noise ordinance regulations (City of Conway Code of Ordinances *Sec. 9-1-21*).
18. Vendor shall not operate in any manner that blocks, obstructs or restricts the free passage of vehicles or pedestrians in the lawful use of the sidewalks or highways or ingress or egress to the abutting property. Vendor shall maintain, at a minimum, four feet of passage for pedestrians and shall follow regulations of the Americans with Disabilities Act and the American National Standards Institute.
19. Vending unit shall be in compliance with all American National Standards Institute regulations.
20. The vendor shall be actively engaged in vending operations at all times while occupying any property.
21. Vendor shall pick up all refuse generated by his operation before the vending unit is moved.
22. Vending unit must be self-contained with a waste receptacle.
23. Vendor shall not discharge items from any vending unit onto the sidewalk, gutter, storm inlets, streets, or planters.
24. The vendor shall keep the area surrounding their vending unit maintained in a safe, clean, orderly, and sanitary condition at all times. Mats shall be used in the food preparation area to keep the area clean.
25. No tables, chairs, fences, shade structures, or other site furniture shall be permitted.
26. Exterior storage or display of refuse or surplus equipment, materials, goods, wares, or merchandise associated with the vending unit is prohibited.
27. Vendor shall display, in plain view and at all times, current permits and licenses in or on the vending unit.
28. Any damage to landscape or vegetation caused by the mobile vending operation shall be immediately compensated by Vendor upon request of the City.

29. Vendor shall provide the location of an appropriate storage facility where the vending unit is stored when not in operation.
30. Vendors shall not store, park, or leave any vending unit overnight on any public property.
31. Vendor must provide a current Certificate of Insurance, with the City listed as "additional insured," for no less than the following amounts of coverage:
- a. Each Occurrence: \$1,000,000
 - b. Personal Injury: \$1,000,000
 - c. Property Damage: \$100,000
 - d. General Aggregate: \$2,000,000
32. Such policy or policies shall include an endorsement to the effect that the City cannot be removed as an additional insured and that the policy cannot be canceled, altered or modified without notice thereof being served upon the City at least 30 days prior to the date of cancellation.
33. If, at any time during the life of this Franchise Agreement, Vendor allows said insurance policy to lapse or to become ineffective, or if any insurer thereof becomes unable financially to respond to the obligation thereof, or such policy is allowed to terminate in whole or in part, then at the same time, the permit of Vendor shall ipso facto become null and void.
34. This Franchise Agreement and any of the terms and conditions thereof, including those relating to location and scheduling, are subject to the temporary suspension or modification by the City as necessary for the City to exercise and maintain control over its streets and public ways. Any such action shall be within the City's sole discretion without recourse by Vendor. The City will endeavor to provide advance notice of such action but shall not be bound to do so. The reasons for such action may include (by way of example and not limitation), the following:
- a. Closing of streets for repairs
 - b. Closing of streets for parades and festivals
 - c. Changes in parking configuration

I understand that this Franchise Agreement is for Mobile Food Truck services only.  **(Initial)**

VENDOR will indemnify and hold harmless the CITY and its agents and employees from and against all claims, damages, losses and expenses, including attorney's fees arising out of or resulting from the performance of the WORK, provided that any such claims, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, injury to or destruction of, tangible property including the loss of use resulting there from and is caused in whole or in part by any negligent or willful act or omission of the VENDOR, and anyone directly or indirectly employed by him or anyone for whose acts any of them may be liable.

In any and all claims against the CITY or any of its agents or employees by an employee of the VENDOR, and anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable, the indemnification obligation shall not be limited in any way on the amount or type of damages, compensation or benefits payable by or for the VENDOR under the worker's compensation acts, disability benefit acts, or other employee benefits acts.

Randall's Culinary Creations

Franchise Name

2404 James Street, Conway, SC 29527

Address

843-694-6479

843-694-6479

Work Phone

Cell Phone

benny.randall@hotmail.com

Email

For City of Conway:



Lym Wilkerson

Print Name

Date: 1/27/25

Attest:



Bradley Todd

Print Name

For Randall's Culinary Creations:



Brent L. Randall

Print Name

Date: 1-28-2025

Attest:



Katie Dennis

Print Name



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
01/28/2026

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER COASTAL SECURITY INSURANCE LLC 400 LAUREL ST, STE C CONWAY, SC 29526		CONTACT NAME: CHRIS SHANNON PHONE (A/C, No. Ext): 843-488-1141 FAX (A/C, No): 843-488-1141 E-MAIL ADDRESS: CSHANNON@COASTALSECURITYINS.COM PRODUCER CUSTOMER ID #:	
INSURED RANDALL'S CULINARY CREATIONS LLC 2404 JAMES ST CONWAY, SC 29527		INSURER(S) AFFORDING COVERAGE INSURER A: UNITED STATES LIABILITY INSURANCE INSURER B: INSURER C: INSURER D: INSURER E: INSURER F:	
		NAIC #	

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSR	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	GENERAL LIABILITY ☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PRO-JECT ☐ LOC	☒	☐	MGL026J06N9	01/22/2026	01/22/2027	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 100,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 1,000,000
	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ ALL OWNED AUTOS ☐ SCHEDULED AUTOS ☐ HIRED AUTOS ☐ NON-OWNED AUTOS	☐	☐				COMBINED SINGLE LIMIT (Ea accident) \$ BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$ \$
	UMBRELLA LIAB ☐ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DEDUCTIBLE RETENTION \$	☐	☐				EACH OCCURRENCE \$ AGGREGATE \$ \$ \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? ☐ Y / N (Mandatory in NH) If yes, describe under SPECIAL PROVISIONS below	☐	☐				WC STATUTORY LIMITS ☐ OTH-ER ☐ E.L. EACH ACCIDENT \$ E.L. DISEASE - EA EMPLOYEE \$ E.L. DISEASE - POLICY LIMIT \$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)

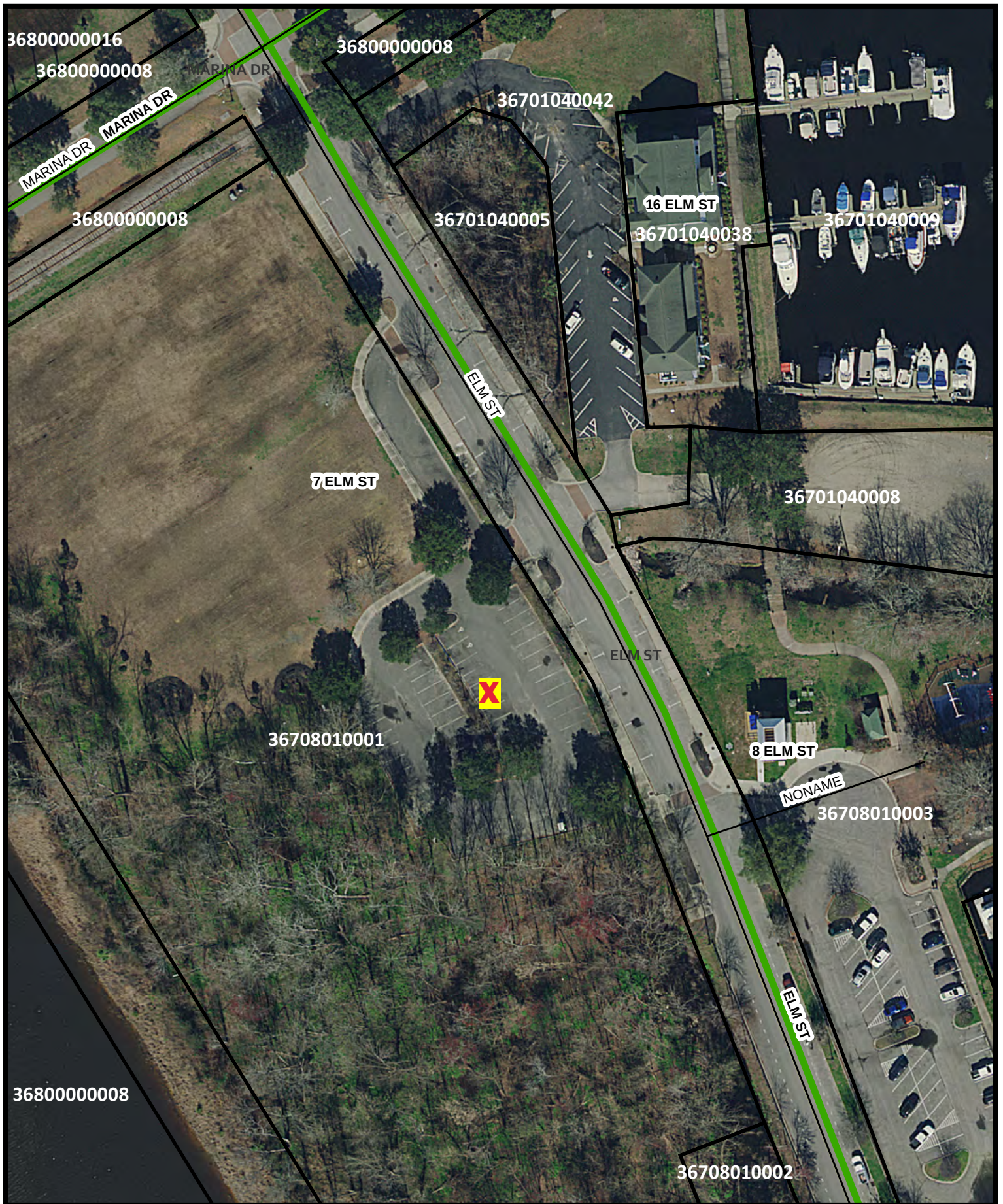
CITY OF CONWAY, 229 MAIN ST, CONWAY, SC 29526 IS LISTED AS AN ADDITIONAL INSURED

CERTIFICATE HOLDER

CANCELLATION

CITY OF CONWAY 229 MAIN ST CONWAY, SC 29526	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE Chris Shannon - Agent
---	--

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ORDINANCE #ZA2025-01-21 (B)

**AN ORDINANCE APPROVING A NON-EXCLUSIVE FRANCHISE AGREEMENT
BETWEEN THE CITY OF CONWAY AND BENNY RANDALL, D.B.A. PROJECT
RANDALL'S CULINARY CREATIONS, TO OPERATE A MOBILE VENDING UNIT IN
THE PARKING LOT LOCATED AT 7 ELM STREET.**

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF CONWAY:

WHEREAS the downtown area of the City of Conway has numerous business offerings including restaurants, shops and a theater, and attracting new types of entertainment for residents and visitors is a priority; and

WHEREAS food truck services have been successful in other communities to add vibrancy in downtown districts; and

WHEREAS the City of Conway owns the parking lot located at 7 Elm Street; and,

WHEREAS the Marina area of the City of Conway is an easy walking distance to many civic and business offices of the City of Conway, the Chamber of Commerce, and the general public; and,

WHEREAS the Mobile Food Vending Unit would not be within 150 feet from a principal public entrance to any food service business; and,

WHEREAS the City Council sees the benefit in providing a non-exclusive Franchise Agreement to allow mobile food service to be conducted on public property at the parking lot located at 7 Elm Street;
Therefore:

BE IT ORDAINED, that the Conway City Council in council duly assembled does hereby approve the attached non-exclusive Franchise Agreement between the City of Conway and Randall's Culinary Creations, *for a one (1) year period from the date of this ordinance*, effective this 21st day of January 2025.

RATIFIED BY CITY COUNCIL, duly assembled, this 21st day of January 2025.


Barbara Jo Blain, Mayor


William M. Goldfinch IV, Mayor Pro Tem


Amanda Butler, Council Member


Julie Ann Hardwick, Council Member


Beth Helms, Council Member


Justin D. Jordan, Council Member


Larry A. White, Council Member


ATTEST: Alicia Shelley, City Clerk

First Reading: January 6, 2025

Final Reading: January 21, 2025



MOBILE FOOD VENDING PERMIT

Franchise, Transient, Private Property*

Staff Use Only

Received: _____
Staff: _____
Inspected: _____

City of Conway Planning & Development
196 Laurel Street
Conway, SC 29526

Phone: (843) 488-9888

www.conwaysc.gov

planning@conwaysc.gov

VENDOR INFORMATION

Name of Business: Randall's Culinary Creations	Name of Owner: Benny Randall
Owner Address: 2404 James St., Conway, SC 29527	Owner Phone Number(s): 1-843-694-6478
Owner Email Address: benny.randall@hotmail.com	Type of Mobile Vending (franchise*, transient, or private property): Franchise
Nature of Goods to be Sold: Burgers, Tacos, Wings, Hoagies, Drinks & Sides	
Vending unit vehicle plate number: 783-BMT	State Registered: SC

VENDOR SITE INFORMATION (franchise or private property)

Address of proposed vending location: 7 Elm Street, Conway, SC 29526	Day(s) of the week at this location: Monday-Friday with some weekends
PIN number of location: 367-08-01-0001	Zoning District: WRD
Name of Property Owner: City of Conway	Address of Property Owner: PO Box 1075, Conway, SC 29528-1075

A **Franchise Agreement** must receive **two (2) readings at City Council**.

Three (3) public advertisements, at the cost of the applicant, must be placed in a newspaper of general circulation prior to the first reading. The third ad must run no later than **seven (7) calendar days before the first reading** at City Council.



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Please initial A & E below, as well as the type of mobile vending you are requesting approval for (franchise, transient, or private property).

5.1.16 Mobile Vending

The intent of this ordinance is to regulate how mobile food and beverage vendors sell food and / or non-alcoholic beverages to the public.

A. Mobile vending shall be permitted with the following conditions:

1. The vendor shall obtain and carry at all times any SCDHEC (South Carolina Department of Health and Environmental Control) food handler and / or other applicable health safety licenses.
2. If the vendor wants to operate on public property or on private property under a special event permit, he or she shall obtain notarized written permission from the owner to conduct business.
3. The vendor shall obtain and carry at all times a valid City of Conway Business License. Vendors must obtain an annual zoning compliance. Food truck permits issued under this ordinance will be valid beginning on date of this Ordinance's enactment until April 30 of the ensuing year. In the following year, a permit shall be from May 1 until April 30 of the ensuing year.
4. The vendor can operate through an approved City of Conway Special Event Permit. Mobile vendors shall not be permitted to operate in the location of Special Event activities without the permission of the Special Event permit holder.
5. The vendor is subject to a background check by the Conway Police Department prior to issuance of a zoning permit.
6. The vendor shall provide a list of the items to be sold and shall be limited to selling food and non-alcoholic beverages.
7. All sales shall be made to pedestrians and bikers only. Vendors may not solicit or conduct business with persons in motor vehicles.
8. The vendor may use only music or bells to attract attention but shall not violate the noise ordinance regulations (City of Conway Code of Ordinances Sec. 9-1-21).
9. The vendor shall not operate in any manner that blocks, obstructs or restricts the free passage of vehicles or pedestrians in the lawful use of the sidewalks or highways or ingress or egress to the abutting property. The vendor shall maintain, at a minimum, four feet of passage for pedestrians and shall follow ADA (Americans with Disabilities Act) and ANSI (American National Standards Institute) Regulations.
10. Vending units shall be in compliance with all ANSI (American National Standards Institute) regulations.
11. The vendor shall be actively engaged in vending operations at all times while occupying any property.
12. The vendor shall pick up all refuse generated by his or her operation before the vending unit is moved.
13. All vending units must be self-contained with a waste receptacle.
14. The vendor shall not discharge items from any vending unit onto the sidewalk, gutter, storm inlets, streets, or planters.
15. The vendor shall keep the area surrounding their vending unit maintained in a safe, clean, orderly, and sanitary condition at all times. Mats shall be used in the food preparation area to keep the area clean.
16. No tables, chairs, fences, shade structures, or other site furniture shall be permitted.
17. Exterior storage or display of surplus refuse, equipment, materials, goods, wares, or merchandise associated with the vending unit shall be prohibited.
18. The vendor shall display, in plain view and at all times, current permits and licenses in or on their vending unit.
19. Any damage to landscape or vegetation caused by the mobile vending operation shall be immediately compensated by the vendor upon request of the City.
20. The vendor shall provide the location of an appropriate storage facility where the vending unit is when not in operation.

Initial: BLR



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Franchise, Transient, Private Property*

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Inspected: _____

B. Transient Mobile Vending

In addition to the requirements in Section 5.1.16 A., transient mobile vending shall be permitted in the R, RA, RR, R-1, R-2, R-3, R-4, IN, HI, and LI Zoning Districts and legitimate construction sites only with the following conditions:

1. The vending unit shall not stop within 300 feet of any school, religious institution, or cemetery.
2. The vending unit shall only be stationary for a maximum of 30 minutes per stop and move at least one block before making another stop.
3. The hours of operation shall be anytime between sunrise and sunset.
4. The vehicle shall park legally.
5. The vending unit shall not stop in congested areas where it may impede or inconvenience the public or create a traffic hazard.
6. No door-to-door solicitation shall occur.
7. The vending unit shall incorporate flashing lights or signage indicating frequent stops of the vehicle.
8. Transient mobile vending may be permitted on City Property in the zones referenced in this section with the written approval of City Council.

Initial: BLR

C. Franchise Mobile Vending

In addition to the requirements stated in Section 5.1.16A., franchise mobile vending shall be permitted on Public Property in the CBD, CC, WRD, and City Parks with the following conditions:

1. Shall be granted through a franchise agreement approved by Conway City Council.
2. City Council shall determine the hours of operations.
3. City Council shall determine the approved location(s) of the vending unit.
4. The vendor shall provide the method and routes for transporting vending units to and from public property and storage facilities.
5. Vendors shall not store, park, or leave any vending unit overnight on any public property.
6. The vendor shall complete a release and indemnification agreement, which will hold the City of Conway harmless for any loss, liability or damage, including expenses and costs, for bodily or personal injury, and for property damage sustained by a person as a result of the negligent installation, use, or maintenance of a permitted public space within the City of Conway.
7. The vendor shall submit a Certificate of Insurance verifying the following minimum coverage and specifically identifying the City of Conway as an additional insured. The mobile vendor will not be permitted to operate without a Certificate of Insurance. The City of Conway must be listed as the "Certificate Holder" on the Certificate of Insurance. Minimal acceptable coverage:
 - a. Each Occurrence: \$1,000,000
 - b. Personal Injury: \$1,000,000
 - c. General Aggregate: \$2,000,000

Per the **General Ordinances** of the City of Conway - Sec. 1-3-23 - Notice Required:

Prior to the introduction of an ordinance granting a **franchise**, license or right for the use of any street or public property, or for the permanent closing of any abandoned street, the applicant for such an ordinance shall publish a notice in **three (3) issues of a newspaper** having general circulation in the city stating the nature of the franchise, license or right sought or a description of the street sought to be closed, and the date on which the application is to be presented to the council which **shall be at least one (1) week after the last notice**.

Initial: BLR



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D. Vending on Private Property

In addition to the requirements stated in Section 5.1.16A., mobile vending shall be permitted on private property in the CBD, CC, WRD, P, IN, NC, HC, LI, HI, and commercial areas of PD with the following conditions:

1. A letter and/or copy of an official lease agreement from the property owner to vend on the subject parcel must be obtained.
2. No vendor shall operate within 150 feet from the principal public entrance to any food service business, unless the adjacent food service business owner provides a notarized letter agreeing to the lesser distance. If a food services business opens within the zone after the vending unit has continuously operated the business in the location for at least 6 months, the vending unit may remain in that location.
3. The vending unit shall meet a 15' front setback from the property line, a 10' clearance between units, 10' from any fire hydrant, and a 10' emergency access setback between the unit and any buildings. If adjacent to a residential area, then the vending unit must meet the side and rear property setback requirements of its underlying zoning district.
4. A list of all requested vending sites, including property owners and physical addresses, must be provided to the City. The applicant must submit a site plan, to scale, for all proposed locations of the vending operation(s) for Commercial Plan Review by the Technical Review Committee (TRC).
5. A minimum of two (2) parking spaces must be provided per vending unit and maintained in addition to the minimum parking required for the principal business (except in the CBD, CC, and WRD Zoning Districts).
6. The vending units are to be located only on parcels with no less than a paved 30 feet driveway (except in the CBD, CC, and WRD Districts).
7. The maximum number of vending units per parcel:
 - a. For parcels up to 10,000 sq. ft., up to two vending units may be permitted at a time;
 - b. For parcels more than 10,000 sq. ft. and less than 20,000 sq. ft., up to three vending units may be permitted at a time;
 - c. For parcels greater than 20,000 sq. ft. in size, a maximum of 4 vending units is permitted at the same time (with the exception of city-sponsored or special events).
8. Each vending unit may submit multiple location sites, subject to staff approval. Commercial plan review fees will apply to each location.

Initial: BLR

E. Appearance The appearance of vending units shall be approved by the Planning Department with the following conditions:

1. The vendor shall be responsible to ensure that the vending unit is in good condition, free from evidence of deterioration, weathering, discoloration, and rust.
2. Advertising consisting of the name and logo, and a listing of items available for sale may be displayed on the vending unit. No other form of advertising or signs shall be allowed. Additionally, the vendor shall follow the requirements in section 11.2.2 Prohibited Signs of the *UDO*.
3. If already constructed, the vendor shall submit three photographs and the dimensions of the vending unit. If not constructed, the vendor shall submit a copy of the plans and color renderings of the vending unit.
4. A vendor shall be entitled to appeal the decision of the Planning Department to revoke or deny a permit based on the appearance of the vending unit by submitting a Conway CAB (Community Appearance Board) Application. Appeals must be filed within thirty (30) days from the date the notice of revocation or denial is issued. The basis for the appeal must be included in the request for an appeal.

Initial: BLR



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Franchise, Transient, Private Property Property*

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Acknowledgement:

I hereby acknowledge by signature below that the proposed mobile food vending business satisfies the requirements of the City of Conway Unified Development Ordinance (UDO), **Article 5, Section 5.1.16 – Mobile Vending**. I understand that the City of Conway may revoke the zoning compliance for this vendor permit if the business is found to be in violation of these requirements.

Signature of vendor / owner

01-11-2026

Date

DATE: FEBRUARY 17, 2026
ITEM: VI.B.

ISSUE:

Purchasing a hydroseeder for the Public Works Department

BACKGROUND:

A hydroseeder is a machine that mixes grass seed, mulch, fertilizer, and water into a thick slurry and sprays it onto the ground to quickly establish vegetation, control erosion, and create lush lawns, often on large or difficult-to-reach areas where traditional seeding is impractical. It's a faster, more effective, and cost-efficient alternative to broadcasting dry seed or laying sod. Public Works uses a hydroseeder on areas that have been disturbed such as drainage projects, sinkhole repairs, edge of roadways, & banks of ditches that have been cleaned to re-establish stabilization. It also helps in instances when building parking lots or roads using water to help soak subgrade & base material to achieve maximum compaction.

The Public Works Department would like to purchase a used 2025 FINN T75 hydroseeder to replace a 2001-year model Easy Lawn hydroseeder. Since May of 2023, \$7,294.51 has been spent on repairs for the hydroseeder currently owned. Parts for this model are becoming hard to find, and some are unavailable due to the 25-year age of equipment.

The cost of a new FINN T75 hydroseeder is estimated at \$65,000. Dobbs Equipment has a used 2025 model available with 128 hours for \$54,997.20 after tax. The money would be reallocated from the Street & Stormwater Materials & Supplies accounts.

RECOMMENDATION:

Approve the purchase of a FINN T75 hydroseeder at the approximate cost of \$54,997.20 .